

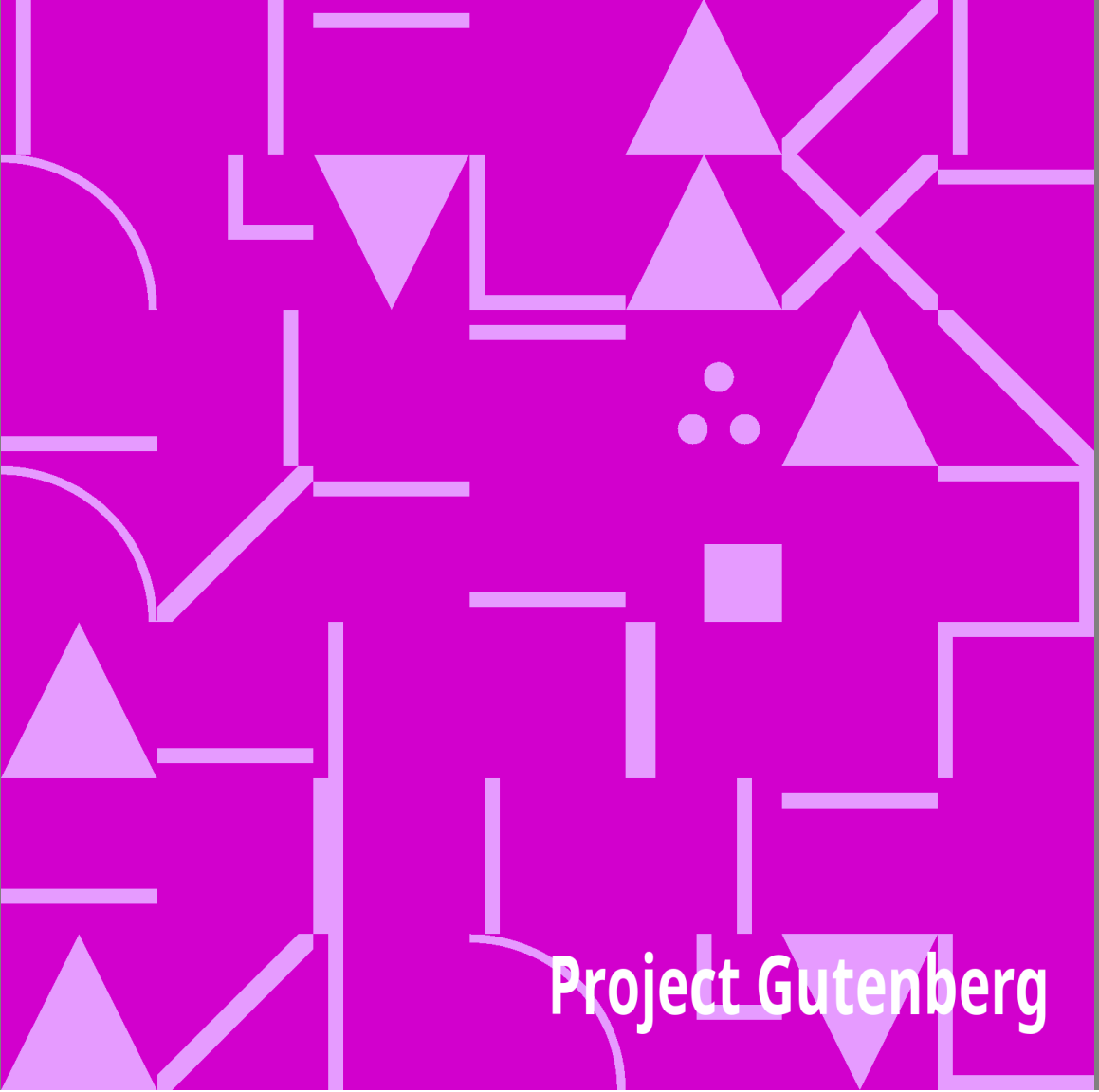
The Anti-Slavery Examiner, Part 4 of 4

American Anti-Slavery Society

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THE ANTI-SLAVERY EXAMINER Part 4 of 4

By The American Anti-Slavery Society 1839

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No. 12.
ANTI-SLAVERY EXAMINER.

CHATTEL PRINCIPLE

**THE ABHORRENCE OF JESUS
CHRIST AND THE APOSTLES;
OR,
NO REFUGE FOR AMERICAN**

SLAVERY IN THE NEW TESTAMENT.

BY BERIAH GREEN.

NEW YORK

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,
NO. 143 NASSAU STREET

1839

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Please Read and circulate.

THE NEW TESTAMENT AGAINST SLAVERY.

"THE SON OF MAN IS COME TO SEEK AND TO SAVE THAT WHICH WAS LOST."

Is Jesus Christ in favor of American slavery? In 1776 THOMAS JEFFERSON, supported by a noble band of patriots and surrounded by the American people, opened his lips in the authoritative declaration: "We hold these truths to be SELF-EVIDENT, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, LIBERTY, and the pursuit of happiness." And from the inmost heart of the multitudes around, and in a strong and clear voice, broke forth the unanimous and decisive answer: Amen—such truths we do indeed hold to be self-evident. And animated and sustained by a declaration, so inspiring and sublime, they rushed to arms, and as the result of agonizing efforts and dreadful sufferings, achieved under God the independence of their country. The great truth, whence they derived light and strength to assert and defend their rights, they made the foundation of their republic. And in the midst of this republic, must we prove, that He, who was the Truth, did not contradict "the truths" which He Himself; as their Creator, had made self-evident to mankind?

Is Jesus Christ in favor of American slavery? What, according to those laws which make it what it is, is American slavery? In the Statute-book of South Carolina thus it is written:[[1](#)] "Slaves shall be deemed, held, taken, reputed and adjudged in law to be chattels personal in the hands of their owners and possessors, and their executors, administrators and assigns, to all intents, construction and purposes whatever." The very root of American slavery consists in the assumption, that law has reduced men to chattels. But this assumption is, and must be, a gross falsehood. Men and cattle are separated from each other by the Creator, immutably, eternally, and by an impassable gulf. To confound or identify men and cattle must be to lie most wantonly, impudently, and maliciously. And must we prove, that Jesus Christ is not in favor of palpable, monstrous falsehood?

[Footnote [1](#): Stroud's Slave Laws, p. 23.]

Is Jesus Christ in favor of American slavery? How can a system, built upon a stout and impudent denial of self-evident truth—a system of treating men like cattle—operate? Thomas Jefferson shall answer. Hear him. "The whole commerce between master and slave is a perpetual exercise of the most boisterous passions; the most unremitting despotism on the one part, and degrading submission on the other. The parent storms, the child looks on, catches the lineaments of wrath, puts on the same airs in the circle of smaller slaves, gives loose to his worst passions, and thus nursed, educated, and daily exercised in tyranny, cannot but be stamped by it with odious peculiarities. The man must be a prodigy, who can retain his manners and morals undepraved by such circumstances."[\[2\]](#) Such is the practical operation of a system, which puts men and cattle into the same family and treats them alike. And must we prove, that Jesus Christ is not in favor of a school where the worst vices in their most hateful forms are systematically and efficiently taught and practiced? Is Jesus Christ in favor of American slavery? What, in 1818, did the General Assembly of the Presbyterian church affirm respecting its nature and operation? "Slavery creates a paradox in the moral system—it exhibits rational, accountable, and immortal beings, in such circumstances as scarcely to leave them the power of moral action. It exhibits them as dependent on the will of others, whether they shall receive religious instruction; whether they shall know and worship the true God; whether they shall enjoy the ordinances of the gospel; whether they shall perform the duties and cherish the endearments of husbands and wives, parents and children, neighbors and friends; whether they shall preserve their chastity and purity, or regard the dictates of justice and humanity. Such are some of the consequences of slavery; consequences not imaginary, but which connect themselves with its very existence. The evils to which the slave is *always* exposed, *often take place* in their very worst degree and form; and where all of them do not take place, still the slave is deprived of his natural rights, degraded as a human being, and exposed to the danger of passing into the hands of a master who may inflict upon him all the hardship and injuries which inhumanity and avarice may suggest."[\[3\]](#) Must we prove, that Jesus Christ is not in favor of such things?

[Footnote [2](#): Notes on Virginia, Boston Ed. 1832, pp. 169, 170.]

[Footnote [3](#): Minutes of the General assembly for 1818, p. 29.]

Is Jesus Christ in favor of American slavery? It is already widely felt and openly acknowledged at the South, that they cannot support slavery without sustaining the opposition of universal Christendom. And Thomas Jefferson declared, "I tremble for my country when I reflect that God is just; that his justice can not sleep forever; that considering numbers, nature, and natural means only, a revolution of the wheel of fortune, an exchange of situation, is among possible events; that it may become practicable by supernatural influences! The Almighty has no attribute which can take sides with us in such a contest."[\[4\]](#) And must we prove, that Jesus Christ is not in favor of what universal Christendom is impelled to abhor, denounce, and oppose; is not in favor of what every attribute of Almighty God is armed against?

[Footnote [4](#): Notes on Virginia, Boston Ed. 1832, pp. 170, 171.]

"YE HAVE DESPISED THE POOR."

It is no man of straw, with whom, in making out such proof, we are called to contend. Would to God we had no other antagonist! Would to God that our labor of love could be regarded as a work of supererogation! But we may well be ashamed and grieved to find it necessary to "stop the mouths" of grave and learned ecclesiastics, who from the heights of Zion have undertaken to defend the institution of slavery. We speak not now of those, who amidst the monuments of oppression are engaged in the sacred vocation; who, as ministers of the Gospel, can "prophecy smooth things" to such as pollute the altar of Jehovah with human sacrifices; nay, who themselves bind the victim and kindle the sacrifice. That they should put their Savior to the torture, to wring from his lips something in favor of slavery, is not to be wondered at. They consent to the murder of the children; can they respect the rights of the Father? But what shall we say of distinguished theologians of the north—professors of sacred literature at our oldest divinity schools—who stand up to defend, both by argument and authority, southern slavery! And from the Bible! Who, Balaam-like, try a

thousand expedients to force from the mouth of Jehovah a sentence which they know the heart of Jehovah abhors! Surely we have here something more mischievous and formidable than a man of straw. More than two years ago, and just before the meeting of the General Assembly of the Presbyterian church, appeared an article in the Biblical Repertory,^[5] understood to be from the pen of the Professor of Sacred Literature at Princeton, in which an effort is made to show, that slavery, whatever may be said of any abuses of it, is not a violation of the precepts of the Gospel. This article, we are informed, was industriously and extensively distributed among the members of the General Assembly—a body of men, who by a frightful majority seemed already too much disposed to wink at the horrors of slavery. The effect of the Princeton Apology on the southern mind, we have high authority for saying, has been most decisive and injurious. It has contributed greatly to turn the public eye off from the sin—from the inherent and necessary evils of slavery to incidental evils, which the abuse of it might be expected to occasion. And how few can be brought to admit, that whatever abuses may prevail nobody knows where or how, any such thing is chargeable upon them! Thus our Princeton prophet has done what he could to lay the southern conscience asleep upon ingenious perversions of the sacred volume!

[Footnote ⁵: For April, 1836. The General Assembly of the Presbyterian Church met in the following May, at Pittsburgh, where, in pamphlet form, this article was distributed. The following appeared upon the title page:

PITTSBURGH:

1836.

For gratuitous distribution.

]

About a year after this, an effort in the same direction was jointly made by Dr. Fisk and Professor Stuart. In a letter to a Methodist clergyman, Mr. Merrit, published in Zion's Herald, Dr. Fisk gives utterance to such things as the following:—

"But that you and the public may see and feel, that you have the ablest and those who are among the honestest men of this age, arrayed against you, be

pleased to notice the following letter from Prof. Stuart. I wrote to him, knowing as I did his integrity of purpose, his unflinching regard for truth, as well as his deserved reputation as a scholar and biblical critic, proposing the following questions:—"

1. Does the New Testament directly or indirectly teach, that slavery existed in the primitive church?
2. In 1 Tim. vi. 2, And they that have believing masters, &c., what is the relation expressed or implied between "they" (servants) and "believing masters?" And what are your reasons for the construction of the passage?
3. What was the character of ancient and eastern slavery?— Especially what (legal) power did this relation give the master over the slave?

PROFESSOR STUART'S REPLY.

ANDOVER, 10th Apr., 1837

REV. AND DEAR SIR,—Yours is before me. A sickness of three month's standing (typhus fever) in which I have just escaped death, and which still confines me to my house, renders it impossible for me to answer your letter at large.

1. The precepts of the New Testament respecting the demeanor of slaves and of their masters, beyond all question, recognize the existence of slavery. The masters are in part "believing masters," so that a precept to them, how they are to behave as masters, recognizes that the relation may still exist, *salva fide et salva ecclesia*, ("without violating the Christian faith or the church.") Otherwise, Paul had nothing to do but to cut the band asunder at once. He could not lawfully and properly temporize with a *malum in se*, ("that which is in itself sin.")

If any one doubts, let him take the case of Paul's sending Onesimus back to Philemon, with an apology for his running away, and sending him back to be his servant for life. The relation did exist, may exist. The *abuse* of it is the essential and fundamental wrong. Not that the theory of slavery is in itself right. No; "Love thy neighbor as thyself," "Do unto others that which ye would that others should do unto you," decide against this. But the relation once constituted and continued, is not such a *malum in se* as calls for immediate and violent disruption at all hazards. So Paul did not counsel.

2. 1 Tim. vi. 2, expresses the sentiment, that slaves, who are Christians and have Christian masters, are not, on that account, and because *as Christians they are brethren*, to forego the reverence due to them as masters. That is, the relation of master and slave is not, as a matter of course, abrogated between all Christians. Nay, servants should in such a case, *a fortiori*, do their duty cheerfully. This sentiment lies on the very face of the case. What the master's duty in such a case may be in

respect to *liberation*, is another question, and one which the apostle does not here treat of.

3. Every one knows, who is acquainted with Greek or Latin antiquities, that slavery among heathen nations has ever been more unqualified and at looser ends than among Christian nations. Slaves were *property* in Greece and Rome. That decides all questions about their *relation*. Their treatment depended, as it does now, on the temper of their masters. The power of the master over the slave was, for a long time, that of *life and death*. Horrible cruelties at length mitigated it. In the apostle's day, it was at least as great as among us.

After all the spouting and vehemence on this subject, which have been exhibited, the *good old Book* remains the same. Paul's conduct and advice are still safe guides. Paul knew well that Christianity would ultimately destroy slavery, as it certainly will. He knew, too, that it would destroy monarchy and aristocracy from the earth: for it is fundamentally a doctrine of *true liberty and equality*. Yet Paul did not expect slavery or anarchy to be ousted in a day; and gave precepts to Christians respecting their demeanor *ad interim*.

With sincere and paternal regard,

Your friend and brother,

M. STUART.

—This, sir, is doctrine that will stand, because it is *Bible doctrine*. The abolitionists, then, are on a wrong course. They have traveled out of the record; and if they would succeed, they must take a different position, and approach the subject in a different manner.

Respectfully yours,

W. FISK"

"SO THEY WRAP [SNARL] IT UP."

What are we taught here? That in the ecclesiastical organizations which grew up under the hands of the apostles, slavery was admitted as a relation that did not violate the Christian faith; that the relation may now in like manner exist; that "the abuse of it is the essential and fundamental wrong;" and of course, that American Christians may hold their own brethren in slavery without incurring guilt or inflicting injury. Thus, according to Prof. Stuart, Jesus Christ has not a word to say against "the peculiar institutions" of the South. If our brethren there do not "abuse" the privilege of enacting unpaid labor, they may multiply their slaves to their hearts' content, without exposing themselves to the frown of the Savior or laying their Christian character open to the least suspicion. Could any trafficker in human flesh ask for greater latitude! And to such doctrines, Dr. Fisk eagerly and earnestly subscribes. He goes further. He urges it on the attention of his brethren, as containing important truth, which they ought to embrace. According to him, it is "*Bible doctrine*," showing, that "the abolitionists are on a wrong course," and must, "if they would succeed, take a different position."

We now refer to such distinguished names, to show, that in attempting to prove that Jesus Christ is not in favor of American slavery, we contend with something else than a man of straw. The ungrateful task, which a particular examination of Professor Stuart's letter lays upon us, we hope fairly to dispose of in due season. Enough has now been said to make it clear and certain, that American slavery has its apologists and advocates in the northern pulpit; advocates and apologists, who fall behind few if any of their brethren in the reputation they have acquired, the stations they occupy, and the general influence they are supposed to exert.

Is it so? Did slavery exist in Judea, and among the Jews, in its worst form, during the Savior's incarnation? If the Jews held slaves, they must have done in open and flagrant violation of the letter and the spirit of the Mosaic Dispensation. Whoever has any doubts of this may well resolve his doubts in the light of the Argument entitled "The Bible against Slavery." If, after a

careful and thorough examination of that article, he can believe that slaveholding prevailed during the ministry of Jesus Christ among the Jews and in accordance with the authority of Moses, he would do the reading public an important service to record the grounds of his belief—especially in a fair and full refutation of that Argument. Till that is done, we hold ourselves excused from attempting to prove what we now repeat, that if the Jews during our Savior's incarnation held slaves, they must have done so in open and flagrant violation of the letter and spirit of the Mosaic Dispensation. Could Christ and the Apostles every where among their countrymen come in contact with slaveholding, being as it was a gross violation of that law which their office and their profession required them to honor and enforce, without exposing and condemning it?

In its worst forms, we are told, slavery prevailed over the whole world, not excepting Judea. As, according to such ecclesiastics as Stuart, Hodge and Fisk, slavery in itself is not bad at all, the term "*worst*" could be applied only to "*abuses*" of this innocent relation. Slavery accordingly existed among the Jews, disfigured and disgraced by the "*worst abuses*" to which it is liable. These abuses in the ancient world, Professor Stuart describes as "*horrible cruelties*." And in our own country, such abuses have grown so rank, as to lead a distinguished eye-witness—no less a philosopher and statesman than Thomas Jefferson—to say, that they had armed against us every attribute of the Almighty. With these things the Savior every where came in contact, among the people to whose improvement and salvation he devoted his living powers, and yet not a word, not a syllable, in exposure and condemnation of such "*horrible cruelties*" escaped his lips! He saw—among the "*covenant people*" of Jehovah he saw, the babe plucked from the bosom of its mother; the wife torn from the embrace of her husband; the daughter driven to the market by the scourge of her own father;—he saw the word of God sealed up from those who, of all men, were especially entitled to its enlightening, quickening influence;—nay, he saw men beaten for kneeling before the throne of heavenly mercy;—such things he saw without a word of admonition or reproof! No sympathy with them who suffered wrong—no indignation at them who inflicted wrong, moved his heart!

From the alleged silence of the Savior, when in contact with slavery among the Jews, our divines infer, that it is quite consistent with Christianity. And

they affirm, that he saw it in its worst forms; that is, he witnessed what Professor Stuart ventures to call "horrible cruelties." But what right have these interpreters of the sacred volume to regard any form of slavery which the Savior found, as "worst," or even bad? According to their inference—which they would thrust gag-wise into the mouths of abolitionists—his silence should seal up their lips. They ought to hold their tongues. They have no right to call any form of slavery bad—an abuse; much less, horribly cruel! Their inference is broad enough to protect the most brutal driver amidst his deadliest inflictions!

**"THINK NOT THAT I AM COME TO
DESTROY THE LAW OR THE PROPHETS;
I AM NOT COME TO DESTROY, BUT TO
FULFIL."**

And did the Head of the new dispensation, then, fall so far behind the prophets of the old in a hearty and effective regard for suffering humanity? The forms of oppression which they witnessed, excited their compassion and aroused their indignation. In terms the most pointed and powerful, they exposed, denounced, threatened. They could not endure the creatures, "who used their neighbors' service without wages, and gave him not for his work;"[6] who imposed "heavy burdens"[7] upon their fellows, and loaded them with "the bands of wickedness;" who, "hiding themselves from their own flesh," disowned their own mothers' children. Professions of piety joined with the oppression of the poor, they held up to universal scorn and execration, as the dregs of hypocrisy. They warned the creature of such professions, that he could escape the wrath of Jehovah only by heart-felt repentance. And yet, according to the ecclesiastics with whom we have to do, the Lord of these prophets passed by in silence just such enormities as he commanded them to expose and denounce! Every where, he came in contact with slavery in its worst forms—"horrible cruelties" forced themselves upon his notice; but not a word of rebuke or warning did he utter. He saw "a boy given for a harlot, and a girl sold for wine, that they might drink,"[8] without the slightest feeling of displeasure, or any mark of disapprobation! To such disgusting and horrible conclusions, do the arguings which, from the haunts of sacred literature, are inflicted on our churches, lead us! According to them, Jesus Christ, instead of shining as the light of the world, extinguished the torches which his own prophets had kindled, and plunged mankind into the palpable darkness of a starless midnight! O savior, in pity to thy suffering people, let thy temple be no longer used as a "den of thieves!"

[Footnote [6](#): Jeremiah, xxii. 13.]

[Footnote [7](#): Isaiah, lviii. 6, 7.]

[Footnote [8](#): Joel, iii. 3.]

"THOU THOUGHTEST THAT I WAS ALTOGETHER SUCH AN ONE AS THYSELF."

In passing by the worst forms of slavery, with which he every where came in contact among the Jews, the Savior must have been inconsistent with himself. He was commissioned to preach glad tidings to the poor; to heal the broken-hearted; to preach deliverance to the captives; to set at liberty them that are bruised; to preach the year of Jubilee. In accordance with this commission, he bound himself, from the earliest date of his incarnation, to the poor, by the strongest ties; himself "had not where to lay his head;" he exposed himself to misrepresentation and abuse for his affectionate intercourse with the outcasts of society; he stood up as the advocate of the widow, denouncing and dooming the heartless ecclesiastics, who had made her bereavement a source of gain; and in describing the scenes of the final judgment, he selected the very personification of poverty, disease and oppression, as the test by which our regard for him should be determined. To the poor and wretched; to the degraded and despised, his arms were ever open. They had his tenderest sympathies. They had his warmest love. His heart's blood he poured out upon the ground for the human family, reduced to the deepest degradation, and exposed to the heaviest inflictions, as the slaves of the grand usurper. And yet, according to our ecclesiastics, that class of sufferers who had been reduced immeasurably below every other shape and form of degradation and distress; who had been most rudely thrust out of the family of Adam, and forced to herd with swine; who, without the slightest offence, had been made the footstool of the worst criminals; whose "tears were their meat night and day," while, under nameless insults and killing injuries they were continually crying, O Lord, O Lord:—this class of sufferers, and this alone, our biblical expositors, occupying the high places of sacred literature, would make us believe the compassionate Savior coldly overlooked. Not an emotion of pity; not a look of sympathy; not a word of consolation, did his gracious heart prompt him to bestow upon them! He denounces damnation upon the devourer of the widow's house. But the monster, whose trade it is to make widows and

devour them and their babes, he can calmly endure! O Savior, when wilt thou stop the mouths of such blasphemers!

"IT IS THE SPIRIT THAT QUICKENETH."

It seems that though, according to our Princeton professor, "the subject" of slavery "is hardly alluded to by Christ in any of his personal instructions," [9] he had a way of "treating it." What was that? Why, "he taught the true nature, DIGNITY, EQUALITY, and destiny of men," and "inculcated the principles of justice and love." [10] And according to Professor Stuart, the maxims which our Savior furnished, "decide against" "the theory of slavery." All, then, that these ecclesiastical apologists for slavery can make of the Savior's alleged silence is, that he did not, in his personal instructions, "*apply his own principles to this particular form of wickedness.*" For wicked that must be, which the maxims of the Savior decide against, and which our Princeton professor assures us the principles of the gospel, duly acted on, would speedily extinguish. [11] How remarkable it is, that a teacher should "hardly allude to a subject in any of his personal instructions," and yet inculcate principles which have a direct and vital bearing upon it!—should so conduct, as to justify the inference, that "slaveholding is not a crime," [12] and at the same time lend its authority for its "speedy extinction!"

[Footnote 9: Pittsburg pamphlet, (already alluded to,) p. 9.]

[Footnote 10: Pittsburg pamphlet, p. 9.]

[Footnote 11: The same, p. 34.]

[Footnote 12: The same, p. 13.]

Higher authority than sustains *self-evident truths* there cannot be. As forms of reason, they are rays from the face of Jehovah. Not only are their presence and power self-manifested, but they also shed a strong and clear light around them. In their light, other truths are visible. Luminaries themselves, it is their office to enlighten. To their authority, in every department of thought, the same mind bows promptly, gratefully, fully. And

by their authority, he explains, proves, and disposes of whatever engages his attention and engrosses his powers as a reasonable and reasoning creature. For what, when thus employed and when most successful, is the utmost he can accomplish? Why, to make the conclusions which he would establish and commend, *clear in the light of reason*;—in other words, to evince that *they are reasonable*. He expects that those with whom he has to do will acknowledge the authority of principle—will see whatever is exhibited in the light of reason. If they require him to go further, and, in order to convince them, to do something more than show that the doctrines he maintains, and the methods he proposes, are accordant with reason—are illustrated and supported with "self-evident truths"—they are plainly "beside themselves." They have lost the use of reason. They are not to be argued with. They belong to the mad-house.

"COME NOW, LET US REASON TOGETHER, SAITH THE LORD."

Are we to honor the Bible, which Professor Stuart quaintly calls "the good old book," by turning away from "self-evident truths" to receive its instructions? Can these truths be contradicted or denied there? Do we search for something there to obscure their clearness, or break their force, or reduce their authority? Do we long to find something there, in the form of premises or conclusions, of arguing or of inference, in broad statement or blind hints, creed-wise or fact-wise, which may set us free from the light and power of first principles? And what if we were to discover what we were thus in search of?—something directly or indirectly, expressly or impliedly prejudicial to the principles, which reason, placing us under the authority of, makes self-evident? In what estimation, in that case, should we be constrained to hold the Bible? Could we longer honor it as the book of God? *The book of God opposed to the authority of REASON!* Why, before what tribunal do we dispose of the claims of the sacred volume to divine authority? The tribunal of reason. *This every one acknowledges the moment he begins to reason on the subject.* And what must reason do with a book, which reduces the authority of its own principles—breaks the force of self-evident truths? Is he not, by way of eminence, the apostle of infidelity, who, as a minister of the gospel or a professor of sacred literature, exerts himself, with whatever arts of ingenuity or show of piety, to exalt the Bible at the expense of reason? Let such arts succeed and such piety prevail, and Jesus Christ is "crucified afresh and put to an open shame."

What saith the Princeton professor? Why, in spite of "general principles," and "clear as we may think the arguments against DESPOTISM, there have been thousands of ENLIGHTENED *and good men*, who *honestly* believe it to be of all forms of government the best and most acceptable to God."[\[13\]](#) Now these "good men" must have been thus warmly in favor of despotism, in consequence of, or in opposition to, their being "enlightened." In other words, the light, which in such abundance they enjoyed, conducted them to the position in favor of despotism, where the Princeton professor so heartily

shook hands with them, or they must have forced their way there in despite of its hallowed influence. Either in accordance with, or in resistance to the light, they became what he found them—the advocates of despotism. If in resistance to the light—and he says they were "enlightened men"—what, so far as the subject with which alone he and we are now concerned, becomes of their "honesty" and "goodness?" Good and honest resisters of the light, which was freely poured around them! Of such, what says Professor Stuart's "good old Book?" Their authority, where "general principles" command the least respect, must be small indeed. But if in accordance with the light, they have become the advocates of despotism, then is despotism "the best form of government and most acceptable to God." It is sustained by the authority of reason, by the word of Jehovah, by the will of Heaven! If this be the doctrine which prevails at certain theological seminaries, it must be easy to account for the spirit which they breathe, and the general influence which they exert. Why did not the Princeton professor place this "general principle" as a shield, heaven-wrought and reason approved, over that cherished form of despotism which prevails among the churches of the South, and leave the "peculiar institutions" he is so forward to defend, under its protection?

[Footnote [13](#): Pittsburg pamphlet, p. 12.]

What is the "general principle" to which, whatever may become of despotism, with its "honest" admirers and "enlightened" supporters, human governments should be universally and carefully adjusted? Clearly this—*that as capable of, man is entitled to, self government*. And this is a specific form of a still more general principle, which may well be pronounced self-evident—*that every thing should be treated according to its nature*. The mind that can doubt this, must be incapable of rational conviction. Man, then,—it is the dictate of reason, it is the voice of Jehovah—must be treated as *a man*. What is he? What are his distinctive attributes? The Creator impressed his own image on him. In this were found the grand peculiarities of his character. Here shone his glory. Here REASON manifests its laws. Here the WILL puts forth its volitions. Here is the crown of IMMORTALITY. Why such endowments? Thus furnished—the image of Jehovah—is he not capable of self-government? And is he not to be so

treated? *Within the sphere where the laws of reason place him*, may he not act according to his choice—carry out his own volitions?—may he not enjoy life, exult in freedom, and pursue as he will the path of blessedness? If not, why was he so created and endowed? Why the mysterious, awful attribute of will? To be a source, profound as the depths of hell, of exquisite misery, of keen anguish, of insufferable torment! Was man, formed "according to the image of Jehovah," to be crossed, thwarted, counteracted; to be forced in upon himself; to be the sport of endless contradictions; to be driven back and forth forever between mutually repellant forces; and all, all "*at the discretion of another!*"[[14](#)] How can man be treated according to his nature, as endowed with reason or will, if excluded from the powers and privileges of self-government?—if "despotism" be let loose upon him, to "deprive him of personal liberty, oblige him to serve at the discretion of another" and with the power of "transferring" such "authority" over him and such claim upon him, to "another master?" If "thousands of enlightened and good men" can so easily be found, who are forward to support "despotism" as "of all governments the best and most acceptable to God," we need not wonder at the testimony of universal history, that "the whole creation groaneth and travaileth in pain together until now." Groans and travail pangs must continue to be the order of the day throughout "the whole creation," till the rod of despotism be broken, and man be treated as man—as capable of, and entitled to, self-government.

[Footnote [14](#): Pittsburg pamphlet, p. 12.]

But what is the despotism whose horrid features our smooth professor tries to hide beneath an array of cunningly selected words and nicely-adjusted sentences? It is the despotism of American slavery—which crushes the very life of humanity out of its victims, and transforms them to cattle! At its touch, they sink from men to things! "Slaves," saith Professor Stuart, "were *property* in Greece and Rome. That decides all questions about their *relation*." Yes, truly. And slaves in republican America are *property*; and as that easily, clearly, and definitely settles "all questions about their *relation*," why should the Princeton professor have put himself to the trouble of weaving a definition equally ingenious and inadequate—at once subtle and deceitful. Ah, why? Was he willing thus to conceal the wrongs of his

mother's children even from himself? If among the figments of his brain, he could fashion slaves, and make them something else than property, he knew full well that a very different pattern was in use among the southern patriarchs. Why did he not, in plain words and sober earnest, and good faith, describe the thing as it was, instead of employing honied words and courtly phrases, to set forth with all becoming vagueness and ambiguity, what might possibly be supposed to exist in the regions of fancy.

"FOR RULERS ARE NOT A TERROR TO GOOD WORKS, BUT TO THE EVIL."

But are we, in maintaining the principle of self-government, to overlook the unripe, or neglected, or broken powers of any of our fellow-men with whom we may be connected?—or the strong passions, vicious propensities, or criminal pursuits of others? Certainly not. But in providing for their welfare, we are to exert influences and impose restraints suited to their character. In wielding those prerogatives which the social of our nature authorizes us to employ for their benefit, we are to regard them as they are in truth, not things, not cattle, not articles of merchandize, but men, our fellow-men—reflecting, from however battered and broken a surface, reflecting with us the image of a common Father. And the great principle of self-government is to be the basis, to which the whole structure of discipline under which they may be placed, should be adapted. From the nursery and village school on to the work-house and state-prison, this principle is ever and in all things to be before the eyes, present in the thoughts, warm on the heart. Otherwise, God is insulted, while his image is despised and abused. Yes, indeed; we remember, that in carrying out the principle of self-government, multiplied embarrassments and obstructions grow out of wickedness on the one hand and passion on the other. Such difficulties and obstacles we are far enough from overlooking. But where are they to be found? Are imbecility and wickedness, bad hearts and bad heads, confined to the bottom of society? Alas, the weakest of the weak, and the desperately wicked, often occupy the high places of the earth, reducing every thing within their reach to subserviency to the foulest purposes. Nay, the very power they have usurped, has often been the chief instrument of turning their heads, inflaming their passions, corrupting their hearts. All the world knows, that the possession of arbitrary power has a strong tendency to make men shamelessly wicked and insufferably mischievous. And this, whether the vassals over whom they domineer, be few or many. If you cannot trust man with himself, will you put his fellows under his control?—and flee from the inconveniences incident to self-government, to the horrors of despotism?

"THOU THAT PREACHEST A MAN SHOULD NOT STEAL, DOST THOU STEAL."

Is the slaveholder, the most absolute and shameless of all despots, to be entrusted with the discipline of the injured men who he himself has reduced to cattle?—with the discipline with which they are to be prepared to wield the powers and enjoy the privileges of freemen? Alas, of such discipline as *he* can furnish, in the relation of owner to property, they have had enough. From this sprang the very ignorance and vice, which in the view of many, lie in the way of their immediate enfranchisement. He it is, who has darkened their eyes and crippled their powers. And are they to look to him for illumination and renewed vigor!—and expect "grapes from thorns and figs from thistles!" Heaven forbid! When, according to arrangements which had usurped the sacred name of law, he consented to receive and use them as property, he forfeited all claims to the esteem and confidence, not only of the helpless sufferers themselves, but also of every philanthropist. In becoming a slaveholder, he became the enemy of mankind. The very act was a declaration of war upon human nature. What less can be made of the process of turning men to cattle? It is rank absurdity—it is the height of madness, to propose to employ *him* to train, for the places of freemen, those whom he has wantonly robbed of every right—whom he has stolen from themselves. Sooner place Burke, who used to murder for the sake of selling bodies to the dissector, at the head of a hospital. Why, what have our slaveholders been about these two hundred years? Have they not been constantly and earnestly engaged in the work of education?—training up their human cattle? And how? Thomas Jefferson shall answer. "The whole commerce between master and slave, is a perpetual exercise of the most boisterous passions; the most unremitting despotism on the one part, and degrading submission on the other." Is this the way to fit the unprepared for the duties and privileges of American citizens? Will the evils of the dreadful process be diminished by adding to its length? What, in 1818, was the unanimous testimony of the General Assembly of the Presbyterian Church? Why, after describing a variety of influences growing out of slavery, most fatal to mental and moral improvement, the General Assembly assure us,

that such "consequences are not imaginary, but connect themselves WITH THE VERY EXISTENCE^[15] of slavery. The evils to which the slave is *always* exposed, *often* take place in fact, and IN THEIR VERY WORST DEGREE AND FORM; and where all of them do not take place," "still the slave is deprived of his natural right, degraded as a human being, and exposed to the danger of passing into the hands of a master who may inflict upon him all the hardships and injuries which inhumanity and avarice may suggest." Is this the condition in which our ecclesiastics would keep the slave, at least a little longer, to fit him to be restored to himself?

[Footnote ¹⁵: The words here marked as emphatic, were so distinguished by ourselves.]

"AND THEY STOPPED THEIR EARS."

The methods of discipline under which, as slaveholders; the Southrons now place their human cattle, they with one consent and in great wrath, forbid us to examine. The statesman and the priest unite in the assurance, that these methods are none of our business. Nay, they give us distinctly to understand, that if we come among them to take observations, and make inquiries, and discuss questions, they will dispose of us as outlaws. Nothing will avail to protect us from speedy and deadly violence! What inference does all this warrant? Surely, not that the methods which they employ are happy and worthy of universal application. If so, why do they not take the praise, and give us the benefit of their wisdom, enterprise, and success? Who, that has nothing to hide, practices concealment? "He that doeth truth cometh to the light, that his deeds may be manifest, that they are wrought in God." Is this the way of slaveholders? Darkness they court—they will have darkness. Doubtless "because their deeds are evil." Can we confide in methods for the benefit of our enslaved brethren, which it is death for us to examine? What good ever came, what good can we expect, from deeds of darkness?

Did the influence of the masters contribute any thing in the West Indies to prepare the apprentices for enfranchisement? Nay, verily. All the world knows better. They did what in them lay, to turn back the tide of blessings, which, through emancipation, was pouring in upon the famishing around them. Are not the best minds and hearts in England now thoroughly convinced, that slavery, under no modification, can be a school for freedom?

We say such things to the many who allege, that slaves cannot at once be entrusted with the powers and privileges of self-government. However this may be, they cannot be better qualified under the *influence of slavery*. *That must be broken up* from which their ignorance, and viciousness, and wretchedness proceeded. That which can only do what it has always done, pollute and degrade, must not be employed to purify and elevate. *The lower their character and condition, the louder, clearer, sterner, the just demand*

for immediate emancipation. The plague-smitten sufferer can derive no benefit from breathing a little longer an infected atmosphere.

In thus referring to elemental principles—in thus availing ourselves of the light of self-evident truths—we bow to the authority and tread in the foot-prints of the great Teacher. He chid those around him for refusing to make the same use of their reason in promoting their spiritual, as they made in promoting their temporal welfare. He gives them distinctly to understand, that they need not go out of themselves to form a just estimation of their position, duties, and prospects, as standing in the presence of the Messiah. "Why, EVEN OF YOURSELVES," he demands of them, "judge ye not what is *right*?"[[16](#)] How could they, unless they had a clear light, and an infallible standard *within them*, whereby, amidst the relations they sustained and the interests they had to provide for, they might discriminate between truth and falsehood, right and wrong, what they ought to attempt and what they ought to eschew? From this pointed, significant appeal of the Savior, it is clear and certain, that in human consciousness may be found self-evident truths, self-manifested principles; that every man, studying his own consciousness, is bound to recognize their presence and authority, and in sober earnest and good faith to apply them to the highest practical concerns of "life and godliness." It is in obedience to the Bible, that we apply self-evident truths, and walk in the light of general principles. When our fathers proclaimed these truths, and at the hazard of their property, reputation, and life, stood up in their defence, they did homage to the sacred Scriptures—they honored the Bible. In that volume, not a syllable can be found to justify that form of infidelity, which in the abused name of piety, reproaches us for practising the lessons which nature teacheth. These lessons, the Bible requires us [[17](#)] reverently to listen to, earnestly to appropriate, and most diligently and faithfully to act upon in every direction, and on all occasions.

[Footnote [16](#): Luke, xii. 57.]

[Footnote [17](#): Cor. xi. 14.]

Why, our Savior goes so far in doing honor to reason, as to encourage men universally to dispose of the characteristic peculiarities and distinctive features of the Gospel in the light of its principles. "If any man will do his

will, he shall know of the doctrine, whether it be of God, or whether I speak of myself." [18] Natural religion—the principles which nature reveals, and the lessons which nature teaches—he thus makes a test of the truth and authority of revealed religion. So far was he, as a teacher, from shrinking from the clearest and most piercing rays of reason—from calling off the attention of those around him from the import, bearings, and practical application of general principles. And those who would have us escape from the pressure of self-evident truths, by betaking ourselves to the doctrines and precepts of Christianity, whatever airs of piety they may put on, do foul dishonor to the Savior of mankind.

[Footnote 18: John, vii. 17.]

And what shall we say of the Golden Rule, which, according to the Savior, comprehends all the precepts of the Bible? "Whatsoever ye would that men should do to you, do ye even so to them; for this is the law and the prophets."

According to this maxim, in human consciousness, universally, may be found,

- 1. The standard whereby, in all the relations and circumstances of life, we may determine what Heaven demands and expects of us.
- 2. The just application of this standard, is practicable for, and obligatory upon, every child of Adam.
- 3. The qualification requisite to a just application of this rule to all the cases in which we can be concerned, is simply this—to *regard all the members of the human family as our brethren, our equals.*

In other words, the Savior here teaches us, that in the principles and laws of reason, we have an infallible guide in all the relations and circumstances of life; that nothing can hinder our following this guide, but the bias of *selfishness*; and that the moment, in deciding any moral question, we place *ourselves in the room of our brother*, before the bar of reason, we shall see what decision ought to be pronounced. Does this, in the Savior, look like fleeing self-evident truths!—like decrying the authority of general principles!—like exalting himself at the expense of reason!—like opening a

refuge in the Gospel for those whose practice is at variance with the dictates of humanity!

What then is the just application of the Golden Rule—that fundamental maxim of the Gospel, giving character to, and shedding light upon, all its precepts and arrangements—to the subject of slavery?—*that we must "do to" slaves as we would be done by, AS SLAVES, the RELATION itself being justified and continued?* Surely not. A little reflection will enable us to see, that the Golden Rule reaches farther in its demands, and strikes deeper in its influences and operations. The *natural equality* of mankind lies at the very basis of this great precept. It obviously requires *every man to acknowledge another self in every other man*. With my powers and resources, and in my appropriate circumstances, I am to recognize in any child of Adam who may address me, another self in his appropriate circumstances and with his powers and resources. This is the natural equality of mankind; and this the Golden Rule requires us to admit, defend, and maintain.

"WHY DO YE NOT UNDERSTAND MY SPEECH; EVEN BECAUSE YE CANNOT HEAR MY WORD."

They strangely misunderstand and grossly misrepresent this doctrine, who charge upon it the absurdities and mischiefs which *any "levelling system"* cannot but produce. In all its bearings, tendencies, and effects, it is directly contrary and powerfully hostile to any such system. EQUALITY OF RIGHTS, the doctrine asserts; and this necessarily opens the way for *variety of condition*. In other words, every child of Adam has, from the Creator, the inalienable right of wielding, within reasonable limits, his own powers, and employing his own resources, according to his own choice;—the right, while he respects his social relations, to promote as he will his own welfare. But mark—HIS OWN powers and resources, and NOT ANOTHER'S, are thus inalienably put under his control. The Creator makes every man free, in whatever he may do, to exert HIMSELF, and not *another*. Here no man may lawfully cripple or embarrass another. The feeble may not hinder the strong, nor may the strong crush the feeble. Every man may make the most of himself, in his own proper sphere. Now, as in the constitutional endowments; and natural opportunities, and lawful acquisitions of mankind, infinite variety prevails, so in exerting each HIMSELF, in his own sphere, according to his own choice, the variety of human condition can be little less than infinite. Thus equality of rights opens the way for variety of condition.

But with all this variety of make, means, and condition, considered individually, the children of Adam are bound together by strong ties which can never be dissolved. They are mutually united by the social of their nature. Hence mutual dependence and mutual claims. While each is inalienably entitled to assert and enjoy his own personality as a man, each sustains to all and all to each, various relations. While each owns and honors the individual, all are to own and honor the social of their nature. Now, the Golden Rule distinctly recognizes, lays its requisitions upon, and extends its obligations to, the whole nature of man, in his individual

capacities and social relations. What higher honor could it do to man, as *an individual*, than to constitute him the judge, by whose decision, when fairly rendered, all the claims of his fellows should be authoritatively and definitely disposed of? "Whatsoever YE WOULD" have done to you, so do ye to others. Every member of the family of Adam, placing himself in the position here pointed out, is competent and authorized to pass judgment on all the cases in social life in which he may be concerned. Could higher responsibilities or greater confidence be reposed in men individually? And then, how are their *claims upon each other* herein magnified! What inherent worth and solid dignity are ascribed to the social of their nature! In every man with whom I may have to do, I am to recognize the presence of *another self*, whose case I am to make *my own*. And thus I am to dispose of whatever claims he may urge upon me.

Thus, in accordance with the Golden Rule, mankind are naturally brought, in the voluntary use of their powers and resources, to promote each other's welfare. As his contribution to this great object, it is the inalienable birthright of every child of Adam, to consecrate whatever he may possess. With exalted powers and large resources, he has a natural claim to a correspondent field of effort. If his "abilities" are small, his task must be easy and his burden light. Thus the Golden Rule requires mankind mutually to serve each other. In this service, each is to exert *himself*—employ *his own* powers, lay out his own resources, improve his own opportunities. A division of labor is the natural result. One is remarkable for his intellectual endowments and acquisitions; another, for his wealth; and a third, for power and skill in using his muscles. Such attributes, endlessly varied and diversified, proceed from the basis of a *common character*, by virtue of which all men and each—one as truly as another—are entitled, as a birthright, to "life, liberty, and the pursuit of happiness." Each and all, one as well as another, may choose his own modes of contributing his share to the general welfare, in which his own is involved and identified. Under one great law of mutual dependence and mutual responsibility, all are placed—the strong as well as the weak, the rich as much as the poor, the learned no less than the unlearned. All bring their wares, the products of their enterprise, skill and industry, to the same market, where mutual exchanges are freely effected. The fruits of muscular exertion procure the fruits of mental effort. John serves Thomas with his hands, and Thomas serves John

with his money. Peter wields the axe for James, and James wields the pen for Peter. Moses, Joshua, and Caleb, employ their wisdom, courage, and experience, in the service of the community, and the community serve Moses, Joshua, and Caleb, in furnishing them with food and raiment, and making them partakers of the general prosperity. And all this by mutual understanding and voluntary arrangement. And all this according to the Golden Rule.

What then becomes of *slavery*—a system of arrangements in which one man treats his fellow, not as another self, but as a thing—a chattel—an article of merchandize, which is not to be consulted in any disposition which may be made of it;—a system which is built on the annihilation of the attributes of our common nature—in which man doth to others what he would sooner die than have done to himself? The Golden Rule and slavery are mutually subversive of each other. If one stands, the other must fall. The one strikes at the very root of the other. The Golden Rule aims at the abolition of THE RELATION ITSELF, in which slavery consists. It lays its demands upon every thing within the scope of *human action*. To "whatever MEN DO," it extends its authority. And the relation itself, in which slavery consists, is the work of human hands. It is what men have done to each other—contrary to nature and most injurious to the general welfare. This RELATION, therefore, the Golden Rule condemns. Wherever its authority prevails, this relation must be annihilated. Mutual service and slavery—like light and darkness, life and death—are directly opposed to, and subversive of, each other. The one the Golden Rule cannot endure; the other it requires, honors, and blesses.

"LOVE WORKETH NO ILL TO HIS NEIGHBOR."

Like unto the Golden Rule is the second great commandment—"Thou shalt love thy neighbor as thyself." "A certain lawyer," who seems to have been fond of applying the doctrine of limitation of human obligations, once demanded of the Savior, within what limits the meaning of the word "neighbor" ought to be confined. "And who is my neighbor?" The parable of the good Samaritan set that matter in the clearest light, and made it manifest and certain, that every man whom we could reach with our sympathy and assistance, was our neighbor, entitled to the same regard which we cherished for ourselves. Consistently with such obligations, can *slavery, as a RELATION*, be maintained? Is it then a *labor of love*—such love as we cherish for ourselves—to strip a child of Adam of all the prerogatives and privileges which are his inalienable birthright? To obscure his reason, crush his will, and trample on his immortality?—To strike home to the inmost of his being, and break the heart of his heart?—To thrust him out of the human family, and dispose of him as a chattel—as a thing in the hands of an owner, a beast under the lash of a driver? All this, apart from every thing incidental and extraordinary, belongs to the RELATION, in which slavery, as such, consists. All this—well fed or ill fed, underwrought or overwrought, clothed or naked, caressed or kicked, whether idle songs break from his thoughtless tongue or "tears be his meat night and day," fondly cherished or cruelly murdered;—*all this ENTERS VITALLY INTO THE RELATION ITSELF, by which every slave, AS A SLAVE, is set apart from the rest of the human family.* Is it an exercise of love, to place our "neighbor" under the crushing weight, the killing power, of such a relation?—to apply the murderous steel to the very vitals of his humanity?

**"YE THEREFORE APPLAUD AND DELIGHT
IN THE DEEDS OF YOUR FATHERS;**

FOR THEY KILLED THEM, AND YE BUILD THEIR SEPULCHRES."[19]

The slaveholder may eagerly and loudly deny, that any such thing is chargeable upon him. He may confidently and earnestly allege, that he is not responsible for the state of society in which he is placed. Slavery was established before he began to breathe. It was his inheritance. His slaves are his property by birth or testament. But why will he thus deceive himself? Why will he permit the cunning and rapacious spiders, which in the very sanctuary of ethics and religion are laboriously weaving webs from their own bowels, to catch him with their wretched sophistries?—and devour him, body, soul, and substance? Let him know, as he must one day with shame and terror own, that whoever holds slaves is himself responsible for *the relation*, into which, whether reluctantly or willingly, he thus enters. *The relation cannot be forced upon him*. What though Elizabeth countenanced John Hawkins in stealing the natives of Africa?—what though James, and Charles, and George, opened a market for them in the English colonies?—what though modern Dracos have "framed mischief by law," in legalizing man-stealing and slaveholding?—what though your ancestors, in preparing to go "to their own place," constituted you the owner of the "neighbors" whom they had used as cattle?—what of all this, and as much more like this, as can be drawn from the history of that dreadful process by which men are "deemed, held, taken, reputed, and adjudged in law to be *chattels personal*?" Can all this force you to put the cap upon the climax—to clinch the nail by doing that, without which nothing in the work of slave-making would be attempted? *The slaveholder is the soul of the whole system*. Without him, the chattel principle is a lifeless abstraction. Without him, charters, and markets, and laws, and testaments, are empty names. And does *he* think to escape responsibility? Why, kidnappers, and soul-drivers, and law-makers, are nothing but his *agents*. He is the guilty *principal*. Let him look to it.

[Footnote [19](#): You join with them in their bloody work. They murder, and you bury the victims.]

But what can he do? Do? Keep his hands off his "neighbor's" throat. Let him refuse to finish and ratify the process by which the chattel principle is carried into effect. Let him refuse, in the face of derision, and reproach, and opposition. Though poverty should fasten its bony hand upon him, and persecution shoot forth its forked tongue; whatever may betide him—scorn, flight, flames—let him promptly and steadfastly refuse. Better the spite and hate of men than the wrath of Heaven! "If thy right eye offend thee, pluck it out and cast it from thee; for it is profitable for thee, that one of thy members should perish, and not that thy whole body should be cast into hell."

Professor Stewart admits, that the Golden Rule and the second great commandment "decide against the theory of slavery, as being in itself right." What, then, is their relation to the particular precepts, institutions, and usages, which are authorized and enjoined in the New Testament? Of all these, they are the summary expression—the comprehensive description. No precept in the Bible, enforcing our mutual obligations, can be more or less than *the application of these injunctions to specific relations or particular occasions and conditions*. Neither in the Old Testament nor the New, do prophets teach or laws enjoin, any thing which the Golden Rule and the second great command do not contain. Whatever they forbid, no other precept can require; and whatever they require, no other precept can forbid. What, then, does he attempt, who turns over the sacred pages to find something in the way of permission or command, which may set him free from the obligations of the Golden Rule? What must his objects, methods, spirit be, to force him to enter upon such inquiries?—to compel him to search the Bible for such a purpose? Can he have good intentions, or be well employed? Is his frame of mind adapted to the study of the Bible?—to make its meaning plain and welcome? What must he think of God, to search his word in quest of gross inconsistencies, and grave contradictions! Inconsistent legislation in Jehovah! Contradictory commands! Permissions at war with prohibitions! General requirements at variance with particular arrangements!

What must be the moral character of any institution which the Golden Rule decides against?—which the second great command condemns? *It cannot but be wicked*, whether newly established or long maintained. However it may be shaped, turned, colored—under every modification and at all times—*wickedness must be its proper character. It must be, IN ITSELF, apart from its circumstances, IN ITS ESSENCE, apart from its incidents, SINFUL.*

"THINK NOT TO SAY WITHIN YOURSELVES,

WE HAVE ABRAHAM FOR OUR FATHER."

In disposing of those precepts and exhortations which have a specific bearing upon the subject of slavery, it is greatly important, nay, absolutely essential, that we look forth upon the objects around us from the right post of observation. Our stand we must take at some central point, amidst the general maxims and fundamental precepts, the known circumstances and characteristic arrangements, of primitive Christianity. Otherwise, wrong views and false conclusions will be the result of our studies. We cannot, therefore, be too earnest in trying to catch the general features and prevalent spirit of the New Testament institutions and arrangements. For to what conclusions must we come, if we unwittingly pursue our inquiries under the bias of the prejudice, that the general maxims of social life which now prevail in this country, were current, on the authority of the Savior, among the primitive Christians! That, for instance, wealth, station, talents, are the standard by which our claims upon, and our regard for, others, should be modified?—That those who are pinched by poverty, worn by disease, tasked in menial labors, or marked by features offensive to the taste of the artificial and capricious, are to be excluded from those refreshing and elevating influences which intelligence and refinement may be expected to exert; that thus they are to constitute a class by themselves, and to be made to know and keep their place at the very bottom of society? Or, what if we should think and speak of the primitive Christians, as if they had the same pecuniary resources as Heaven has lavished upon the American churches?—as if they were as remarkable for affluence, elegance, and splendor? Or, as if they had as high a position and as extensive an influence in politics and literature?—having directly or indirectly, the control over the high places of learning and of power?

If we should pursue our studies and arrange our arguments—if we should explain words and interpret language—under such a bias, what must inevitably be the results? What would be the worth of our conclusions? What confidence could be reposed in any instruction we might undertake to furnish? And is not this the way in which the advocates and apologists of slavery dispose of the bearing which primitive Christianity has upon it?

They first ascribe, unwittingly, perhaps, to the primitive churches; the character, relations, and condition of American Christianity, and amidst the deep darkness and strange confusion thus produced, set about interpreting the language and explaining the usages of the New Testament!

"SO THAT YE ARE WITHOUT EXCUSE."

Among the lessons of instruction which our Savior imparted, having a general bearing on the subject of slavery, that in which he sets up the *true standard of greatness*, deserves particular attention. In repressing the ambition of his disciples, he held up before them the methods by which alone healthful aspirations for eminence could be gratified, and thus set the elements of true greatness in the clearest light. "Ye know, that they which are accounted to rule over the Gentiles, exercise lordship over them; and their great ones exercise authority upon them. But so shall it not be among you; but whosoever will be great among you, shall be your minister; *and whosoever of you will be the chiefest, shall be servant of all.*" In other words, through the selfishness and pride of mankind, the maxim widely prevails in the world, that it is the privilege, prerogative, and mark of greatness, TO EXACT SERVICE; that our superiority to others, while it authorizes us to relax the exertion of our own powers, gives us a fair title to the use of theirs; that "might," while it exempts us from serving, "gives the right" to be served. The instructions of the Savior open the way to greatness for us in the opposite direction. Superiority to others, in whatever it may consist, gives us a claim to a wider field of exertion, and demands of us a larger amount of service. We can be great only as we *are useful*. And "might gives right" to bless our fellow men, by improving every opportunity and employing every faculty, affectionately, earnestly, and unweariedly, in their service. Thus the greater the man, the more active, faithful, and useful the servant.

The Savior has himself taught us how this doctrine must be applied. He bids us improve every opportunity and employ every power, even through the most menial services, in blessing the human family. And to make this lesson shine upon our understandings and move our hearts, he embodied in it a most instructive and attractive example. On a memorable occasion, and just before his crucifixion, he discharged for his disciples the most menial of all offices—taking, *in washing their feet*, the place of the lowest servant. He took great pains to make them understand, that only by imitating this example could they honor their relations to him as their Master; that thus

only would they find themselves blessed. By what possibility could slavery exist under the influence of such a lesson, set home by such an example? *Was it while washing the disciples' feet, that our Savior authorized one man to make a chattel of another?*

To refuse to provide for ourselves by useful labor, the apostle Paul teaches us to regard as a grave offence. After reminding the Thessalonian Christians, that in addition to all his official exertions he had with his own muscles earned his own bread, he calls their attention to an arrangement which was supported by apostolical authority, "that if any would not work, neither should he eat." In the most earnest and solemn manner, and as a minister of the Lord Jesus Christ, he commanded and exhorted those who neglected useful labor, "*with quietness to work and eat their own bread.*" What must be the bearing of all this upon slavery? Could slavery be maintained where every man eat the bread which himself had earned?—where idleness was esteemed so great a crime, as to be reckoned worthy of starvation as a punishment? How could unrequited labor be exacted, or used, or needed? Must not every one in such a community contribute his share to the general welfare?—and mutual service and mutual support be the natural result?

The same apostle, in writing to another church, describes the true source whence the means of liberality ought to be derived. "Let him that stole steal no more; but rather let him labor, working with his hands the thing which is good, that he may have to give to him that needeth." Let this lesson, as from the lips of Jehovah, be proclaimed throughout the length and breadth of South Carolina. Let it be universally welcomed and reduced to practice. Let thieves give up what they had stolen to the lawful proprietors, cease stealing, and begin at once to "labor, working with their hands," for necessary and charitable purposes. Could slavery, in such a case, continue to exist? Surely not! Instead of exacting unpaid services from others, every man would be busy, exerting himself not only to provide for his own wants, but also to accumulate funds, "that he might have to give to" the needy. Slavery must disappear, root and branch, at once and forever.

In describing the source whence his ministers should expect their support, the Savior furnished a general principle, which has an obvious and powerful bearing on the subject of slavery. He would have them remember, while

exerting themselves for the benefit of their fellow men, that "the laborer is worthy of his hire." He has thus united wages with work. Whoever renders the one is entitled to the other. And this manifestly according to a mutual understanding and a voluntary arrangement. For the doctrine that I may force you to work for me for whatever consideration I may please to fix upon, fairly opens the way for the doctrine, that you, in turn, may force me to render you whatever wages you may choose to exact for any services you may see fit to render. Thus slavery, even as involuntary servitude, is cut up by the root. Even the Princeton professor seems to regard it as a violation of the principle which unites work with wages.

The apostle James applies this principle to the claims of manual laborers—of those who hold the plough and thrust in the sickle. He calls the rich lordlings who exacted sweat and withheld wages, to "weeping and howling," assuring them that the complaints of the injured laborer had entered into the ear of the Lord of Hosts, and that, as a result of their oppression, their riches were corrupted, and their garments moth-eaten; their gold and silver were cankered; that the rust of them should be a witness against them, and should eat their flesh as it were fire; that, in one word, they had heaped treasures together for the last days, when "miseries were coming upon them," the prospect of which might well drench them in tears and fill them with terror. If these admonitions and warnings were heeded there, would not "the South" break forth into "weeping and wailing, and gnashing of teeth?" What else are its rich men about, but withholding by a system of fraud, his wages from the laborer, who is wearing himself out under the impulse of fear, in cultivating their fields and producing their luxuries! Encouragement and support do they derive from James, in maintaining the "peculiar institution" which they call patriarchal, and boast of as the "corner-stone" of the republic?

In the New Testament, we have, moreover, the general injunction, "*Honor all men.*" Under this broad precept, every form of humanity may justly claim protection and respect. The invasion of any human right must do dishonor to humanity, and be a transgression of this command. How then, in the light of such obligations, must slavery be regarded? Are those men honored, who are rudely excluded from a place in the human family, and shut up to the deep degradation and nameless horrors of chattelship? *Can they be held as slaves, and at the same time be honored as men?*

How far, in obeying this command, we are to go, we may infer from the admonitions and instructions which James applies to the arrangements and usages of religious assemblies. Into these he can not allow "respect of persons" to enter. "My brethren," he exclaims, "have not the faith of our Lord Jesus Christ, the Lord of glory, with respect of persons. For if there come unto your assembly a man with a gold ring, in goodly apparel; and there come in also a poor man in vile raiment; and ye have respect to him that weareth the gay clothing, and say unto him, sit thou here in a good place; and say to the poor, stand thou there, or sit here under my footstool; are ye not then partial in yourselves, and are become judges of evil thoughts?" *If ye have respect to persons, ye commit sin, and are convinced of the law as transgressors.* On this general principle, then, religious assemblies ought to be regulated—that every man is to be estimated, not according to his *circumstances*—not according to anything incidental to his *condition*; but according to his *moral worth*—according to the essential features and vital elements of his *character*. Gold rings and gay clothing, as they qualify no man for, can entitle no man to, a "good place" in the church. Nor can the "vile raiment of the poor man," fairly exclude him from any sphere, however exalted, which his heart and head may fit him to fill. To deny this, in theory or practice, is to degrade a man below a thing; for what are gold rings, or gay clothing, or vile raiment, but things, "which perish with the using?" And this must be "to commit sin, and be convinced of the law as transgressor."

In slavery, we have "respect of persons," strongly marked, and reduced to system. Here men are despised not merely for "the vile raiment," which may cover their scarred bodies. This is bad enough. But the deepest contempt of humanity here grows out of birth or complexion. Vile raiment may be, often is, the result of indolence, or improvidence, or extravagance. It may be, often is, an index of character. But how can I be responsible for the incidents of my birth?—how for my complexion? To despise or honor me for these, is to be guilty of "respect of persons" in its grossest form, and with its worst effects. It is to reward or punish me for what I had nothing to do with; for which, therefore, I cannot, without the greatest injustice, be held responsible. It is to poison the very fountains of justice, by confounding all moral distinctions. What, then, so far as the authority of the New Testament is concerned, becomes of slavery, which cannot be

maintained under any form nor for a single moment, without "respect of persons" the most aggravated and unendurable? And what would become of that most pitiful, silly, and wicked arrangement in so many of our churches, in which worshippers of a dark complexion are to be sent up to the negro pew? [20]

[Footnote 20: In Carlyle's Review of the Memoirs of Mirabeau, we have the following anecdote illustrative of the character of a "grandmother" of the Count. "Fancy the dame Mirabeau sailing stately towards the church font; another dame striking in to take precedence of her; the dame Mirabeau despatching this latter with a box on the ear, and these words, '*Here, as in the army, THE BAGGAGE goes last!*'" Let those who justify the negro-pew arrangement, throw a stone at this proud woman—if they dare.]

Nor are we permitted to confine this principle to *religious* assemblies. It is to pervade social life everywhere. Even where plenty, intelligence and refinement, diffuse their brightest rays, the poor are to be welcomed with especial favor. "Then said he to him that bade him, when thou makest a dinner or a supper, call not thy friends, nor thy brethren, neither thy kinsmen, nor thy rich neighbors, lest they also bid thee again, and a recompense be made thee. But when thou makest a feast, call the poor and the maimed, the lame and the blind, and thou shalt be blessed; for they cannot recompense thee, but thou shalt be recompensed at the resurrection of the just."

In the high places of social life then—in the parlor, the drawing-room, the saloon—special reference should be had, in every arrangement, to the comfort and improvement of those who are least able to provide for the cheapest rites of hospitality. For these, ample accommodations must be made, whatever may become of our kinsmen and rich neighbors. And for this good reason, that while such occasions signify little to the latter, to the former they are pregnant with good—raising their drooping spirits, cheering their desponding hearts, inspiring them with life, and hope, and joy. The rich and the poor thus meeting joyfully together, cannot but mutually contribute to each other's benefit; the rich will be led to moderation,

sobriety, and circumspection, and the poor to industry, providence, and contentment. The recompense must be great and sure.

A most beautiful and instructive commentary on the text in which these things are taught, the Savior furnished in his own conduct. He freely mingled with those who were reduced to the very bottom of society. At the tables of the outcasts of society he did not hesitate to be a cheerful guest, surrounded by publicans and sinners. And when flouted and reproached by smooth and lofty ecclesiastics, as an ultraist and leveler, he explained and justified himself by observing, that he had only done what his office demanded. It was his to seek the lost, to heal the sick, to pity the wretched;—in a word, to bestow just such benefits as the various necessities of mankind made appropriate and welcome. In his great heart, there was room enough for those who had been excluded from the sympathy of little souls. In its spirit and design, the gospel overlooked none—least of all, the outcasts of a selfish world.

Can slavery, however modified, be consistent with such a gospel?—a gospel which requires us, even amidst the highest forms of social life, to exert ourselves to raise the depressed by giving our warmest sympathies to those who have the smallest share in the favor of the world?

Those who are in "bonds" are set before us as deserving an especial remembrance. Their claims upon us are described as a modification of the Golden Rule—as one of the many forms to which its obligations are reducible. To them we are to extend the same affectionate regard as we would covet for ourselves, if the chains upon their limbs were fastened upon ours. To the benefits of this precept, the enslaved have a natural claim of the greatest strength. The wrongs they suffer spring from a persecution which can hardly be surpassed in malignancy. Their birth and complexion are the occasion of the insults and injuries which they can neither endure nor escape. It is for *the work of God*, and not their own deserts, that they are loaded with chains. *This is persecution.*

Can I regard the slave as another self—can I put myself in his place—and be indifferent to his wrongs? Especially, can I, thus affected, take sides with the oppressor? Could I, in such a state of mind as the gospel requires me to

cherish, reduce him to slavery or keep him in bonds? Is not the precept under hand naturally subversive of every system and every form of slavery?

The *general descriptions* of the church, which are found here and there in the New Testament, are highly instructive in their bearing on the subject of slavery. In one connection, the following words meet the eye: "There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female; for ye are all one in Christ Jesus."[[2121](#)] Here we have—

- 1. A clear and strong description of the doctrine of *human equality*. "Ye are all ONE;"—so much alike, so truly placed on common ground, all wielding each his own powers with such freedom, *that one is the same as another*.
- 2. This doctrine, self-evident in the light of reason, is affirmed on divine authority. "IN CHRIST JESUS, *ye are all one*." The natural equality of the human family is a part of the gospel. For—
- 3. All the human family are included in this description. Whether men or women, whether bond or free, whether Jews or Gentiles, all are alike entitled to the benefit of this doctrine. Whether Christianity prevails, the *artificial* distinctions which grow out of birth, condition, sex, are done away. *Natural distinctions* are not destroyed. *They* are recognized, hallowed, confirmed. The gospel does not abolish the sexes, forbid a division of labor, or extinguish patriotism. It takes woman from beneath the feet, and places her by the side of man; delivers the manual laborer from "the yoke," and gives him wages for his work; and brings the Jew and the Gentile to embrace each other with fraternal love and confidence. Thus it raises all to a common level, gives to each the free use of his own powers and resources, binds all together in one dear and loving brotherhood. Such, according to the description of the apostle, was the influence, and such the effect of primitive Christianity. "Behold the picture!" Is it like American slavery, which, in all its tendencies and effects, is destructive of all oneness among brethren?

[Footnote [21](#): Gal. iii. 28.]

"Where the spirit of the Lord is," exclaims the same apostle, with his eye upon the condition and relations of the church, "*where the spirit of the Lord is, THERE IS LIBERTY.*" Where, then, may we reverently recognize the presence, and bow before the manifested power, of this spirit? *There*, where the laborer may not choose how he shall be employed!—in what way his wants shall be supplied!—with whom he shall associate!—who shall have the fruit of his exertions! *There*, where he is not free to enjoy his wife and children! *There*, where his body and his soul, his very "destiny," [22] are placed altogether beyond his control! *There*, where every power is crippled, every energy blasted, every hope crushed! *There*, where in all the relations and concerns of life, he is legally treated as if he had nothing to do with the laws of reason, the light of immortality, or the exercise of will! Is the spirit of the Lord *there*, where liberty is decried and denounced, mocked at and spit upon, betrayed and crucified! In the midst of a church which justified slavery, which derived its support from slavery, which carried on its enterprises by means of slavery, would the apostle have found the fruits of the Spirit of the Lord! Let that Spirit exert his influences, and assert his authority, and wield his power, and slavery must vanish at once and for ever.

[Footnote 22: "The legislature (of South Carolina) from time to time, has passed many restricted and penal acts, with a view to bring under direct control and subjection the DESTINY of the *black population.*" See the Remonstrance of James S. Pope and 352 others against home missionary efforts for the benefit of the enslaved—a most instructive paper.]

In more than one connection, the apostle James describes Christianity as "*the law of liberty.*" It is, in other words, the law under which liberty cannot but live and flourish—the law in which liberty is clearly defined, strongly asserted, and well protected. As the law of liberty, how can it be consistent with the law of slavery? The presence and the power of this law are felt wherever the light of reason shines. They are felt in the uneasiness and conscious degradation of the slave, and in the shame and remorse which the master betrays in his reluctant and desperate efforts to defend himself. This law it is which has armed human nature against the oppressor. Wherever it is obeyed, "every yoke is broken."

In these references to the New Testament we have a *general description* of the primitive church, and the *principles* on which it was founded and fashioned. These principles bear the same relation to Christian *history* as to Christian *character*, since the former is occupied with the development of the latter. What then is Christian character but Christian principle *realized*, acted out, bodied forth, and animated? Christian principle is the soul, of which Christian character is the expression—the manifestation. It comprehends in itself, as a living seed, such Christian character, under every form, modification, and complexion. The former is, therefore, the test and interpreter of the latter. In the light of Christian principle, and in that light only, we can judge of and explain Christian character. Christian history is occupied with the forms, modifications, and various aspects of Christian character. The facts which are there recorded serve to show, how Christian principle has fared in this world—how it has appeared, what it has done, how it has been treated. In these facts we have the various institutions, usages, designs, doings, and sufferings of the church of Christ. And all these have of necessity, the closest relation to Christian principle. They are the production of its power. Through them, it is revealed and manifested. In its light, they are to be studied, explained, and understood. Without it they must be as unintelligible and insignificant as the letters of a book scattered on the wind.

In the principles of Christianity, then, we have a comprehensive and faithful account of its objects, institutions, and usages—of how it must behave, and act, and suffer, in a world of sin and misery. For between the principles which God reveals, on the one hand, and the precepts he enjoins, the institutions he establishes, and the usages he approves, on the other, there must be consistency and harmony. Otherwise we impute to God what we must abhor in man—practice at war with principle. Does the Savior, then, lay down the *principle* that our standing in the church must depend upon the habits formed within us, of readily and heartily subserving the welfare of others; and permit us *in practice* to invade the rights and trample on the happiness of our fellows, by reducing them to slavery. Does he, *in principle* and by example, require us to go all lengths in rendering mutual service, or comprehending offices the most menial, as well as the most honorable; and permit us *in practice* to EXACT service of our brethren, as if they were nothing better than "articles of merchandize!" Does he require us *in*

principle "to work with quietness and eat our own bread;" and permit us *in practice* to wrest from our brethren the fruits of their unrequited toil? Does he *in principle* require us, abstaining from every form of theft, to employ our powers in useful labor, not only to provide for ourselves but also to relieve the indigence of others; and permit us *in practice*, abstaining from every form of labor, to enrich and aggrandize ourselves with the fruits of man-stealing? Does he require us *in principle* to regard "the laborer as worthy of his hire"; and permit us *in practice* to defraud him of his wages? Does he require us *in principle* to honor ALL men; and permit us *in practice* to treat multitudes like cattle? Does he *in principle* prohibit "respect of persons;" and permit us *in practice* to place the feet of the rich upon the necks of the poor? Does he *in principle* require us to sympathize with the bondman as another self; and permit us *in practice* to leave him unpitied and unhelpt in the hands of the oppressor? *In principle*, "where the Spirit of the Lord is, there is liberty;" *in practice*, is slavery the fruit of the Spirit? *In principle*, Christianity is the law of liberty; *in practice*, it is the law of slavery? Bring practice in these various respects into harmony with principle, and what becomes of slavery? And if, where the divine government is concerned, practice is the expression of principle, and principle the standard and interpreter of practice, such harmony cannot but be maintained and must be asserted. In studying, therefore, fragments of history and sketches of biography—in disposing of references to institutions, usages, and facts in the New Testament, this necessary harmony between principle and practice in the government of God, should be continually present to the thoughts of the interpreter. Principles assert what practice must be. Whatever principle condemns, God condemns. It belongs to those weeds of the dung-hill which, planted by "an enemy," his hand will assuredly "root up." It is most certain then, that if slavery prevailed in the first ages of Christianity, it could nowhere have prevailed under its influence and with its sanction.

The condition in which in its efforts to bless mankind, the primitive church was placed, must have greatly assisted the early Christians in understanding and applying the principles of the gospel. Their *Master* was born in great obscurity, lived in the deepest poverty, and died the most ignominious death. The place of his residence, his familiarity with the outcasts of society, his welcoming assistance and support from female hands, his

casting his beloved mother, when he hung upon the cross, upon the charity of a disciple—such things evince the depth of his poverty, and show to what derision and contempt he must have been exposed. Could such an one, "despised and rejected of men—a man of sorrows and acquainted with grief," play the oppressor, or smile on those who made merchandize of the poor!

And what was the history of the *apostles*, but an illustration of the doctrine, that "it is enough for the disciple, that he be as his Master?" Were they lordly ecclesiastics, abounding with wealth, shining with splendor, bloated with luxury! Were they ambitious of distinction, fleecing, and trampling, and devouring "the flocks," that they themselves might "have the pre-eminence!" Were they slaveholding bishops! Or did they derive their support from the wages of iniquity and the price of blood! Can such inferences be drawn from the account of their condition, which the most gifted and enterprising of their number has put upon record? "Even unto this present hour, we both hunger, and thirst, and are naked, and *are buffeted*, and have *no certain dwelling place, and labor working with our own hands*. Being reviled, we bless; being persecuted, we suffer it; being defamed, we entreat; we are made as *the filth of the world*, and are THE OFFSCOURING OF ALL THINGS unto this day."[\[23\]](#) Are these the men who practised or countenanced slavery? *With such a temper, they WOULD NOT; in such circumstances, they COULD NOT*. Exposed to "tribulation, distress, and persecution;" subject to famine and nakedness, to peril and the sword; "killed all the day long; accounted as sheep for the slaughter,"[\[24\]](#) they would have made but a sorry figure at the *great-house* or slave-market.

[Footnote [23](#): 1 Cor. iv. 11-13.]

[Footnote [24](#): Rom. viii. 35, 36.]

Nor was the condition of the brethren, generally, better than that of the apostles. The position of the apostles doubtless entitled them to the strongest opposition, the heaviest reproaches, the fiercest persecution. But derision and contempt must have been the lot of Christians generally. Surely we cannot think so ill of primitive Christianity as to suppose that believers, generally, refused to share in the trials and sufferings of their

leaders; as to suppose that while the leaders submitted to manual labor, to buffeting, to be reckoned the filth of the world, to be accounted as sheep for the slaughter, his brethren lived in affluence, ease, and honor! despising manual labor and living upon the sweat of unrequited toil! But on this point we are not left to mere inference and conjecture. The apostle Paul in the plainest language explains the ordination of Heaven. "But *God hath CHOSEN* the foolish things of the world to confound the wise; and God hath CHOSEN the weak things of the world to confound the things which are mighty; and base things of the world, and things which are despised hath God CHOSEN, yea, and THINGS WHICH ARE NOT, to bring to nought things that are."[[25](#)] Here we may well notice,

- 1. That it was not by *accident*, that the primitive churches were made up of such elements, but the result of the DIVINE CHOICE—an arrangement of His wise and gracious Providence. The inference is natural, that this ordination was co-extensive with the triumphs of Christianity. It was nothing new or strange, that Jehovah had concealed his glory "from the wise and prudent, and had revealed it unto babes," or that "the common people heard him gladly," while "not many wise men after the flesh, not many mighty, not many noble, had been called."
- 2. The description of character, which the apostle records, could be adapted only to what are reckoned the *very dregs of humanity*. The foolish and the weak, the base and the contemptible, in the estimation of worldly pride and wisdom—these were they whose broken hearts were reached, and moulded, and refreshed by the gospel; these were they whom the apostle took to his bosom as his own brethren.

[Footnote [25](#): 1 Cor. i. 27, 28.]

That *slaves* abounded at Corinth, may easily be admitted. *They* have a place in the enumeration of elements of which, according to the apostle, the church there was composed. The most remarkable class found there, consisted of "THINGS WHICH ARE NOT"—mere nobodies, not admitted to the privileges of men, but degraded to a level with "goods and chattels;" of whom *no account* was made in such arrangements of society as

subverted the improvement, and dignity, and happiness of MANKIND. How accurately the description applies to those who are crushed under the chattel principle!

The reference which the apostle makes to the "deep poverty of the churches of Macedonia,"[[26](#)] and this to stir up the sluggish liberality of his Corinthian brethren, naturally leaves the impression, that the latter were by no means inferior to the former in the gifts of Providence. But, pressed with want and pinched by poverty as were the believers in "Macedonia and Achaia, it pleased them to make a certain contribution for the poor saints which were at Jerusalem."[[27](#)] Thus it appears, that Christians everywhere were familiar with contempt and indigence, so much so, that the apostle would dissuade such as had no families from assuming the responsibilities of the conjugal relation![[28](#)]

[Footnote [26](#): 2 Cor. viii. 2.]

[Footnote [27](#): Rom. xv. 26.]

[Footnote [28](#): Cor. vii. 26, 27.]

Now, how did these good people treat each other? Did the few among them, who were esteemed wise, mighty, or noble, exert their influence and employ their power in oppressing the weak, in disposing of the "things that are not," as marketable commodities!—kneeling with them in prayer in the evening, and putting them up at auction the next morning! Did the church sell any of the members to swell the "certain contribution for the poor saints at Jerusalem!" Far other wise—as far as possible! In those Christian communities where the influence of the apostles was most powerful, and where the arrangements drew forth their highest commendations, believers treated each other as *brethren*, in the strongest sense of that sweet word. So warm was their mutual love, so strong the public spirit, so open-handed and abundant the general liberality, that they are set forth as "*having all things common*." [[29](#)] Slaves and their holders here? Neither the one nor the other could, in that relation to each other, have breathed such an atmosphere. The appeal of the kneeling bondman, "Am I not a man and a brother," must here have met with a prompt and powerful response.

[Footnote [29](#): Acts, iv. 32.]

The *tests* by which our Savior tries the character of his professed disciples, shed a strong light upon the genius of the gospel. In one connection,[\[30\]](#) an inquirer demands of the Savior, "What good thing shall I do that I may have eternal life?" After being reminded of the obligations which his social nature imposed upon him, he ventured, while claiming to be free from guilt in his relations to mankind, to demand, "what lack I yet?" The radical deficiency under which his character labored, the Savior was not long or obscure in pointing out. "If thou wilt be perfect, go and sell that thou hast and give to the poor, and thou shall have treasure in heaven; and come and follow me." On this passage it is natural to suggest—

- 1. That we have here a *test of universal application*. The rectitude and benevolence of our Savior's character forbid us to suppose, that he would subject this inquirer, especially as he was highly amiable, to a trial, where eternal life was at stake, *peculiarly* severe. Indeed, the test seems to have been only a fair exposition of the second great command, and of course it must be applicable to all who are placed under the obligations of that precept. Those who cannot stand this test, as their character is radically imperfect and unsound, must, with the inquirer to whom our Lord applied it, be pronounced unfit for the kingdom of heaven.
- 2. The least that our Savior can in that passage be understood to demand is, that we disinterestedly and heartily devote ourselves to the welfare of mankind, "the poor" especially. We are to put ourselves on a level with *them*, as we must do "in selling that we have" for their benefit—in other words, in employing our powers and resources to elevate their character, condition, and prospects. This our Savior did; and if we refuse to enter into sympathy and co-operation with him, how can we be his *followers*? Apply this test to the slaveholder. Instead of "selling that he hath" for the benefit of the poor, he BUYS THE POOR, and exacts their sweat with stripes, to enable him to "clothe himself in purple and fine linen, and fare sumptuously every day;" or, HE SELLS THE POOR to support the gospel and convert the heathen!

[Footnote [30](#): Luke, xviii. 18-25.]

What, in describing the scenes of the final judgment, does our Savior teach us? *By what standard* must our character be estimated, and the retributions of eternity be awarded? A standard, which both the righteous and the wicked will be surprised to see erected. From the "offscouring of all things," the meanest specimen of humanity will be selected—a "stranger" in the hands of the oppressor, naked, hungry, sickly; and this stranger, placed in the midst of the assembled universe, by the side of the sovereign Judge, will be openly acknowledged as his representative. "Glory, honor, and immortality," will be the reward of those who had recognized and cheered their Lord through his outraged poor. And tribulation, anguish, and despair, will seize on "every soul of man" who had neglected or despised them. But whom, within the limits of our country, are we to regard especially as the representatives of our final Judge? Every feature of the Savior's picture finds its appropriate original in our enslaved countrymen.

- 1. They are the LEAST of his brethren.
- 2. They are subject to thirst and hunger, unable to command a cup of water or a crumb of bread.
- 3. They are exposed to wasting sickness, without the ability to procure a nurse or employ a physician.
- 4. They are emphatically "in prison," restrained by chains, goaded with whips, tasked, and under keepers. Not a wretch groans in any cell of the prisons of our country, who is exposed to a confinement so vigorous and heartbreaking as the law allows theirs to be continually and permanently.
- 5. And then they are emphatically, and peculiarly, and exclusively, STRANGERS—*strangers* in the land which gave them birth. Whom else do we constrain to remain aliens in the midst of our free institutions? The Welch, the Swiss, the Irish? The Jews even? Alas, it is the *negro* only, who may not strike his roots into our soil. Every where we have conspired to treat him as a stranger—every where he is forced to feel himself a stranger. In the stage and steamboat, in the parlor and at our tables, in the scenes of business and in the scenes of amusement—even in the church of God and at the communion table,

he is regarded as a stranger. The intelligent and religious are generally disgusted and horror-struck at the thought of his becoming identified with the citizens of our republic—so much so, that thousands of them have entered into a conspiracy to send him off "out of sight," to find a home on a foreign shore!—and justify themselves by openly alleging, that a "single drop" of his blood, in the veins of any human creature, must make him hateful to his fellow citizens!—That nothing but banishment from "our coasts," can redeem him from the scorn and contempt to which his "stranger" blood has reduced him among his own mother's children!

Who, then, in this land "of milk and honey," is "hungry and athirst," but the man from whom the law takes away the last crumb of bread and the smallest drop of water?

Who "naked," but the man whom the law strips of the last rag of clothing?

Who "sick," but the man whom the law deprives of the power of procuring medicine or sending for a physician?

Who "in prison," but the man who, all his life, is under the control of merciless masters and cruel keepers!

Who a "stranger," but the man who is scornfully denied the cheapest courtesies of life—who is treated as an alien in his native country?

There is one point in this awful description which deserves particular attention. Those who are doomed to the left hand of the Judge, are not charged with inflicting *positive* injuries on their helpless, needy, and oppressed brother. Theirs was what is often called *negative* character. What they *had done* is not described in the indictment. Their *neglect* of duty, what they *had NOT done*, was the ground of their "everlasting punishment." The representative of their Judge, they had seen a hungered and they gave him no meat, thirsty and they gave him no drink, a stranger and they took him not in, naked and they clothed him not, sick and in prison and they visited him not. In as much as they did NOT yield to the claims of suffering humanity—did NOT exert themselves to bless the meanest of the human family, they were driven away in their wickedness. But what if the indictment had run thus: I was a hungered and ye snatched away the crust

which might have saved me from starvation; I was thirsty and ye dashed to the ground the "cup of cold water," which might have moistened my parched lips; I was a stranger and ye drove me from the hovel which might have sheltered me from the piercing wind; I was sick and ye scourged me to my task; in prison and you sold me for my jail-fees—to what depths of hell must not those who were convicted under such charges be consigned! And what is the history of American slavery but one long indictment, describing under ever-varying forms and hues just such injuries!

Nor should it be forgotten, that those who incurred the displeasure of their Judge, took far other views than he, of their own past history. The charges which he brought against them, they heard with great surprise. They were sure that they had never thus turned away from his necessities. Indeed, when had they seen him thus subject to poverty, insult, and oppression? Never. And as to that poor friendless creature, whom they left unpitied and unhelped in the hands of the oppressor, and whom their Judge now presented as his own representative, they never once supposed, that *he* had any claims on their compassion and assistance. Had they known, that he was destined to so prominent a place at the final judgment, they would have treated him as a human being, in despite of any social, pecuniary, or political considerations. But neither their *negative virtue* nor their *voluntary ignorance* could shield them from the penal fire which their selfishness had kindled.

Now amidst the general maxims, the leading principles, the "great commandments" of the gospel; amidst its comprehensive descriptions and authorized tests of Christian character, we should take our position in disposing of any particular allusions to such forms and usages of the primitive churches as are supported by divine authority. The latter must be interpreted and understood in the light of the former. But how do the apologists and defenders of slavery proceed? Placing themselves amidst the arrangements and usages which grew out of the *corruptions* of Christianity, they make these the standard by which the gospel is to be explained and understood! Some Recorder or Justice, without the light of inquiry or the aid of a jury, consigns the negro whom the kidnapper has dragged into his presence to the horrors of slavery. As the poor wretch shrieks and faints, Humanity shudders and demands why such atrocities are endured. Some "priest" or "Levite," "passing by on the other side," quite self-possessed and

all complacent, reads in reply from his broad phylactery, *Paul sent back Onesimus to Philemon!* Yes, echoes the negro-hating mob, made up of "gentlemen of property and standing" together with equally gentle-men reeking from the gutter; *Yes—Paul sent back Onesimus to Philemon!* And Humanity, brow-beaten, stunned with noise and tumult, is pushed aside by the crowd! A fair specimen this of the manner in which modern usages are made to interpret the sacred Scriptures?

Of the particular passages in the New Testament on which the apologists for slavery especially rely, the epistle to Philemon first demands our attention.

- 1. This letter was written by the apostle Paul while a "prisoner of Jesus Christ" at Rome.
- 2. Philemon was a benevolent and trustworthy member of the church at Colosse, at whose house the disciples of Christ held their assemblies, and who owed his conversion, under God, directly or indirectly to the ministry of Paul.
- 3. Onesimus was the servant of Philemon; under a relation which it is difficult with accuracy and certainty to define. His condition, though servile, could not have been like that of an American slave; as, in that case, however he might have "wronged" Philemon, he could not also have "*owed him ought.*"[\[31\]](#) The American slave is, according to law, as much the property of his master as any other chattel; and can no more "owe" his master than can a sheep or a horse. The basis of all pecuniary obligations lies in some "value received." How can "an article of merchandise" stand on this basis and sustain commercial relations to its owner? There is no *person* to offer or promise. *Personality is swallowed up in American slavery!*
- 4. How Onesimus found his way to Rome it is not easy to determine. He and Philemon appear to have parted from each other on ill terms. The general character of Onesimus, certainly, in his relation to Philemon, had been far from attractive, and he seems to have left him without repairing the wrongs he had done him or paying the debts which he owed him. At Rome, by the blessing of God upon the exertions of the apostle, he was brought to reflection and repentance.
- 5. In reviewing his history in the light of Christian truth, he became painfully aware of the injuries he had inflicted on Philemon. He longed for an opportunity for frank confession and full restitution. Having,

however, parted with Philemon on ill terms, he knew not how to appear in his presence. Under such embarrassments, he naturally sought sympathy and advice of Paul. *His* influence upon Philemon, Onesimus knew must be powerful, especially as an apostle.

- 6. A letter in behalf of Onesimus was therefore written by the apostle to Philemon. After such salutations, benedictions, and thanksgiving as the good character and useful life of Philemon naturally drew from the heart of Paul, he proceeds to the object of the letter. He admits that Onesimus had behaved ill in the service of Philemon; not in running away, for how they had parted with each other is not explained; but in being unprofitable and in refusing to pay the debts [\[32\]](#) which he had contracted. But his character had undergone a radical change. Thenceforward fidelity and usefulness would be his aim and mark his course. And as to any pecuniary obligations which he had violated, the apostle authorized Philemon to put them on his account.[\[33\]](#) Thus a way was fairly opened to the heart of Philemon. And now what does the apostles ask?
- 7. He asks that Philemon would receive Onesimus, How? "Not as a *servant*, but *above* a servant."[\[34\]](#) How much above? Philemon was to receive him as "a son" of the apostle—"as a brother beloved"—nay, if he counted Paul a partner, an equal, he was to receive Onesimus as he would receive *the apostle himself*.[\[35\]](#) *So much* above a servant was he to receive him!
- 8. But was not this request to be so interpreted and complied with as to put Onesimus in the hands of Philemon as "an article of merchandise," CARNALLY, while it raised him to the dignity of a "brother beloved," SPIRITUALLY? In other words, might not Philemon consistently with the request of Paul have reduced Onesimus to a chattel, as A MAN, while he admitted him fraternally to his bosom, as a CHRISTIAN? Such gibberish in an apostolic epistle! Never. As if, however to guard against such folly, the natural product of mist and moonshine, the apostle would have Onesimus raised above a servant to the dignity of a brother beloved, "BOTH IN THE FLESH AND IN THE LORD;"[\[36\]](#) as a man and Christian, in all the relations, circumstances, and responsibilities of life.

[Footnote [31](#): Philemon, 18.]

[Footnote [32](#): Verse 11, 18.]

[Footnote [33](#): Verse 18.]

[Footnote [34](#): Verse 16.]

[Footnote [35](#): Verse 10, 16, 17.]

[Footnote [36](#): Verse 16.]

It is easy now with definiteness and certainty to determine in what sense the apostle in such connections uses the word "*brother*". It describes a relation inconsistent with and opposite to the *servile*. It is "NOT" the relation of a "SERVANT." It elevates its subject "above" the servile condition. It raises him to full equality with the master, to the same equality, on which Paul and Philemon stood side by side as brothers; and this, not in some vague, undefined, spiritual sense, affecting the soul and leaving the body in bonds, but in every way, "both in the FLESH and in the Lord." This matter deserves particular and earnest attention. It sheds a strong light on other lessons of apostolic instruction.

- 9. It is greatly to our purpose, moreover, to observe that the apostle clearly defines the *moral character* of his request. It was fit, proper, right, suited to the nature and relation of things—a thing which *ought* to be done.[\[37\]](#) On this account, he might have urged it upon Philemon in the form of an *injunction*, on apostolic authority and with great boldness.[\[37\]](#) *The very nature* of the request made it obligatory on Philemon. He was sacredly bound, out of regard to the fitness of things, to admit Onesimus to full equality with himself—to treat him as a brother both in the Lord and as having flesh—as a fellow man. Thus were the inalienable rights and birthright privileges of Onesimus, as a member of the human family, defined and protected by apostolic authority.
- 10. The apostle preferred a request instead of imposing a command, on the ground of CHARITY.[\[39\]](#) He would give Philemon an opportunity of discharging his obligations under the impulse of love. To this impulse, he was confident Philemon would promptly and fully yield.

How could he do otherwise? The thing itself was right. The request respecting it came from a benefactor, to whom, under God, he was under the highest obligations.[[40](#)] That benefactor, now an old man, and in the hands of persecutors, manifested a deep and tender interest in the matter and had the strongest persuasion that Philemon was more ready to grant than himself to entreat. The result, as he was soon to visit Colosse, and had commissioned Philemon to prepare a lodging for him, must come under the eye of the apostle. The request was so manifestly reasonable and obligatory, that the apostle, after all, described a compliance with it, by the strong word "*obedience*."[[41](#)]

[Footnote [37](#): Verse 8. To [Greek: anaekon]. See Robinson's New Testament Lexicon; "*it is fit, proper, becoming, it ought*." In what sense King James' translators used the word "convenient" any one may see who will read Rom. i. 28 and Eph. v. 3, 4.]

[Footnote [38](#): Verse 8.]

[Footnote [39](#): Verse 9—[Greek: dia taen agapaen]]

[Footnote [40](#): Verse 19.]

[Footnote [41](#): Verse 21.]

Now, how must all this have been understood by the church at Colosse?—a church, doubtless, made up of such materials as the church at Corinth, that is, of members chiefly from the humblest walks of life. Many of them had probably felt the degradation and tasted the bitterness of the servile condition. Would they have been likely to interpret the apostle's letter under the bias of feelings friendly to slavery!—And put the slaveholder's construction on its contents! Would their past experience or present sufferings—for doubtless some of them were still "under the yoke"—have suggested to their thoughts such glosses as some of our theological professors venture to put upon the words of the apostle! Far otherwise. The Spirit of the Lord was there, and the epistle was read in the light of "*liberty*." It contained the principles of holy freedom, faithfully and affectionately applied. This must have made it precious in the eyes of such

men "of low degree" as were most of the believers, and welcome to a place in the sacred canon. There let it remain as a luminous and powerful defence of the cause of emancipation!

But what saith Professor Stuart? "If any one doubts, let him take the case of Paul's sending Onesimus back to Philemon, with an apology for his running away, and sending him back to be his servant for life."[[42](#)]

[Footnote [42](#): See his letter to Dr. Fisk, supra pp. 7, 8]

"Paul sent back Onesimus to Philemon." By what process? Did the apostle, a prisoner at Rome, seize upon the fugitive, and drag him before some heartless and perfidious "Judge," for authority to send him back to Colosse? Did he hurry his victim away from the presence of the fat and supple magistrate, to be driven under chains and the lash to the field of unrequited toil, whence he had escaped? Had the apostle been like some teachers in the American churches, he might, as a professor of sacred literature in one of our seminaries, or a preacher of the gospel to the rich in some of our cities, have consented thus to subserve the "peculiar" interests of a dear slaveholding brother. But the venerable champion of truth and freedom was himself under bonds in the imperial city, waiting for the crown of martyrdom. He wrote a letter to the church at Colosse, which was accustomed to meet at the house of Philemon, and another letter to that magnanimous disciple, and sent them by the hand of Onesimus. So much for *the way* in which Onesimus was sent back to his master.

A slave escapes from a patriarch in Georgia, and seeks a refuge in the parish of the Connecticut doctor of Divinity, who once gave public notice that he saw no reason for caring for the servitude of his fellow men.[[43](#)] Under his influence, Caesar becomes a Christian convert. Burning with love for the son whom he hath begotten in the gospel, our doctor resolves to send him back to his master. Accordingly, he writes a letter, gives it to Caesar, and bids him return, staff in hand, to the "corner-stone of our republican institutions." Now, what would my Caesar do, who had ever felt a link of slavery's chain? As he left his *spiritual father*, should we be surprised to hear him say to himself, What, return of my own accord to the man who, with the hand of a robber, plucked me from my mother's bosom!—for

whom I have been so often drenched in the sweat of unrequited toil!—whose violence so often cut my flesh and scarred my limbs!—who shut out every ray of light from my mind!—who laid claim to those honors to which my Creator and Redeemer only are entitled! And for what am I to return? To be cursed, and smitten, and sold! To be tempted, and torn, and destroyed! I cannot thus throw myself away—thus rush upon my own destruction.

[Footnote [43](#): "Why should I care?"]

Who ever heard of the voluntary return of a fugitive from American oppression? Do you think that the doctor and his friends could persuade one to carry a letter to the patriarch from whom he had escaped? And must we believe this of Onesimus?

"Paul sent back Onesimus to Philemon." On what occasion?—"If," writes the apostle, "he hath wronged thee, or oweth thee ought, put that on my account." Alive to the claims of duty, Onesimus would "restore" whatever he "had taken away." He would honestly pay his debts. This resolution the apostle warmly approved. He was ready, at whatever expense, to help his young disciple in carrying it into full effect. Of this he assured Philemon, in language the most explicit and emphatic. Here we find one reason for the conduct of Paul in sending Onesimus to Philemon.

If a fugitive slave of the Rev. Dr. Smylie, of Mississippi, should return to him with a letter from a doctor of divinity in New York, containing such an assurance, how would the reverend slaveholder dispose of it? What, he exclaims, have we here? "If Cato has not been upright in his pecuniary intercourse with you—if he owes you any thing—put that on my account." What ignorance of southern institutions! What mockery, to talk of pecuniary intercourse between a slave and his master! *The slave himself, with all he is and has, is an article of merchandise.* What can he owe his master? A rustic may lay a wager with his mule, and give the creature the peck of oats which he has permitted it to win. But who, in sober earnest, would call this a pecuniary transaction?

"TO BE HIS SERVANT FOR LIFE!" From what part of the epistle could the expositor have evolved a thought so soothing to tyrants—so revolting to every man who loves his own nature? From this? "For perhaps he therefore departed for a season, that thou shouldst receive him for ever." Receive him how? *As a servant*, exclaims our commentator. But what wrote the apostle? "NOT *now as a servant, but above a servant*, a brother beloved, especially to me, but how much more unto thee, both in the flesh and in the Lord." Who authorized the professor to bereave the word "*not*" of its negative influence? According to Paul, Philemon was to receive Onesimus "*not as a servant*;"—according to Stuart, he was to receive him "*as a servant*!" If the professor will apply the same rules of exposition to the writings of the abolitionists, all difference between him and them must in his view presently vanish away. The harmonizing process would be equally simple and effectual. He has only to understand them as affirming what they deny, and as denying what they affirm.

Suppose that Professor Stuart had a son residing, at the South. His slave, having stolen money of his master, effected his escape. He fled to Andover, to find a refuge among the "sons of the prophets." There he finds his way to Professor Stuart's house, and offers to render any service which the professor, dangerously ill "of a typhus fever," might require. He is soon found to be a most active, skilful, faithful nurse. He spares no pains, night and day, to make himself useful to the venerable sufferer. He anticipates every want. In the most delicate and tender manner, he tries to sooth every pain. He fastens himself strongly on the heart of the reverend object of his care. Touched with the heavenly spirit, the meek demeanor, the submissive frame, which the sick bed exhibits, Archy becomes a Christian. A new bond now ties him and his convalescent teacher together. As soon as he is able to write, the professor sends Archy with the following letter to the South, to Isaac Stuart, Esq.:—

"MY DEAR SON,—With a hand enfeebled by a distressing and dangerous illness, from which I am slowly recovering, I address you on a subject which lies very near my heart. I have a request to urge, which our mutual relation to each other, and your strong obligations to me, will, I cannot doubt, make you eager fully to grant. I say a request, though the thing I ask is, in its very nature and on the principles of the gospel, obligatory upon you. I might, therefore, boldly demand, what I earnestly entreat. But I know

how generous, magnanimous, and Christ-like you are, and how readily you will "do even more than I say"—I, your own father, an old man, almost exhausted with multiplied exertions for the benefit of my family and my country and now just rising, emaciated and broken, from the brink of the grave. I write in behalf of Archy, whom I regard with the affection of a father, and whom, indeed, 'I have forgotten in my sickness.' Gladly would I have retained him, to be *an Isaac* to me; for how often did not his soothing voice, and skilful hand, and unwearied attention to my wants remind me of you! But I chose to give you an opportunity of manifesting, voluntarily, the goodness of your heart; as, if I had retained him with me, you might seem to have been forced to grant what you will gratefully bestow. His temporary absence from you may have opened the way for his permanent continuance with you. Not now as a slave. Heaven forbid! But superior to a slave. Superior, did I say? Take him to your bosom, as a beloved brother; for I own him as a son, and regard him as such, in all the relations of life, both as a man and a Christian. 'Receive him as myself.' And that nothing may hinder you from complying with my request at once, I hereby promise, without adverting to your many and great obligations to me, to pay you every cent which he took from your drawer. Any preparation which my comfort with you may require, you will make without much delay, when you learn, that I intend, as soon as I shall be able 'to perform the journey,' to make you a visit."

And what if Dr. Baxter, in giving an account of this letter should publicly declare that Professor Stuart, of Andover regarded slaveholding as lawful; for that "he had sent Archy back to his son Isaac, with an apology for his running away" to be held in perpetual slavery? With what propriety might not the professor exclaim: False, every syllable false. I sent him back, NOT TO BE HELD AS A SLAVE, *but recognized as a dear brother, in all respects, under every relation, civil and ecclesiastical.* I bade my son receive *Archy as myself.* If this was not equivalent to a requisition to set him fully and most honorably free, and that, too, on the ground of natural obligation and Christian principle, then I know not how to frame such a requisition.

I am well aware that my supposition is by no means strong enough fully to illustrate the case to which it is applied. Professor Stuart lacks apostolical authority. Isaac Stuart is not a leading member of a church consisting, as the

early churches chiefly consisted, of what the world regard as the dregs of society—"the offscouring of all things." Nor was slavery at Colosse, it seems, supported by such barbarous usages, such horrid laws as disgrace the South.

But it is time to turn to another passage which, in its bearing on the subject in hand, is, in our view, as well as in the view of Dr. Fisk. and Prof. Stuart, in the highest degree authoritative and instructive. "Let as many servants as are under the yoke count their own masters worthy of all honor, that the name of God and his doctrines be not blasphemed. And they that have believing masters, let them not despise them because they are brethren; but rather do them service, because they are faithful and beloved, partakers of the benefit." [44]

[Footnote 44: 1 Tim. vi. 1. 2. The following exposition of this passage is from the pen of ELIZUR WRIGHT, JR.:—

"This word [Greek: antilambanesthai] in our humble opinion, has been so unfairly used by the commentators, that we feel constrained to take its part. Our excellent translators, in rendering the clause 'partakers of the benefit,' evidently lost sight of the component preposition, which expresses the *opposition of reciprocity*, rather than the *connection of participation*. They have given it exactly the sense of [Greek: metalambanein], (2 Tim. ii. 6.) Had the apostle intended such a sense, he would have used the latter verb, or one of the more common words, [Greek: metochoi, koinonomtes, &c.] (See Heb. iii. 1, and 1 Tim. v. 22, where the latter word is used in the clause, 'neither be partaker of other men's sins.' Had the verb in our text been used, it might have been rendered, 'neither be the *part-taker* of other men's sins.') The primary sense of [Greek: antilambans] is *to take in return—to take instead of, &c.* Hence, in the middle with the genitive, it signifies *assist*, or *do one's part towards* the person or thing expressed by that genitive. In this sense only is the word used in the New Testament,—(See Luke i. 54, and Acts, xx. 35.) If this be true, the word [Greek: emsgesai] cannot signify the benefit conferred by the gospel, as our common version would make it, but the *well doing* of the servants, who should

continue to serve their believing masters, while they were no longer under the *yoke* of compulsion. This word is used elsewhere in the New Testament but once (Acts. iv. 3.) in relation to the '*good deed*' done to the impotent man. The plain import of the clause, unmystified by the commentators, is, that believing masters would not fail to *do their part towards*, or encouraged by suitable returns, the *free* service of those who had once been under the *yoke*."]]

- 1. The apostle addresses himself here to two classes of servants, with instructions to each respectively appropriate. Both the one class and the other, in Professor Stuart's eye, were *slaves*. This he assumes, and thus begs the very question in dispute. The term servant is *generic*, as used by the sacred writers. It comprehends all the various offices which men discharge for the benefit of each other, however honorable, or however menial; from that of an apostle[45] opening the path to heaven, to that of washing "one another's feet." [46] A general term it is, comprehending every office which belongs to human relations and Christian character.[47]

[Footnote 45: Cor. iv. 5.]

[Footnote 46: John, xiii, 14.]

[Footnote 47: Mat, xx, 26-28.]

A leading signification gives us the *manual laborer*, to whom, in the division of labor, muscular exertion was allotted. As in his exertions the bodily powers are especially employed—such powers as belong to man in common with mere animals—his sphere has generally been considered low and humble. And as intellectual power is superior to bodily, the manual laborer has always been exposed in very numerous ways and in various degrees to oppression. Cunning, intrigue, the oily tongue, have, through extended and powerful conspiracies, brought the resources of society under the control of the few, who stood aloof from his homely toil. Hence his dependence upon them. Hence the multiplied injuries which have fallen so heavily upon him. Hence the reduction of his wages from one degree to another, till at length, in the

case of millions, fraud and violence strip him of his all, blot his name from the record of *mankind*, and, putting a yoke upon his neck, drive him away to toil among the cattle. *Here you find the slave*. To reduce the servant to his condition, requires abuses altogether monstrous—injuries reaching the very vitals of man—stabs upon the very heart of humanity. Now, what right has Professor Stuart to make the word "*servants*," comprehending, even as manual laborers, so many and such various meanings, signify "*slaves*," especially where different classes are concerned? Such a right he could never have derived from humanity, or philosophy, or hermeneutics. It is his by sympathy with the oppressor?

Yes, different classes. This is implied in the term "as many,"[[48](#)] which sets apart the class now to be addressed. From these he proceeds to others, who are introduced by a particle,[[49](#)] whose natural meaning indicates the presence of another and a different subject.

[Footnote [48](#): [Greek: Ochli] See Passow's Schneider.]

[Footnote [49](#): [Greek: Dd.] See Passow.]

- 2. The first class are described as "*under the yoke*"—a yoke from which they were, according to the apostle, to make their escape if possible.[[50](#)] If not, they must in every way regard the master with respect—bowing to his authority, working his will, subserving his interests so far as might be consistent with Christian character.[[51](#)] And this, to prevent blasphemy—to prevent the pagan master from heaping profane reproaches upon the name of God and the doctrines of the gospel. They should beware of rousing his passions, which, as his helpless victims, they might be unable to allay or withstand.

[Footnote [50](#): See 1 Cor. vii, 21—[Greek: All' ei kai dunasai eleuphoros genesthai].]

[Footnote [51](#): See 1 Cor. vii, 23—[Greek: Mae gineshe doulos anthroton].]

But all the servants whom the apostle addressed were not "*under the yoke*"[52]—an instrument appropriate to cattle and to slaves. These he distinguishes from another class, who instead of a "yoke"—the badge of a slave—had "*believing masters*." *To have a "believing master," then, was equivalent to freedom from "the yoke."* These servants were exhorted not to *despise* their masters. What need of such an exhortation, if their masters had been slaveholders, holding them as property, wielding them as mere instruments, disposing of them as "articles of merchandise." But this was not consistent with believing. Faith, "breaking every yoke," united master and servants in the bonds of brotherhood. Brethren they were, joined in a relation which, excluding the yoke,[53] placed them side by side on the ground of equality, where, each in his appropriate sphere, they might exert themselves freely and usefully, to the mutual benefit of each other. Here, servants might need to be cautioned against getting above their appropriate business, putting on airs, despising their masters, and thus declining or neglecting their service.[54] Instead of this, they should be, as emancipated slaves often have been, [55] models of enterprise, fidelity, activity, and usefulness—especially as their masters were "worthy of their confidence and love," their helpers in this well-doing.

[Footnote 52: See Lev. xxvi. 13; Isa lviii. 6, 9.]

[Footnote 53: Supra p. 44.]

[Footnote 54: See Mat. vi. 24.]

[Footnote 55: Those, for instance, set free by that "believing master" James G. Birney.]

Such, then, is the relation between those who, in the view of Professor Stuart, were Christian masters and Christian slaves[56]—the relation of "brethren," which, excluding "the yoke," and of course conferring freedom, placed them side by side on the common ground of mutual service, both retaining, for convenience sake, the one while giving and the other while receiving employment, the correlative name, *as is usual in such cases*, under which they had been known. Such was the instruction which Timothy

was required, as a Christian minister, to give. Was it friendly to slaveholding?

[Footnote [56](#): Letter to Dr. Fisk, *supra*, p. 7.]

And on what ground, according to the Princeton professor, did these masters and these servants stand in their relation to each other? On that *of a "perfect religious equality."*[\[57\]](#) In all the relations, duties, and privileges—in all the objects, interests, and prospects, which belong to the province of Christianity, servants were as free as their master. The powers of the one, were allowed as wide a range and as free an exercise, with as warm encouragements, as active aids, and as high results, as the other. Here, the relation of a servant to his master imposed no restrictions, involved no embarrassments, occasioned no injury. All this, clearly and certainly, is implied in "*perfect religious equality*," which the Princeton professor accords to servants in relation to their master. Might the *master*, then, in order more fully to attain the great ends for which he was created and redeemed, freely exert himself to increase his acquaintance with his own powers, and relations, and resources—with his prospects, opportunities, and advantages? So might his *servants*. Was *he* at liberty to "study to approve himself to God," to submit to his will and bow to his authority, as the sole standard of affection and exertion? So were *they*. Was *he* at liberty to sanctify the Sabbath, and frequent the "solemn assembly?" So were *they*. Was *he* at liberty so to honor the filial, conjugal, and paternal relations, as to find in them that spring of activity and that source of enjoyment, which they are capable of yielding? So were *they*. In every department of interest and exertion, they might use their capacities, and wield their powers, and improve their opportunities, and employ their resources, as freely as he, in glorifying God, in blessing mankind, and in laying up imperishable treasures for themselves! Give perfect religious equality to the American slave, and the most eager abolitionist must be satisfied. Such equality would, like the breath of the Almighty, dissolve the last link of the chain of servitude. Dare those who, for the benefit of slavery, have given so wide and active a circulation to the Pittsburg pamphlet, make the experiment?

[Footnote [57](#): Pittsburg Pamphlet, p. 9.]

In the epistle to the Colossians, the following passage deserves earnest attention:—"Servants, obey in all things your masters according to the flesh; not with eye-service, as men-pleasers; but in singleness of heart, fearing God: and whatsoever ye do, do it heartily, as to the Lord, and not unto men; knowing, that of the Lord ye shall receive the reward of the inheritance; for ye serve the Lord Christ. But he that doeth wrong shall receive for the wrong which he hath done: and there is no respect of persons.—Masters, give unto your servants that which is just and equal; knowing that ye have a Master in heaven."[[58](#)]

[Footnote [58](#): Col. iii. 22 to iv. 1.]

Here it is natural to remark—

- 1. That in maintaining the relation, which mutually united them, both masters and servants were to act in conformity with the principles of the divine government. Whatever *they* did, servants were to do in hearty obedience to the Lord, by whose authority they were to be controlled and by whose hand they were to be rewarded. To the same Lord, and according to the same law, was the *master* to hold himself responsible. *Both the one and the other were of course equally at liberty and alike required to study and apply the standard, by which they were to be governed and judged.*
- 2. The basis of the government under which they thus were placed, was *righteousness*—strict, stern, impartial. Nothing here of bias or antipathy. Birth, wealth, station,—the dust of the balance not so light! Both master and servants were hastening to a tribunal, where nothing of "respect of persons" could be feared or hoped for. There the wrong-doer, whoever he might be, and whether from the top or bottom of society, must be dealt with according to his deservings.
- 3. Under this government, servants were to be universally and heartily obedient; and both in the presence and absence of the master, faithfully to discharge their obligations. The master on his part, in his relations to the servants, was to make JUSTICE AND EQUALITY the *standard of his conduct*. Under the authority of such instructions, slavery falls

discountenanced, condemned, abhorred. It is flagrantly at war with the government of God, consists in "respect of persons" the most shameless and outrageous, treads justice and equality under foot, and in its natural tendency and practical effects is nothing else than a system of wrong-doing. What have *they* to do with the just and the equal who in their "respect of persons" proceed to such a pitch as to treat one brother as a thing because he is a servant, and place him, without the least regard to his welfare here, or his prospects hereafter, absolutely at the disposal of another brother, under the name of master, in the relation of owner to property? Justice and equality on the one hand, and the chattel principle on the other, are naturally subversive of each other—proof clear and decisive that the correlates, masters and servants, cannot here be rendered slaves and owners, without the grossest absurdity and the greatest violence.

- "Servants, be obedient to them that are *your* masters according to the flesh, with fear and trembling, in singleness of your heart, as unto Christ; not with eye-service, as men-pleasers; but as the servants of Christ, doing the will of God from the heart; with good will doing service, as to the Lord, and not to men: knowing that whatsoever good thing any man doeth, the same shall he receive of the Lord, whether *he* be bond or free. And, ye masters, do the same things unto them, forbearing threatening: knowing that your Master also is in heaven; neither is there respect of persons with him."[[59](#)]

[Footnote [59](#): Ephesians, vi. 5-9.]

Without repeating here what has already been offered in exposition of kindred passages, it may be sufficient to say:—

- 1. That the relation of the servants here addressed, to their master, was adapted to make him the object of their heart-felt attachment. Otherwise they could not have been required to render him an affectionate service.
- 2. This relation demanded a perfect reciprocity of benefits. It had its soul in *good-will*, mutually cherished and properly expressed. Hence "THE SAME THINGS," the same in principle, the same in substance,

the same in their mutual bearing upon the welfare of the master and the servants, was to be rendered back and forth by the one and the other. It was clearly the relation of mutual service. Do we here find the chattel principle?

- 3. Of course, the servants might not be slack, time-serving, unfaithful. Of course, the master must "FORBEAR THREATENING." Slavery without threatening! Impossible. Wherever maintained, it is of necessity a *system of threatening*, injecting into the bosom of the slave such terrors, as never cease for a moment to haunt and torment him. Take from the chattel principle the support, which it derives from "threatening," and you annihilate it at once and forever.
- 4. This relation was to be maintained in accordance with the principles of the divine government, where "RESPECT OF PERSONS" could not be admitted. It was, therefore, totally inconsistent with, and submissive of, the chattel principle, which in American slavery is developed in a system of "respect of persons," equally gross and hurtful. No Abolitionist, however eager and determined in his opposition to slavery, could ask for more than these precepts, once obeyed, would be sure to confer.

"The relation of slavery," according to Professor Stuart, is recognized in "the precepts of the New Testament," as one which "may still exist without violating the Christian faith or the church."[\[60\]](#) Slavery and the chattel principle! So our professor thinks; otherwise his reference has nothing to do with the subject—with the slavery which the abolitionist, whom he derides, stands opposed to. How gross and hurtful is the mistake into which he allows himself to fall. The relation recognized in the precepts of the New Testament had its basis and support in "justice and equality;" the very opposite of the chattel principle; a relation which may exist as long as justice and equality remain, and thus escape the destruction to which, in the view of Professor Stuart, slavery is doomed. The description of Paul obliterates every feature of American slavery, raising the servant to equality with his master, and placing his rights under the protection of justice; yet the eye of Professor Stuart can see nothing in his master and servant but a slave and his owner. With this relation he is so thoroughly possessed, that, like an evil angel, it haunts him even when he enters the temple of justice!

[Footnote [60](#): Letter to Dr. Fisk, *supra* p. 7.]

"It is remarkable," saith the Princeton professor, "that there is not even an exhortation" in the writings of the apostles "to masters to liberate their slaves, much less is it urged as an imperative and immediate duty."[\[61\]](#) It would be remarkable, indeed, if they were chargeable with a defect so great and glaring. And so they have nothing to say upon the subject? *That* not even the Princeton professor has the assurance to affirm. He admits that KINDNESS, MERCY, AND JUSTICE, were enjoined with a *distinct reference to the government of God*.[\[62\]](#) "Without respect of persons," they were to be God-like in doing justice. They were to act the part of kind and merciful "brethren." And whither would this lead them? Could they stop short of restoring to every man his natural, inalienable rights?—of doing what they could to redress the wrongs, sooth the sorrows, improve the character, and raise the condition of the degraded and oppressed? Especially, if oppressed and degraded by any agency of theirs. Could it be kind, merciful, or just to keep the chains of slavery on their helpless, unoffending brother? Would this be to honor the Golden Rule, or obey the second great command of "their Master in Heaven?" Could the apostles have subserved the cause of freedom more directly, intelligibly, and effectually, than *to enjoin the principles, and sentiments, and habits, in which freedom consists—constituting its living root and fruitful germ!*

[Footnote [61](#): Pittsburg pamphlet, p. 9.]

[Footnote [62](#): The same, p. 10.]

The Princeton professor himself, in the very paper which the South has so warmly welcomed and so loudly applauded as a scriptural defence of "the peculiar institution," maintains, that the "GENERAL PRINCIPLES OF THE GOSPEL *have DESTROYED SLAVERY throughout the greater part of Christendom*"[\[63\]](#)—"THAT CHRISTIANITY HAS ABOLISHED BOTH POLITICAL AND DOMESTIC BONDAGE WHEREVER IT HAS HAD FREE SCOPE—that it ENJOINS *a fair compensation for labor; insists on the mental and intellectual improvement of ALL classes of men; condemns ALL infractions of marital or parental rights; requires, in short, not only that FREE SCOPE should be allowed to human improvement, but that ALL*

SUITABLE MEANS *should be employed for the attainment of that end.*" [64] It is indeed "remarkable," that while neither Christ nor his apostles ever gave "an exhortation to masters to liberate their slaves," they enjoined such "general principles as have destroyed domestic slavery throughout the greater part of Christendom;" that while Christianity forbears "to urge" emancipation "as an imperative and immediate duty," it throws a barrier, heaven high, around every domestic circle; protects all the rights of the husband and the father; gives every laborer a fair compensation; and makes the moral and intellectual improvement of all classes, with free scope and all suitable means, the object of its tender solicitude and high authority. This is not only "remarkable," but inexplicable. Yes and no—hot and cold, in one and the same breath! And yet these things stand prominent in what is reckoned an acute, ingenious, effective defence of slavery!

[Footnote [63](#): Pittsburg pamphlet, p. 18, 19.]

[Footnote [64](#): The same, p. 31.]

In his letter to the Corinthian church, the apostle Paul furnishes another lesson of instruction, expressive of his views and feelings on the subject of slavery. "Let every man abide in the same calling wherein he was called. Art thou called being a servant? care not for it; but if thou mayest be made free, use it rather. For he that is called in the Lord, being a servant, is the Lord's freeman: likewise also he that is called, being free, is Christ's servant. Ye are bought with a price; be not ye the servants of men." [65]

[Footnote [65](#): 1 Cor. vii. 20-23.]

In explaining and applying this passage, it is proper to suggest:

- 1. That it *could* not have been the object of the apostle to bind the Corinthian converts to the stations and employments in which the gospel found them. For he exhorts some of them to escape, if possible, from their present condition. In the servile state, "under the yoke," they ought not to remain unless impelled by stern necessity. "If thou canst be free, use it rather." If they ought to prefer freedom to bondage and to exert themselves to escape from the latter for the sake of the former,

could their master consistently with the claims and spirit of the gospel have hindered or discouraged them in so doing? Their "brother" could *he* be, who kept "the yoke" upon their neck, which the apostle would have them shake off if possible? And had such masters been members of the Corinthian church, what inferences must they have drawn from this exhortation to their servants? That the apostle regarded slavery as a Christian institution?—or could look complacently on any efforts to introduce or maintain it in the church? Could they have expected less from him than a stern rebuke, if they refused to exert themselves in the cause of freedom?

- 2. But while they were to use their freedom, if they could obtain it, they should not, even on such a subject, give themselves up to ceaseless anxiety. "The Lord was no respecter of persons." They need not fear, that the "low estate," to which they had been wickedly reduced, would prevent them from enjoying the gifts of his hand or the light of his countenance. *He* would respect their rights, sooth their sorrows, and pour upon their hearts, and cherish there, the spirit of liberty. "For he that is called in the Lord, being a servant, is the Lord's freeman." In *him*, therefore, should they cheerfully confide.
- 3. The apostle, however, forbids them so to acquiesce in the servile relation, as to act inconsistently with their Christian obligations. To their Savior they belonged. By his blood they had been purchased. It should be their great object, therefore, to render *Him* a hearty and effective service. They should permit no man, whoever he might be, to thrust in himself between them and their Redeemer. "*Ye are bought with a price; BE NOT YE THE SERVANTS OF MEN.*"

With his eye upon the passage just quoted and explained, the Princeton professor asserts that "Paul represents this relation"—the relation of slavery—"as of comparatively little account."[\[66\]](#) And this he applies—otherwise it is nothing to his purpose—to *American slavery*. Does he then regard it as a small matter, a mere trifle, to be thrown under the slave-laws of this republic, grimly and fiercely excluding their victim from almost every means of improvement, and field of usefulness, and source of comfort; and making him, body and substance, with his wife and babes, "the servant of men?" Could such a relation be acquiesced in consistently with the instructions of the apostle?

[Footnote [66](#): Pittsburg pamphlet, p.10.]

To the Princeton professor we commend a practical trial of the bearing of the passage in hand upon American slavery. His regard for the unity and prosperity of the ecclesiastical organizations, which in various forms and under different names, unite the southern with the northern churches, will make the experiment grateful to his feelings. Let him, then, as soon as his convenience will permit, proceed to Georgia. No religious teacher[[67](#)] from any free State, can be likely to receive so general and so warm a welcome there. To allay the heat, which the doctrines and movements of the abolitionists have occasioned in the southern mind, let him with as much despatch as possible, collect, as he goes from place to place, masters and their slaves. Now let all men, whom it may concern, see and own that slavery is a Christian institution! With his Bible in his hand and his eye upon the passage in question, he addresses himself to the task of instructing the slaves around him. Let not your hearts, my brethren, be overcharged with sorrow, or eaten up with anxiety. Your servile condition cannot deprive you of the fatherly regards of Him "who is no respecter of persons." Freedom you ought, indeed, to prefer. If you can escape from "the yoke," throw it off. In the mean time rejoice that "where the Spirit of the Lord is, there is liberty;" that the gospel places slaves "on a perfect religious equality" with their master; so that every Christian is "the Lord's freeman." And, for your encouragement, remember that "Christianity has abolished both political and domestic servitude wherever it has had free scope. It enjoins a fair compensation for labor; it insists on the moral and intellectual improvement of all classes of men; it condemns all infractions of marital or parental rights; in short it requires not only that free scope be allowed to human improvement, but that all suitable means should be employed for the attainment of that end."[[68](#)] Let your lives, then, be honorable to your relations to your Savior. He bought you with his own blood; and is entitled to your warmest love and most effective service. "Be not ye the servants of men." Let no human arrangements prevent you, as citizens of the kingdom of heaven, from making the most of your powers and opportunities. Would such an effort, generally and heartily made, allay excitement at the South, and quench the flames of discord, every day rising higher and waxing hotter, in almost every part of the republic, and cement "the Union?"

[Footnote [67](#): Rev. Mr. Savage, of Utica, New York, had, not very long ago, a free conversation with a gentleman of high standing in the literary and religious world from a slaveholding State, where the "peculiar institution" is cherished with great warmth and maintained with iron rigor. By him, Mr. Savage was assured, that the Princeton professor had, through the Pittsburg pamphlet, contributed most powerfully and effectually to bring the "whole South" under the persuasion, *that slaveholding is in itself right—a system to which the Bible gives countenance and support.*

In an extract from an article in the Southern Christian Sentinel, a new Presbyterian paper established in Charleston, South Carolina, and inserted in the Christian Journal for March 21, 1839, we find the following paragraphs from the pen of Rev. C.W. Howard, and, according to Mr. Chester, ably and freely endorsed by the editor. "There is scarcely any diversity of sentiment at the North upon this subject. The great mass of the people, believing slavery to be sinful, are clearly of the opinion that, as a system, it should be abolished throughout this land and throughout the world. They differ as to the time and mode of abolition. The abolitionists consistently argue, that whatever is sinful should be instantly abandoned. The others, *by a strange sort of reasoning for Christian men*, contend that though slavery is sinful, *yet it may be allowed to exist until it shall be expedient to abolish it*; or, if, in many cases, this reasoning might be translated into plain English, the sense would be, both in Church and State, *slavery, though sinful, may be allowed to exist until our interest will suffer us to say that it must be abolished.* This is not slander; it is simply a plain way of stating a plain truth. It does seem the evident duty of every man to become an abolitionist, who believes slavery to be sinful, for the Bible allows no tampering with sin.

"To these remarks, there are some noble exceptions, to be found in both parties in the church. *The South owes a debt of gratitude to the Biblical Repertory, for the fearless argument in behalf of the position, that slavery is not forbidden by the Bible.* The writer of that article is said, without contradiction, to be *Professor Hodge, of Princeton*—HIS NAME OUGHT TO BE KNOWN AND REVERED AMONG YOU, *my brethren, for in a land of anti-slavery men, he is the ONLY ONE who has dared to vindicate*

your character from the serious charge of living in the habitual transgression of God's holy law."]

[Footnote [68](#): Pittsburg pamphlet, p. 31.]

"It is," affirms the Princeton professor, "on all hands acknowledged, that, at the time of the advent of Jesus Christ, slavery in its worst forms prevailed over the whole world. *The Savior found it around him IN JUDEA.*"[[69](#)] To say that he found it *in Judea*, is to speak ambiguously. Many things were to be found "*in Judea*," which neither belonged to, nor were characteristic of *the Jews*. It is not denied that *the Gentiles*, who resided among them, might have had slaves; *but of the Jews this is denied*. How could the professor take that as granted, the proof of which entered vitally into the argument and was essential to the soundness of the conclusions to which he would conduct us? How could he take advantage of an ambiguous expression to conduct his confiding readers on to a position which, if his own eyes were open, he must have known they could not hold in the light of open day!

[Footnote [69](#): The same, p. 9]

We do not charge the Savior with any want of wisdom, goodness, or courage,[[70](#)] for refusing to "break down the wall of partition between Jews and Gentiles" "before the time appointed." While this barrier stood, he could not, consistently with the plan of redemption, impart instruction freely to the Gentiles. To some extent, and on extraordinary occasions, he might have done so. But his business then was with "the lost sheep of the house of Israel."[[71](#)] The propriety of this arrangement is not the matter of dispute between the Princeton professor and ourselves.

[Footnote [70](#): Pittsburg pamphlet, p. 10.]

[Footnote [71](#): Matt. xv. 24.]

In disposing of the question whether the Jews held slaves during our Savior's incarnation among them, the following points deserve earnest attention:—

- 1. Slaveholding is inconsistent with the Mosaic economy. For the proof of this, we would refer our readers, among other arguments more or less appropriate and powerful, to the tract already alluded to.[72] In all the external relations and visible arrangements of life, the Jews, during our Savior's ministry among them, seem to have been scrupulously observant of the institutions and usages of the "Old Dispensation." They stood far aloof from whatever was characteristic of Samaritans and Gentiles. From idolatry and slaveholding—those twin-vices which had always so greatly prevailed among the heathen—they seem at length, as the result of a most painful discipline, to have been effectually divorced.

[Footnote 72: "The Bible against Slavery."]

- 2. While, therefore, John the Baptist; with marked fidelity and great power, acted among the Jews the part of a *reprover*, he found no occasion to repeat and apply the language of his predecessors,[73] in exposing and rebuking idolatry and slaveholding. Could he, the greatest of the prophets, have been less effectually aroused by the presence of "the yoke," than was Isaiah?—or less intrepid and decisive in exposing and denouncing the sin of oppression under its most hateful and injurious forms?

[Footnote 73: Psalm lxxxii; Isa. lviii. 1-12 Jer. xxii. 13-16.]

- 3. The Savior was not backward in applying his own principles plainly and pointedly to such forms of oppression as appeared among the Jews. These principles, whenever they have been freely acted on, the Princeton professor admits, have abolished domestic bondage. Had this prevailed within the sphere of our Savior's ministry, he could not, consistently with his general character, have failed to expose and condemn it. The oppression of the people by lordly ecclesiastics, of parents by their selfish children, of widows by their ghostly counsellors, drew from his lips scorching rebukes and terrible denunciations.[74] How, then, must he have felt and spoke in the

presence of such tyranny, if *such tyranny had been within his official sphere*, as should *have made widows*, by driving their husbands to some flesh-market, and their children not orphans, *but cattle*?

[Footnote [74](#): Matt. xxiii; Mark, vii. 1-13.]

- 4. Domestic slavery was manifestly inconsistent with the *industry*, which, *in the form of manual labor*, so generally prevailed among the Jews. In one connection, in the Acts of the Apostles, we are informed, that, coming from Athens to Corinth, Paul "found a certain Jew, named Aquila, born in Pontus, lately come from Italy, with his wife Priscilla; (because that Claudius had commanded all Jews to depart from Rome;) and came unto them. And because he was of the same craft, he abode with them and wrought: (for by their occupation they were tent-makers.")[[75](#)] This passage has opened the way for different commentators to refer us to the public sentiment and general practice of the Jews respecting useful industry and manual labor. According to *Lightfoot*, "it was their custom to bring up their children to some trade, yea, though they gave them learning or estates." According to Rabbi Judah, "He that teaches not his son a trade, is as if he taught him to be a thief."([76](#)) It was, *Kuinoel* affirms, customary even for Jewish teachers to unite labor (opificium) with the study of the law. This he confirms by the highest Rabbinical authority.[77](#) *Heinrichs* quotes a Rabbi as teaching, that no man should by any means neglect to train his son to honest industry.[78](#) Accordingly, the apostle Paul, though brought up at the "feet of Gamaliel," the distinguished disciple of a most illustrious teacher, practised the art of tent-making. His own hands ministered to his necessities; and his example is so doing, he commends to his Gentile brethren for their imitation.[79](#) That Zebedee, the father of John the Evangelist, had wealth, various hints in the New Testament render probable.[80](#) Yet how do we find him and his sons, while prosecuting their appropriate business? In the midst of the hired servants, "in the ship mending their nets."[81](#)

[Footnote [75](#): Acts, xviii. 1-3.]

[Footnote [76](#): Henry on Acts, xviii. 1-3.]

[Footnote [77](#): Kuinoel on Acts.]

[Footnote [78](#): Heinrichs on Acts.]

[Footnote [79](#): Acts, xx. 34, 35; 1 Thess. iv. 11.]

[Footnote [80](#): See Kuinoel's Prolegom. to the Gospel of John.]

[Footnote [81](#): Mark, i. 19, 20.]

Slavery among a people who, from the highest to the lowest, were used to manual labor! What occasion for slavery there? And how could it be maintained? No place can be found for slavery among a people generally inured to useful industry. With such, especially if men of learning, wealth, and station, "labor, working with their hands," such labor must be honorable. On this subject, let Jewish maxims and Jewish habits be adopted at the South, and the "peculiar institution" would vanish like a ghost at daybreak.

- 5. Another hint, here deserving particular attention, is furnished in the allusions of the New Testament to the lowest casts and most servile employments among the Jews. With profligates, *publicans* were joined as depraved and contemptible. The outcasts of society were described, not as fit to herd with slaves, but as deserving a place among Samaritans and publicans. They were "*hired servants*," whom Zebedee employed. In the parable of the prodigal son we have a wealthy Jewish family. Here servants seem to have abounded. The prodigal, bitterly bewailing his wretchedness and folly, described their condition as greatly superior to his own. How happy the change which should place him by their side? His remorse, and shame, and penitence made him willing to embrace the lot of the lowest of them all. But these—what was their condition? They were HIRED SERVANTS. "Make me as one of thy hired servants." Such he refers to as the lowest menials known in Jewish life.

Lay such hints as have now been suggested together; let it be remembered, that slavery was inconsistent with the Mosaic economy; that John the Baptist in preparing the way for the Messiah makes no reference "to the

yoke" which, had it been before him, he would, like Isaiah, have condemned; that the Savior, while he took the part of the poor and sympathized with the oppressed, was evidently spared the pain of witnessing within the sphere of his ministry, the presence, of the chattel principle, that it was the habit of the Jews, whoever they might be, high or low, rich or poor, learned or rude, "to labor, working with their hands;" and that where reference was had to the most menial employments, in families, they were described as carried on by hired servants; and the question of slavery "in Judea," so far as the seed of Abraham were concerned, is very easily disposed of. With every phase and form of society among them slavery was inconsistent.

The position which, in the article so often referred to in this paper, the Princeton professor takes, is sufficiently remarkable. Northern abolitionists he saw in an earnest struggle with southern slaveholders. The present welfare and future happiness of myriads of the human family were at stake in this contest. In the heat of the battle, he throws himself between the belligerent powers. He gives the abolitionists to understand, that they are quite mistaken in the character of the objections they have set themselves so openly and sternly against. Slaveholding is not, as they suppose, contrary to the law of God. It was witnessed by the Savior "in its worst forms"[[82](#)] without extorting from his lips a syllable of rebuke. "The sacred writers did not condemn it."[[83](#)] And why should they? By a definition [[84](#)] sufficiently ambiguous and slippery, he undertakes to set forth a form of slavery which he looks upon as consistent with the law of Righteousness. From this definition he infers that the abolitionists are greatly to blame for maintaining that American slavery is inherently and essentially sinful, and for insisting that it ought at once to be abolished. For this labor of love the slaveholding South is warmly grateful and applauds its reverend ally, as if a very Daniel had come as their advocate to judgment.[[85](#)]

[Footnote [82](#): Pittsburg pamphlet, p. 9.]

[Footnote [83](#): The same, p. 13.]

[Footnote [84](#): The same, p. 12.]

[Footnote [85](#): Supra, p. 58.]

A few questions, briefly put, may not here be inappropriate.

- 1. Was the form of slavery which our professor pronounces innocent *the form* witnessed by our Savior "in Judea?" That, *he* will by no means admit. The slavery there was, he affirms, of the "worst" kind. *How then does he account for the alleged silence of the Savior?—a silence covering the essence and the form—the institution and its "worst" abuses?*
- 2. Is the slaveholding, which, according to the Princeton professor, Christianity justifies, the same as that which the abolitionists so earnestly wish to see abolished? Let us see.

*Christianity in supporting
Slavery, according to
Professor Hodge:*

"Enjoins a fair compensation
for labor"

"It insists on the moral and
intellectual improvement of
all classes of men"

"It condemns all infractions
of marital or parental rights."

"It requires that free scope
should be allowed to human
improvement."

"It requires that all suitable
means should be employed to
improve mankind"

"Wherever it has had free
scope, it has abolished
domestic bondage."

*The American system for supporting
Slavery:*

Makes compensation impossible by
reducing the laborer to a chattel.

It sternly forbids its victim to learn to
read even the name of his Creator and
Redeemer.

It outlaws the conjugal and parental
relations.

It forbids any effort, on the part of
myriads of the human family, to
improve their character, condition, and
prospects.

It inflicts heavy penalties for teaching
letters to the poorest of the poor.

Wherever it has free scope, it
perpetuates domestic bondage.

*Now it is slavery according to the American system that the
abolitionists are set against. Of the existence of any such form of*

slavery as is consistent with Professor Hodge's account of the requisitions of Christianity, they know nothing. It has never met their notice, and of course, has never roused their feelings or called forth their exertions. What, then, have *they* to do with the censures and reproaches which the Princeton professor deals around? Let those who have leisure and good nature protect the *man of straw* he is so hot against. The abolitionists have other business. It is not the figment of some sickly brain; but that system of oppression which in theory is corrupting, and in practice destroying both Church and State;—it is this that they feel pledged to do battle upon, till by the just judgment of Almighty God it is thrown, dead and damned, into the bottomless abyss.

- 3. *How can the South feel itself protected by any shield which may be thrown over SUCH SLAVERY, as may be consistent with what the Princeton professor describes as the requisitions of Christianity? Is this THE slavery which their laws describe, and their hands maintain? "Fair compensation for labor"—"marital and parental rights"—"free scope" and "all suitable means" for the "improvement, moral and intellectual, of all classes of men;"—are these, according to the statutes of the South, among the objects of slaveholding legislation? Every body knows that any such requisitions and American slavery are flatly opposed to and directly subversive of each other. What service, then, has the Princeton professor, with all his ingenuity and all his zeal, rendered the "peculiar institution?" Their gratitude must be of a stamp and complexion quite peculiar, if they can thank him for throwing their "domestic system" under the weight of such Christian requisitions as must at once crush its snaky head "and grind it to powder."*

And what, moreover, is the bearing of the Christian requisitions, which Professor Hodge quotes, upon the *definition of slavery* which he has elaborated? "All the ideas which necessarily enter into the definition of slavery are, deprivation of personal liberty, obligation of service at the discretion of another, and the transferable character of the authority and claim of service of the master."[\[86\]](#)

[Footnote [86](#): Pittsburg pamphlet p. 12.]

According to Professor Hodge's account of the requisitions of Christianity,

The spring of effort in the laborer is a fair compensation.

Free scope must be given for his moral and intellectual improvement.

His rights as a husband and a father are to be protected.

According to Professor Hodge's definition of Slavery,

The laborer must serve at the discretion of another.

He is deprived of personal liberty—the necessary condition, and living soul of improvement, without which he has no control of either intellect or morals.

The authority and claims of the master may throw an ocean between him and his family, and separate them from each other's presence at any moment and forever.

Christianity, then, requires such slavery as Professor Hodge so cunningly defines, to be abolished. It was well provided for the peace of the respective parties, that he placed *his definition* so far from *the requisitions of Christianity*. Had he brought them into each other's presence, their natural and invincible antipathy to each other would have broken out into open and exterminating warfare. But why should we delay longer upon an argument which is based on gross and monstrous sophistry? It can mislead only such as *wish* to be misled. The lovers of sunlight are in little danger of rushing into the professor's dungeon. Those who, having something to conceal, covet darkness, can find it there, to their heart's content. The hour cannot be far away, when upright and reflective minds at the South will be astonished at the blindness which could welcome such protection as the Princeton argument offers to the slaveholder.

But *Professor Stuart* must not be forgotten. In his celebrated letter to Dr. Fisk, he affirms that "*Paul did not expect slavery to be ousted in a day.*"[87] *Did not EXPECT!* What then! Are the *requisitions* of Christianity adapted to any EXPECTATIONS which in any quarter and on any ground might have risen to human consciousness? And are we to interpret the *precepts* of the gospel by the expectations of Paul? The Savior commanded all men every where to repent, and this, though "Paul did not expect" that human

wickedness, in its ten thousand forms would in any community "be ousted in a day." Expectations are one thing; requisitions quite another.

[Footnote [87](#): Supra, p. 7.]

In the mean time, while expectation waited, Paul, the professor adds, "gave precepts to Christians respecting their demeanor." *That* he did. Of what character were these precepts? Must they not have been in harmony with the Golden Rule? But this, according to Professor Stuart, "decides against the righteousness of slavery" even as a "theory." Accordingly, Christians were required, *without respect of persons*, to do each other justice—to maintain equality as common ground for all to stand upon—to cherish and express in all their intercourse that tender love and disinterested charity which one *brother* naturally feels for another. These were the "ad interim precepts."[\[88\]](#) which cannot fail, if obeyed, to cut up slavery, "root and branch," at once and forever.

[Footnote [88](#): Letter to Dr. Fisk, p. 7.]

Professor Stuart comforts us with the assurance that "*Christianity will ultimately certainly destroy slavery.*" Of this we have not the feeblest doubt. But how could *he* admit a persuasion and utter a prediction so much at war with the doctrine he maintains, that "*slavery may exist without VIOLATING THE CHRISTIAN FAITH OR THE CHURCH?*"[\[89\]](#) What, Christianity bent on the destruction of an ancient and cherished institution which hurts neither her character nor condition?[\[90\]](#) Why not correct its abuses and purify its spirit; and shedding upon it her own beauty, preserve it, as a living trophy of her reformatory power? Whence the discovery that, in her onward progress, she would trample down and destroy what was no way hurtful to her? This is to be *aggressive* with a witness. Far be it from the Judge of all the earth to whelm the innocent and guilty in the same destruction! In aid of Professor Stuart, in the rude and scarcely covert attack which he makes upon himself, we maintain that Christianity will certainly destroy slavery on account of its inherent wickedness—its malignant temper—its deadly

effects—its constitutional, insolent, and unmitigable opposition to the authority of God and the welfare of man.

[Footnote [89](#): Letter to Dr. Fisk, p. 7.]

[Footnote [90](#): Professor Stuart applies here the words, *salva fide et salva ecclesia*.]

"Christianity will *ultimately* destroy slavery." "ULTIMATELY!" What meaneth that portentous word? To what limit of remotest time, concealed in the darkness of futurity, may it look? Tell us, O watchman, on the hill of Andover. Almost nineteen centuries have rolled over this world of wrong and outrage—and yet we tremble in the presence of a form of slavery whose breath is poison, whose fang is death! If any one of the incidents of slavery should fall, but for a single day, upon the head of the prophet, who dipped his pen in such cold blood, to write that word "ultimately," how, under the sufferings of the first tedious hour, would he break out in the lamentable cry, "How *long*, O Lord, HOW LONG!" In the agony of beholding a wife or daughter upon the table of the auctioneer, while every bid fell upon his heart like the groan of despair, small comfort would he find in the dull assurance of some heartless prophet, quite at "ease in Zion," that "ULTIMATELY *Christianity would destroy slavery*." As the hammer falls, and the beloved of his soul, all helpless and most wretched, is borne away to the haunts of *legalized* debauchery, his hearts turns to stone, while the cry dies upon his lips, "*How LONG, O Lord, HOW LONG!*"

"*Ultimately!*" In *what circumstances* does Professor Stuart assure himself that Christianity will destroy slavery? Are we, as American citizens, under the sceptre of a Nero? When, as integral parts of this republic—as living members of this community, did we forfeit the prerogatives of *freemen*? Have we not the right to speak and act as wielding the powers which the privileges of self-government has put in our possession? And without asking leave of priest or statesman of the North or the South, may we not make the most of the freedom which we enjoy under the guaranty of the ordinances of Heaven and the Constitution of our country! Can we expect to see Christianity on higher vantage-ground than in this country she stands upon? In the midst of a republic based on the principle of the equality of

mankind, where every Christian, as vitally connected with the state, freely wields the highest political rights and enjoys the richest political privileges; where the unanimous demand of one-half of the members of the churches would be promptly met in the abolition of slavery, what "*ultimately*" must Christianity here wait for before she crushes the chattel principle beneath her heel? Her triumph over slavery is retarded by nothing but the corruption and defection so widely spread through the "sacramental host" beneath her banners! Let her voice be heard and her energies exerted, and the *ultimately* of the "dark spirit of slavery" would at once give place to the *immediately* of the Avenger of the Poor.

No. 12.

THE

ANTI-SLAVERY EXAMINER.

DISUNION.
ADDRESS OF THE AMERICAN ANTI-SLAVERY SOCIETY
AND
F. JACKSON'S LETTER ON THE PRO-SLAVERY
CHARACTER
OF THE CONSTITUTION

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ADDRESS OF THE EXECUTIVE COMMITTEE

**OF THE AMERICAN ANTI-SLAVERY
SOCIETY**

TO THE

Friends of Freedom and Emancipation in the U. States.

At the Tenth Anniversary of the American Anti-Slavery Society, held in the city of New-York, May 7th, 1844,—after grave deliberation, and a long and earnest discussion,—it was decided, by a vote of nearly three to one of the members present, that fidelity to the cause of human freedom, hatred of oppression, sympathy for those who are held in chains and slavery in this republic, and allegiance to God, require that the existing national compact should be instantly dissolved; that secession from the government is a religious and political duty; that the motto inscribed on the banner of Freedom should be, **NO UNION WITH SLAVEHOLDERS**; that it is impracticable for tyrants and the enemies of tyranny to coalesce and legislate together for the preservation of human rights, or the promotion of the interests of Liberty; and that revolutionary ground should be occupied by all those who abhor the thought of doing evil that good may come, and who do not mean to compromise the principles of Justice and Humanity.

A decision involving such momentous consequences, so well calculated to startle the public mind, so hostile to the established order of things, demands of us, as the official representatives of the American Society, a statement of the reasons which led to it. This is due not only to the Society, but also to the country and the world.

It is declared by the American people to be a self-evident truth, "that all men are created equal; that they are endowed **BY THEIR CREATOR** with certain inalienable rights; that among these are *life*, **LIBERTY**, and the pursuit of happiness." It is further maintained by them, that "all governments derive their just powers from the consent of the governed;" that "whenever any form of government becomes destructive of human rights, it is the right of the people to alter or to abolish it, and institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness." These doctrines the patriots of 1776 sealed with their blood.

They would not brook even the menace of oppression. They held that there should be no delay in resisting, at whatever cost or peril, the first encroachments of power on their liberties. Appealing to the great Ruler of the universe for the rectitude of their course, they pledged to each other "their lives, their fortunes and their sacred honor," to conquer or perish in their struggle to be free.

For the example which they set to all people subjected to a despotic sway, and the sacrifices which they made, their descendants cherish their memories with gratitude, reverence their virtues, honor their deeds, and glory in their triumphs.

It is not necessary, therefore, for us to prove that a state of slavery is incompatible with the dictates of reason and humanity; or that it is lawful to throw off a government which is at war with the sacred rights of mankind.

We regard this as indeed a solemn crisis, which requires of every man sobriety of thought, prophetic forecast, independent judgment, invincible determination, and a sound heart. A revolutionary step is one that should not be taken hastily, nor followed under the influence of impulsive imitation. To know what spirit they are of—whether they have counted the cost of the warfare—what are the principles they advocate—and how they are to achieve their object—is the first duty of revolutionists.

But, while circumspection and prudence are excellent qualities in every great emergency, they become the allies of tyranny whenever they restrain prompt, bold and decisive action against it.

We charge upon the present national compact, that it was formed at the expense of human liberty, by a profligate surrender of principle, and to this hour is cemented with human blood.

We charge upon the American Constitution, that it contains provisions, and enjoins duties, which make it unlawful for freemen to take the oath of allegiance to it, because they are expressly designed to favor a slaveholding oligarchy, and, consequently, to make one portion of the people a prey to another.

We charge upon the existing national government, that it is an insupportable despotism, wielded by a power which is superior to all legal and

constitutional restraints—equally indisposed and unable to protect the lives or liberties of the people—the prop and safeguard of American slavery.

These charges we proceed briefly to establish:

I. It is admitted by all men of intelligence,—or if it be denied in any quarter, the records of our national history settle the question beyond doubt,—that the American Union was effected by a guilty compromise between the free and slaveholding States; in other words, by immolating the colored population on the altar of slavery, by depriving the North of equal rights and privileges, and by incorporating the slave system into the government. In the expressive and pertinent language of scripture, it was "a covenant with death, and an agreement with hell"—null and void before God, from the first hour of its inception—the framers of which were recreant to duty, and the supporters of which are equally guilty.

It was pleaded at the time of the adoption, it is pleaded now, that, without such a compromise there could have been no union; that, without union, the colonies would have become an easy prey to the mother country; and, hence, that it was an act of necessity, deplorable indeed when viewed alone, but absolutely indispensable to the safety of the republic.

To this we reply: The plea is as profligate as the act was tyrannical. It is the jesuitical doctrine, that the end sanctifies the means. It is a confession of sin, but the denial of any guilt in its perpetration. It is at war with the government of God, and subversive of the foundations of morality. It is to make lies our refuge, and under falsehood to hide ourselves, so that we may escape the overflowing scourge. "Therefore, thus saith the Lord God, Judgment will I lay to the line, and righteousness to the plummet; and the bail shall sweep away the refuge of lies, and the waters shall overflow the hiding place." Moreover, "because ye trust in oppression and perverseness, and stay thereon; therefore this iniquity shall be to you as a breach ready to fall, swelling out in a high wall, whose breaking cometh suddenly at an instant. And he shall break it as the breaking of the potter's vessel that is broken in pieces; he shall not spare."

This plea is sufficiently broad to cover all the oppression and villany that the sun has witnessed in his circuit, since God said, "Let there be light." It assumes that to be practicable, which is impossible, namely, that there can

be freedom with slavery, union with injustice, and safety with blood guiltiness. A union of virtue with pollution is the triumph of licentiousness. A partnership between right and wrong, is wholly wrong. A compromise of the principles of Justice, is the deification of crime.

Better that the American Union had never been formed, than that it should have been obtained at such a frightful cost! If they were guilty who fashioned it, but who could not foresee all its frightful consequences, how much more guilty are they, who, in full view of all that has resulted from it, clamor for its perpetuity! If it was sinful at the commencement, to adopt it on the ground of escaping a greater evil, is it not equally sinful to swear to support it for the same reason, or until, in process of time, it be purged from its corruption?

The fact is, the compromise alluded to, instead of effecting a union, rendered it impracticable; unless by the term union we are to understand the absolute reign of the slaveholding power over the whole country, to the prostration of Northern rights. In the just use of words, the American Union is and always has been a sham—an imposture. It is an instrument of oppression unsurpassed in the criminal history of the world. How then can it be innocently sustained? It is not certain, it is not even probable, that if it had not been adopted, the mother country would have reconquered the colonies. The spirit that would have chosen danger in preference to crime,—to perish with justice rather than live with dishonor,—to dare and suffer whatever might betide, rather than sacrifice the rights of one human being,—could never have been subjugated by any mortal power. Surely it is paying a poor tribute to the valor and devotion of our revolutionary fathers in the cause of liberty, to say that, if they had sternly refused to sacrifice their principles, they would have fallen an easy prey to the despotic power of England.

II. The American Constitution is the exponent of the national compact. We affirm that it is an instrument which no man can innocently bind himself to support, because its anti-republican and anti-Christian requirements are explicit and peremptory; at least, so explicit that, in regard to all the clauses pertaining to slavery, they have been uniformly understood and enforced in the same way, by all the courts and by all the people; and so peremptory, that no individual interpretation or authority can set them aside with

impunity. It is not a ball of clay, to be moulded into any shape that party contrivance or caprice may choose it to assume. It is not a form of words, to be interpreted in any manner, or to any extent, or for the accomplishment of any purpose, that individuals in office under it may determine. *It means precisely what those who framed and adopted it meant—NOTHING MORE, NOTHING LESS, as a matter of bargain and compromise.* Even if it can be construed to mean something else, without violence to its language, such construction is not to be tolerated *against the wishes of either party.* No just or honest use of it can be made, in opposition to the plain intention of its framers, *except to declare the contract at an end, and to refuse to serve under it.*

To the argument, that the words "slaves" and "slavery" are not to be found in the Constitution, and therefore that it was never intended to give any protection or countenance to the slave system, it is sufficient to reply, that though no such words are contained in that instrument, other words were used, intelligently and specifically, TO MEET THE NECESSITIES OF SLAVERY; and that these were adopted *in good faith, to be observed until a constitutional change could be effected.* On this point, as to the design of certain provisions, no intelligent man can honestly entertain a doubt. If it be objected, that though these provisions were meant to cover slavery, yet, as they can fairly be interpreted to mean something exactly the reverse, it is allowable to give to them such an interpretation, *especially as the cause of freedom will thereby be promoted*—we reply, that this is to advocate fraud and violence toward one of the contracting parties, *whose co-operation was secured only by an express agreement and understanding between them both, in regard to the clauses alluded to;* and that such a construction, if enforced by pains and penalties, would unquestionably lead to a civil war, in which the aggrieved party would justly claim to have been betrayed, and robbed of their constitutional rights.

Again, if it be said, that those clauses, being immoral, are null and void—we reply, it is true they are not to be observed; but it is also true that they are portions of an instrument, the support of which, AS A WHOLE, is required by oath or affirmation; and, therefore, *because they are immoral,* and BECAUSE OF THIS OBLIGATION TO ENFORCE IMMORALITY, no one can innocently swear to support the Constitution.

Again, if it be objected, that the Constitution was formed by the people of the United States, in order to establish justice, to promote the general welfare, and secure the blessings of liberty to themselves and their posterity: and therefore, it is to be so construed as to harmonize with these objects; we reply, again, that its language is *not to be interpreted in a sense which neither of the contracting parties understood*, and which would frustrate every design of their alliance—to wit, *union at the expense of the colored population of the country*. Moreover, nothing is more certain than that the preamble alluded to never included, in the minds of those who framed it, *those who were then pining in bondage*—for, in that case, a general emancipation of the slaves would have instantly been proclaimed throughout the United States. The words, "secure the blessings of liberty to ourselves and our posterity," assuredly meant only the white population. "To promote the general welfare," referred to their own welfare exclusively. "To establish justice," was understood to be for their sole benefit as slaveholders, and the guilty abettors of slavery. This is demonstrated by other parts of the same instrument, and by their own practice under it.

We would not detract aught from what is justly their due; but it is as reprehensible to give them credit for *what they did not possess*, as it is to rob them of what is theirs. It is absurd, it is false, it is an insult to the common sense of mankind, to pretend that the Constitution was intended to embrace the entire population of the country under its sheltering wings; or that the parties to it were actuated by a sense of justice and the spirit of impartial liberty; or that it needs no alteration, but only a new interpretation, to make it harmonize with the object aimed at by its adoption. As truly might it be argued, that because it is asserted in the Declaration of Independence, that all men are created equal, and endowed with an inalienable right to liberty, therefore none of its signers were slaveholders, and since its adoption, slavery has been banished from the American soil! The truth is, our fathers were intent on securing liberty *to themselves*, without being very scrupulous as to the means they used to accomplish their purpose. They were not actuated by the spirit of universal philanthropy; and though *in words* they recognized occasionally the brotherhood of the human race, *in practice* they continually denied it. They did not blush to enslave a portion of their fellow-men, and to buy and sell them as cattle in the market, while they were fighting against the oppression of the mother country, and

boasting of their regard for the rights of man. Why, then, concede to them virtues which they did not possess. *Why cling to the falsehood, that they were not respecters of persons in the formation of the government?*

Alas! that they had no more fear of God, no more regard for man, in their hearts! "The iniquity of the house of Israel and Judah [the North and South] is exceeding great, and the land is full of blood, and the city full of perverseness; for they say, the Lord hath forsaken the earth, and the Lord seeth not."

We proceed to a critical examination of the American Constitution, in its relations to slavery.

In ARTICLE 1, Section 9, it is declared—"the migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress, prior to the year one thousand eight hundred and eight; but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person."

In this Section, it will be perceived, the phraseology is so guarded as not to imply, *ex necessitate*, any criminal intent or inhuman arrangement; and yet no one has ever had the hardihood or folly to deny, that it was clearly understood by the contracting parties, to mean that there should be no interference with the African slave trade, on the part of the general government, until the year 1808. For twenty years after the adoption of the Constitution, the citizens of the United States were to be encouraged and protected in the prosecution of that infernal traffic—in sacking and burning the hamlets of Africa—in slaughtering multitudes of the inoffensive natives on the soil, kidnapping and enslaving a still greater proportion, crowding them to suffocation in the holds of the slave ships, populating the Atlantic with their dead bodies, and subjecting the wretched survivors to all the horrors of unmitigated bondage! This awful covenant was strictly fulfilled; and though, since its termination, Congress has declared the foreign slave traffic to be piracy, yet all Christendom knows that the American flag, instead of being the terror of the African slavers, has given them the most ample protection.

The manner in which the 9th Section was agreed to, by the national convention that formed the constitution, is thus frankly avowed by the Hon.

Luther Martin,[\[91\]](#) who was a prominent member of that body:

"The Eastern States, notwithstanding their aversion of slavery, (!) *were very willing to indulge the Southern States* at least with a temporary liberty to prosecute the slave trade, provided the Southern States would, in the return, *gratify* them by laying no restriction on navigation acts; and, after a very little time, the committee, by a great majority, agreed on a report, *by which the general government was to be prohibited from preventing the importation of slaves* for a limited time; and the restrictive clause relative to navigation acts was to be omitted."

[Footnote [91](#): Speech before the Legislature of Maryland in 1787.]

Behold the iniquity of this agreement! How sordid were the motives which led to it! what a profligate disregard of justice and humanity, on the part of those who had solemnly declared the inalienable right of all men to be free and equal, to be a self-evident truth!

It is due to the national convention to say, that this section was not adopted "without considerable opposition." Alluding to it, Mr. Martin observes—

"It was said we had just assumed a place among the independent nations in consequence of our opposition to the attempts of Great Britain to *enslave us*; that this opposition was grounded upon the preservation of those rights to which God and nature has entitled us, not in *particular*, but in *common with all the rest of mankind*; that we had appealed to the Supreme Being for his assistance, as the God of freedom, who could not but approve our efforts to preserve the rights which he had thus imparted to his creatures; that now, when we had scarcely risen from our knees, from supplicating his mercy and protection in forming our government over a free people, a government formed pretendedly on the principles of liberty, and for its preservation,—in that government to have a provision, not only of putting out of its power to restrain and prevent the slave trade, even encouraging that most infamous traffic, by giving the States the power and influence in the Union in proportion as they cruelly and wantonly sported with the rights of their fellow-creatures, ought to be considered as a solemn mockery of, and insult

to, that God whose protection we had thus implored, and could not fail to hold us up in detestation, and render us contemptible to every true friend of liberty in the world. It was said that national crimes can only be, and frequently are, punished in this world by *national punishments*, and that the continuance of the slave trade, and thus giving it a national character, sanction, and encouragement, ought to be considered as justly exposing us to the displeasure and vengeance of him who is equally the Lord of all, and who views with equal eye the poor *African slave* and his *American master*! [\[92\]](#)

[Footnote [92](#): How terribly and justly has this guilty nation been scourged, since these words were spoken, on account of slavery and the slave trade! Secret Proceedings, p. 64.]

"It was urged that, by this system, we were giving the general government full and absolute power to regulate commerce, under which general power it would have a right to restrain, or totally prohibit, the slave trade: it must, therefore, appear to the world absurd and disgraceful to the last degree that we should except from the exercise of that power the only branch of commerce which is unjustifiable in its nature, and contrary to the rights of mankind. That, on the contrary, we ought to prohibit expressly, in our Constitution, the further importation of slaves, and to authorize the general government, from time to time, to make such regulations as should be thought most advantageous for the gradual abolition of slavery, and the emancipation of the slaves already in the States. That slavery is inconsistent with the genius of republicanism, and has a tendency to destroy those principles on which it is supported, as it lessens the sense of the equal rights of mankind, and habituates to tyranny and oppression. It was further urged that, by this system of government, every State is to be protected both from foreign invasion and from domestic insurrections; and, from this consideration, it was of the utmost importance it should have the power to restrain the importation of slaves, since in proportion as the number of slaves increased in any State, in the same proportion is the State weakened and exposed to foreign invasion and domestic insurrection: and by so much less will it be able to protect itself against either, and therefore by so much, want aid from, and be a burden to, the Union.

"It was further said, that, in this system, as we were giving the general government power, under the idea of national character, or national interest, to regulate even our weights and measures, and have prohibited all possibility of emitting paper money, and passing insolvent laws, &c., it must appear still more extraordinary that we prohibited the government from interfering with the slave trade, than which nothing could more effect our national honor and interest.

"These reasons influenced me, both in the committee and in the convention, most decidedly to oppose and vote against the clause, as it now makes part of the system."[93](#)

[Footnote [93](#): Secret Proceedings, p. 64.]

Happy had it been for this nation, had these solemn considerations been heeded by the framers of the Constitution! But for the sake of securing some local advantages, they choose to do evil that good may come, and to make the end sanctify the means. They were willing to enslave others, that they might secure their own freedom. They did this deed deliberately, with their eyes open, with all the facts and consequences arising therefrom before them, in violation of all their heaven-attested declarations, and in atheistical distrust of the overruling power of God. "The Eastern States were very willing to *indulge* the Southern States" in the unrestricted prosecution of their piratical traffic, provided in return they could be *gratified* by no restriction being laid on navigation acts!!—Had there been no other provision of the Constitution justly liable to objection, this one alone rendered the support of that instrument incompatible with the duties which men owe to their Creator, and to each other. It was the poisonous infusion in the cup, which, though constituting but a very slight portion of its contents, perilled the life of every one who partook of it.

If it be asked to what purpose are these animadversions, since the clause alluded to has long since expired by its own limitation—we answer, that, if at any time the foreign slave trade could be *constitutionally* prosecuted, it may yet be renewed, under the Constitution, at the pleasure of Congress, whose prohibitory statute is liable to be reversed at any moment, in the frenzy of Southern opposition to emancipation. It is ignorantly supposed

that the bargain was, that the traffic *should cease* in 1808; but the only thing secured by it was, the *right* of Congress (not any obligation) to prohibit it at that period. If, therefore, Congress had not chosen to exercise that right, *the traffic might have been prolonged indefinitely, under the Constitution*. The right to destroy any particular branch of commerce, implies the right to re-establish it. True, there is no probability that the African slave trade will ever again be legalized by the national government; but no credit is due the framers of the Constitution on this ground; for, while they threw around it all the sanction and protection of the national character and power for twenty years, *they set no bounds to its continuance by any positive constitutional prohibition*.

Again, the adoption of such a clause, and the faithful execution of it, prove what was meant by the words of the preamble—"to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity"—namely, that the parties to the Constitution regarded only their own rights and interests, and never intended that its language should be so interpreted as to interfere with slavery, or to make it unlawful for one portion of the people to enslave another, *without an express alteration in that instrument, in the manner therein set forth*. While, therefore, the Constitution remains as it was originally adopted, they who swear to support it are bound to comply with all its provisions, as a matter of allegiance. For it avails nothing to say, that some of those provisions are at war with the law of God and the rights of man, and therefore are not obligatory. Whatever may be their character, they are *constitutionally* obligatory; and whoever feels that he cannot execute them, or swear to execute them, without committing sin, has no other choice left than to withdraw from the government, or to violate his conscience by taking on his lips an impious promise. The object of the Constitution is not to define *what is the law of God*, but WHAT IS THE WILL OF THE PEOPLE—which will is not to be frustrated by an ingenious moral interpretation, by those whom they have elected to serve them.

ARTICLE 1, Sect. 2, provides—"Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by

adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three-fifths of all other persons.*"

Here, as in the clause we have already examined, veiled beneath a form of words as deceitful as it is unmeaning in a truly democratic government, is a provision for the safety, perpetuity and augmentation of the slaveholding power—a provision scarcely less atrocious than that which related to the African slave trade, and almost as afflictive in its operation—a provision still in force, with no possibility of its alteration, so long as a majority of the slave States choose to maintain their slave system—a provision which, at the present time, enables the South to have twenty-five additional representatives in Congress on the score of *property*, while the North is not allowed to have one—a provision which concedes to the oppressed three-fifths of the political power which is granted to all others, and then puts this power into the hands of their oppressors, to be wielded by them for the more perfect security of their tyrannous authority, and the complete subjugation of the non-slaveholding States.

Referring to this atrocious bargain, ALEXANDER HAMILTON remarked in the New York Convention—

"The first thing objected to, is that clause which allows a representation for three-fifths of the negroes. Much has been said of the impropriety of representing men who have no will of their own: whether this is *reasoning* or *declamation*, (!!) I will not presume to say. It is the *unfortunate* situation of the Southern States to have a great part of their population, as well as *property*, in blacks. The regulation complained of was one result of *the spirit of accommodation* which governed the Convention; and without this *indulgence*, NO UNION COULD POSSIBLY HAVE BEEN FORMED. But, sir, considering some *peculiar advantages* which we derive from them it is entirely JUST that they should be *gratified*—The Southern States possess certain staples,—tobacco, rice, indigo, &c.—which must be *capital* objects in treaties of commerce with foreign nations; and the advantage which they necessarily procure in these treaties will be felt throughout the United States."

If such was the patriotism, such the love of liberty, such the morality of ALEXANDER HAMILTON, what can be said of the character of those who were far less conspicuous than himself in securing American independence, and in framing the American Constitution?

Listen, now, to the opinions of JOHN QUINCY ADAMS, respecting the constitutional clause now under consideration:—

"In outward show, it is a representation of persons in bondage; in fact, it is a representation of their masters,—the oppressor representing the oppressed.'—'Is it in the compass of human imagination to devise a more perfect exemplification of the art of committing the lamb to the tender custody of the wolf?'—'The representative is thus constituted, not the friend, agent and trustee of the person whom he represents, but the most inveterate of his foes.'—'It was *one* of the curses from that Pandora's box, adjusted at the time, as usual, by a *compromise*, the whole advantage of which inured to the benefit of the South, and to aggravate the burdens of the North.'—'If there be a parallel to it in human history, it can only be that of the Roman Emperors, who, from the days when Julius Caesar substituted a military despotism in the place of a republic, among the offices which they always concentrated upon themselves, was that of tribune of the people. A Roman Emperor tribune of the people, is an exact parallel to that feature in the Constitution of the United States which makes the master the representative of his slave.'—'The Constitution of the United States expressly prescribes that no title of nobility shall be granted by the United States. The spirit of this interdict is not a rooted antipathy to the grant of mere powerless empty *titles*, but to titles of *nobility*; to the institution of privileged orders of men. But what order of men under the most absolute of monarchies, or the most aristocratic of republics, was ever invested with such an odious and unjust privilege as that of the separate and exclusive representation of less than half a million owners of slaves, in the Hall of this House, in the Chair of the Senate, and in the Presidential mansion?'—'This investment of power in the owners of one species of property concentrated in the highest authorities of the nation, and disseminated through thirteen of the twenty-six States of the Union, constitutes a privileged order of men in the community, more adverse to the rights of all, and more pernicious

to the interests of the whole, than any order of nobility ever known. To call government thus constituted a democracy, is to insult the understanding of mankind. To call it an aristocracy, is to do injustice to that form of government. Aristocracy is the government of *the best*. Its standard qualification for accession to power is *merit*, ascertained by popular election recurring at short intervals of time. If even that government is prone to degenerate into tyranny, what must be the character of that form of polity in which the standard qualification for access to power is wealth in the possession of slaves? It is doubly tainted with the infection of riches and of slavery. *There is no name in the language of national jurisprudence that can define it*—no model in the records of ancient history, or in the political theories of Aristotle, with which it can be likened. It was introduced into the Constitution of the United States by an equivocation—a representation of property under the name of persons. Little did the members of the Convention from the free States foresee what a sacrifice to Moloch was hidden under the mask of this concession.'—'The House of Representatives of the United States consists of 223 members—all, by the *letter* of the Constitution, representatives only of *persons*, as 135 of them really are; but the other 88, equally representing the *persons* of their constituents, by whom they are elected, also represent, under the name of *other persons*, upwards of two and a half millions of *slaves*, held as the *property* of less than half a million of the white constituents, and valued at twelve hundred millions of dollars. Each of these 88 members represents in fact the whole of that mass of associated wealth, and the persons and exclusive interests of its owners; all thus knit together, like the members of a moneyed corporation, with a capital not of thirty-five or forty or fifty, but of twelve hundred millions of dollars, exhibiting the most extraordinary exemplification of the anti-republican tendencies of associated wealth that the world ever saw,'—'Here is one class of men, consisting of not more than one fortieth part of the whole people, not more than one-thirtieth part of the free population, exclusively devoted to their personal interests identified with their own as slaveholders of the same associated wealth, and wielding by their votes, upon every question of government or of public policy, two-fifths of the whole power of the House. In the Senate of the Union, the proportion of the slaveholding

power is yet greater. By the influence of slavery, in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the 52 members of the federal Senate, 26 are owners of slaves, and as effectively representatives of that interest as the 88 members elected by them to the House.'—'By this process it is that all political power in the States is absorbed and engrossed by the owners of *slaves*, and the overruling policy of the States is shaped to strengthen and consolidate their domination. The legislative, executive, and judicial authorities are all in their hands—the preservation, propagation, and perpetuation of the black code of slavery—every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of *wrong*.'—'Its reciprocal operation upon the government of the nation is, to establish an artificial majority in the slave representation over that of the free people, in the American Congress, and thereby to make the PRESERVATION, PROPAGATION, AND PERPETUATION OF SLAVERY THE VITAL AND ANIMATING SPIRIT OF THE NATIONAL GOVERNMENT.'—'The result is seen in the fact that, at this day, the President of the United States, the President of the Senate, the Speaker of the House of Representatives, and five out of nine of the Judges of the Supreme Judicial Courts of the United States, are not only citizens of slaveholding States, but individual slaveholders themselves. So are, and constantly have been, with scarcely an exception, all the members of both Houses of Congress from the slaveholding States; and so are, in immensely disproportionate numbers, the commanding officers of the army and navy; the officers of the customs; the registers and receivers of the land offices, and the post-masters throughout the slaveholding States.—The Biennial Register indicates the birth-place of all the officers employed in the government of the Union. If it were required to designate the owners of this species of property among them, it would be little more than a catalogue of slaveholders.'"

It is confessed by Mr. Adams, alluding to the national convention that framed the Constitution, that "the delegation from the free States, in their

extreme anxiety to conciliate the ascendancy of the Southern slaveholder, did listen to a *compromise between right and wrong—between freedom and slavery*; of the ultimate fruits of which they had no conception, but which already even now is urging the Union to its inevitable ruin and dissolution, by a civil, servile, foreign, and Indian war, all combined in one; a war, the essential issue of which will be between freedom and slavery, and in which the unhallowed standard of slavery will be the desecrated banner of the North American Union—that banner, first unfurled to the breeze, inscribed with the self-evident truths of the Declaration of Independence."

Hence, to swear to support the Constitution of the United States, *as it is*, is to make "a compromise between right and wrong," and to wage war against human liberty. It is to recognize and honor as republican legislators, *incorrigible men-stealers*, MERCILESS TYRANTS, BLOOD THIRSTY ASSASSINS, who legislate with deadly weapons about their persons, such as pistols, daggers, and bowie-knives, with which they threaten to murder any Northern senator or representative who shall dare to stain their *honor*, or interfere with their *rights*! They constitute a banditti more fierce and cruel than any whose atrocities are recorded on the pages of history or romance. To mix with them on terms of social or religious fellowship, is to indicate a low state of virtue; but to think of administering a free government by their co-operation, is nothing short of insanity.

Article IV., Section 2, declares,—"No person held to service or labor in one State, *under the laws thereof*, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due."

Here is a third clause, which, like the other two, makes no mention of slavery or slaves, in express terms; and yet, like them, was intelligently framed and mutually understood by the parties to the ratification, and intended both to protect the slave system and to restore runaway slaves. It alone makes slavery a national institution, a national crime, and all the people who are not enslaved, the body-guard over those whose liberties have been cloven down. This agreement, too, has been fulfilled to the letter by the North.

Under the Mosaic dispensation it was imperatively commanded,—“Thou shalt not deliver unto his master the servant which is escaped from his master unto thee: he shall dwell with thee, even among you, in that place which he shall choose in one of thy gates, where it liketh him best: thou shalt not oppress him.” The warning which the prophet Isaiah gave to oppressing Moab was of a similar kind: “Take counsel, execute judgment; make thy shadow as the night in the midst of the noon-day; hide the outcasts; bewray not him that wandereth. Let mine outcasts dwell with thee, Moab; be thou a covert to them from the face of the spoiler.” The prophet Obadiah brings the following charge against treacherous Edom, which is precisely applicable to this guilty nation:—“For thy violence against thy brother Jacob, shame shall come over thee, and thou shalt be cut off for ever. In the day that thou stoodest on the other side, in the day that the strangers carried away captive his forces, and foreigners entered into his gates, and cast lots upon Jerusalem, *even thou wast as one of them*. But thou shouldst not have looked on the day of thy brother, in the day that he became a stranger; neither shouldst thou have rejoiced over the children of Judah, in the day of their destruction; neither shouldst thou have spoken proudly in the day of distress; neither shouldst thou have *stood in the cross-way, to cut off those of his that did escape*; neither shouldst thou have *delivered up those of his that did remain*, in the day of distress.”

How exactly descriptive of this boasted republic is the impeachment of Edom by the same prophet! “The pride of thy heart hath deceived thee, thou whose habitation is high; that sayeth in thy heart, Who shall bring me down to the ground? Though thou exalt thyself as the eagle, and though thou set thy nest among the stars, thence will I bring thee down, saith the Lord.” The emblem of American pride and power is the *eagle*, and on her banner she has mingled *stars* with its *stripes*. Her vanity, her treachery, her oppression, her self-exaltation, and her defiance of the Almighty, far surpass the madness and wickedness of Edom. What shall be her punishment? Truly, it may be affirmed of the American people, (who live not under the Levitical but Christian code, and whose guilt, therefore, is the more awful, and their condemnation the greater,) in the language of another prophet—“They all lie in wait for blood; they hunt every man his brother with a net. That they may do evil with both hands earnestly, the prince asketh, and the judge asketh for a reward; and the great man, he uttereth his mischievous desire:

so they wrap it up." Likewise of the colored inhabitants of this land it may be said, —"This is a people robbed and spoiled; they are all of them snared in holes, and they are hid in prison-houses; they are for a prey, and none delivereth; for a spoil, and none saith, Restore."

By this stipulation, the Northern States are made the hunting ground of slave-catchers, who may pursue their victims with blood-hounds, and capture them with impunity wherever they can lay their robber hands upon them. At least twelve or fifteen thousand runaway slaves are now in Canada, exiled from their native land, because they could not find, throughout its vast extent, a single road on which they could dwell in safety, *in consequence of this provision of the Constitution?* How is it possible, then, for the advocates of liberty to support a government which gives over to destruction one-sixth part of the whole population?

It is denied by some at the present day, that the clause which has been cited, was intended to apply to runaway slaves. This indicates either ignorance, or folly, or something worse. JAMES MADISON as one of the framers of the Constitution, is of some authority on this point. Alluding to that instrument, in the Virginia convention, he said:—

"Another clause *secures us that property which we now possess.* At present, if any slave elopes to those States where slaves are free, *he becomes emancipated by their laws;* for the laws of the States are *uncharitable(!)* to one another in this respect; but in this constitution, 'No person held to service or labor in one State, under the laws thereof, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered upon claim of the party to whom such service or labor away be due. THIS CLAUSE WAS EXPRESSLY INSERTED TO ENABLE THE OWNERS OF SLAVES TO RECLAIM THEM. *This is a better security than any that now exists.* No power is given to the general government to interfere with respect to the property in slaves now held by the States."

In the same convention, alluding to the same clause, GOV. RANDOLPH said:—

"Every one knows that slaves are held to service or labor. And, when authority is given to owners of slaves *to vindicate their property*, can it be supposed they can be deprived of it? If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, can it be seriously thought that, after taking him and bringing him home, he could be made free?"

It is objected, that slaves are held as property, and therefore, as the clause refers to persons, it cannot mean slaves. But this is criticism against fact. Slaves are recognized not merely as property, but also as persons—as having a mixed character—as combining the human with the brutal. This is paradoxical, we admit; but slavery is a paradox—the American Constitution is a paradox—the American Union is a paradox—the American Government is a paradox; and if any one of these is to be repudiated on that ground, they all are. That it is the duty of the friends of freedom to deny the binding authority of them all, and to secede from them all, we distinctly affirm. After the independence of this country had been achieved, the voice of God exhorted the people, saying, "Execute true judgment, and show mercy and compassion every man to his brother: and oppress not the widow, nor the fatherless, the stranger, nor the poor; and let none of you imagine evil against his brother in your heart. But they refused to hearken, and pulled away the shoulder, and stopped their ears, that they should not hear; yea, they made their hearts as an adamant stone." "Shall I not visit for these things? saith the Lord. Shall not my soul be avenged on such a nation as this?"

Whatever doubt may have rested on any honest mind, respecting the meaning of the clause in relation to persons held to service or labor, must have been removed by the unanimous decision of the Supreme Court of the United States, in the case of *Prigg versus The State of Pennsylvania*. By that decision, any Southern slave-catcher is empowered to seize and convey to the South, without hindrance or molestation on the part of the State, and without any legal process duly obtained and served, any person or persons, irrespective of caste or complexion, whom he may choose to claim as runaway slaves; and if, when thus surprised and attacked, or on their arrival South, they cannot prove by legal witnesses, that they are freemen, their doom is sealed! Hence the free colored population of the North are specially liable to become the victims of this terrible power, and all the

other inhabitants are at the mercy of prowling kidnappers, because there are multitudes of white as well as black slaves on Southern plantations, and slavery is no longer fastidious with regard to the color of its prey.

As soon as that appalling decision of the Supreme Court was enunciated, in the name of the Constitution, the people of the North should have risen *en masse*, if for no other cause, and declared the Union at an end; and they would have done so, if they had not lost their manhood, and their reverence for justice and liberty.

In the 4th Sect. of Art. IV., the United States guarantee to protect every State in the Union "*against domestic violence*." By the 8th Section of Article 1., congress is empowered "to provide for calling forth the militia to execute the laws of the Union, *suppress insurrections*, and repel invasions." These provisions, however strictly they may apply to cases of disturbance among the white population, were adopted with special reference to the slave population, for the purpose of keeping them in their chains by the combined military force of the country; and were these repealed, and the South left to manage her slaves as best she could, a servile insurrection would ere long be the consequence, as general as it would unquestionably be successful. Says Mr. Madison, respecting these clauses:--

"On application of the legislature or executive, as the case may be, the militia of the other States are to be called to suppress domestic insurrections. Does this bar the States from calling forth their own militia? No; but it gives them a *supplementary* security to suppress insurrections and domestic violence."

The answer to Patrick Henry's objection, as urged against the constitution in the Virginia convention, that there was no power left to the States to quell an insurrection of slaves, as it was wholly vested in congress, George Nicholas asked:—

"Have they it now? If they have, does the constitution take it away? If it does, it must be in one of those clauses which have been mentioned by the worthy member. The first part gives the general government power to call them out when necessary. Does this take it away from the States? No! but *it gives an additional security*; for, beside the power in

the State government to use their own militia, it will be *the duty of the general government* to aid them **WITH THE STRENGTH OF THE UNION**, when called for."

This solemn guaranty of security to the slave system, caps the climax of national barbarity, and stains with human blood the garments of all the people. In consequence of it, that system has multiplied its victims from five hundred thousand to nearly three millions—a vast amount of territory has been purchased, in order to give it extension and perpetuity—several new slave States have been admitted into the Union—the slave trade has been made one of the great branches of American commerce—the slave population, though over-worked, starved, lacerated, branded, maimed, and subjected to every form of deprivation and every species of torture, have been over awed and crushed,—or, whenever they have attempted to gain their liberty by revolt, they have been shot down and quelled by the strong arm of the national government; as, for example, in the case of Nat Turner's insurrection in Virginia, when the naval and military forces of the government were called into active service. Cuban bloodhounds have been purchased with the money of the people, and imported and used to hunt slave fugitives among the everglades of Florida. A merciless warfare has been waged for the extermination or expulsion of the Florida Indians, because they gave succor to those poor hunted fugitives—a warfare which has cost the nation several thousand lives, and forty millions of dollars. But the catalogue of enormities is too long to be recapitulated in the present address.

We have thus demonstrated that the compact between the North and the South embraces every variety of wrong and outrage,—is at war with God and man, cannot be innocently supported, and deserves to be immediately annulled. In behalf of the Society which we represent, we call upon all our fellow-citizens, who believe it is right to obey God rather than man, to declare themselves peaceful revolutionists, and to unite with us under the stainless banner of Liberty, having for its motto—"EQUAL RIGHTS FOR ALL—**NO UNION WITH SLAVEHOLDERS!**"

It is pleaded that the Constitution provides for its own amendment; and we ought to use the elective franchise to effect this object. True, there is such a proviso; but, until the amendment be made, that instrument is binding as it

stands. Is it not to violate every moral instinct, and to sacrifice principle to expediency, to argue that we may swear to steal, oppress and murder by wholesale, because it may be necessary to do so only for the time being, and because there is some remote probability that the instrument which requires that we should be robbers, oppressors and murderers, may at some future day be amended in these particulars? Let us not palter with our consciences in this manner—let us not deny that the compact was conceived in sin and brought forth in iniquity—let us not be so dishonest, even to promote a good object, as to interpret the Constitution in a manner utterly at variance with the intentions and arrangements of the contracting parties; but, confessing the guilt of the nation, acknowledging the dreadful specifications in the bond, washing our hands in the waters of repentance from all further participation in this criminal alliance, and resolving that we will sustain none other than a free and righteous government, let us glory in the name of revolutionists, unfurl the banner of disunion, and consecrate our talents and means to the overthrow of all that is tyrannical in the land,—to the establishment of all that is free, just, true and holy,—to the triumph of universal love and peace.

If, in utter disregard of the historical facts which have been cited, it is still asserted, that the Constitution needs no amendment to make it a free instrument, adapted to all the exigencies of a free people, and was never intended to give any strength or countenance to the slave system—the indignant spirit of insulted Liberty replies:—"What though the assertion be true? Of what avail is a mere piece of parchment? In itself, though it be written all over with words of truth and freedom—though its provisions be as impartial and just as words can express, or the imagination paint—though it be as pure as the gospel, and breathe only the spirit of Heaven—it is powerless; it has no executive vitality; it is a lifeless corpse, even though beautiful in death. I am famishing for lack of bread! How is my appetite relieved by holding up to my gaze a painted loaf? I am manacled, wounded, bleeding dying! What consolation is it to know, that they who are seeking to destroy my life, profess in words to be my friends?" If the liberties of the people have been betrayed—if judgment is turned away backward, and justice standeth afar off, and truth has fallen in the streets, and equality cannot enter—if the princes of the land are roaring lions, the judges evening wolves, the people light and treacherous persons, the priests covered with

pollution—if we are living under a frightful despotism, which scoffs at all constitutional restraints, and wields the resources of the nation to promote its own bloody purposes—tell us not that the forms of freedom are still left to us! Would such tameness and submission have freighted the May-Flower for Plymouth Rock? Would it have resisted the Stamp Act, the Tea Tax, or any of those entering wedges of tyranny with which the British government sought to rive the liberties of America? The wheel of the Revolution would have rusted on its axle, if a spirit so weak had been the only power to give it motion. Did our fathers say, when their rights and liberties were infringed—"*Why, what is done cannot be undone*. That is the first thought." No, it was the last thing they thought of: or, rather, it never entered their minds at all. They sprang to the conclusion at once—"*What is done SHALL be undone*. That is our FIRST and ONLY thought."

"Is water running in our veins? Do we remember still
Old Plymouth Rock, and Lexington, and famous Bunker Hill?
The debt we owe our fathers' graves? and to the yet unborn,
Whose heritage ourselves must make a thing of pride or scorn?"

"Gray Plymouth Rock hath yet a tongue, and Concord is not dumb;
And voices from our fathers' graves and from the future come:
They call on us to stand our ground—they charge us still to be
Not only free from chains ourselves, but foremost to make free!"

It is of little consequence who is on the throne, if there be behind it a power mightier than the throne. It matters not what is the theory of the government, if the practice of the government be unjust and tyrannical. We rise in rebellion against a despotism incomparably more dreadful than that which induced the colonists to take up arms against the mother country; not on account of a three-penny tax on tea, but because fetters of living iron are fastened on the limbs of millions of our countrymen, and our most sacred rights are trampled in the dust. As citizens of the State, we appeal to the State in vain for protection and redress. As citizens of the United States, we are treated as outlaws in one half of the country, and the national government consents to our destruction. We are denied the right of locomotion, freedom of speech, the right of petition, the liberty of the press, the right peaceably to assemble together to protest against oppression and plead for liberty—at least in thirteen States of the Union. If we venture, as

avowed and unflinching abolitionists, to travel South of Mason and Dixon's line, we do so at the peril of our lives. If we would escape torture and death, on visiting any of the slave States, we must stifle our conscientious convictions, bear no testimony against cruelty and tyranny, suppress the struggling emotions of humanity, divest ourselves of all letters and papers of an anti-slavery character, and do homage to the slaveholding power—or run the risk of a cruel martyrdom! These are appalling and undeniable facts.

Three millions of the American people are crushed under the American Union! They are held as slaves—trafficked as merchandise—registered as goods and chattels! The government gives them no protection—the government is their enemy—the government keeps them in chains! There they lie bleeding—we are prostrate by their side—in their sorrows and sufferings we participate—their stripes are inflicted on our bodies, their shackles are fastened on our limbs, their cause is ours! The Union which grinds them to the dust rests upon us, and with them we will struggle to overthrow it! The Constitution, which subjects them to hopeless bondage, is one that we cannot swear to support! Our motto is, "**NO UNION WITH SLAVEHOLDERS**," either religious or political. They are the fiercest enemies of mankind, and the bitterest foes of God! We separate from them not in anger, not in malice, not for a selfish purpose, not to do them an injury, not to cease warning, exhorting, reproving them for their crimes, not to leave the perishing bondman to his fate—O no! But to clear our skirts of innocent blood—to give the oppressor no countenance—to signify our abhorrence of injustice and cruelty—to testify against an ungodly compact—to cease striking hands with thieves and consenting with adulterers—to make no compromise with tyranny—to walk worthily of our high profession—to increase our moral power over the nation—to obey God and vindicate the gospel of his Son—hasten the downfall of slavery in America, and throughout the world!

We are not acting under a blind impulse. We have carefully counted the cost of this warfare, and are prepared to meet its consequences. It will subject us to reproach, persecution, infamy—it will prove a fiery ordeal to all who shall pass through it—it may cost us our lives. We shall be ridiculed as fools, accused as visionaries, branded as disorganizers, reviled as madmen, threatened and perhaps punished as traitors. But we shall bide our time. Whether safety or peril, whether victory or defeat, whether life or death be

ours, believing that our feet are planted on an eternal foundation, that our position is sublime and glorious, that our faith in God is rational and steadfast, that we have exceeding great and precious promises on which to rely, **THAT WE ARE IN THE RIGHT**, we shall not falter nor be dismayed, "though the earth be removed, and though the mountains be carried into the midst of the sea,"—though our ranks be thinned to the number of "three hundred men." Freemen! are you ready for the conflict? Come what may, will you sever the chain that binds you to a slaveholding government, and declare your independence? Up, then, with the banner of revolution! Not to shed blood—not to injure the person or estate of any oppressor—not by force and arms to resist any law—not to countenance a servile insurrection—not to wield any carnal weapons! No—ours must be a bloodless strife, excepting *our* blood be shed—for we aim, as did Christ our leader, not to destroy men's lives, but to save them—to overcome evil with good—to conquer through suffering for righteousness' sake—to set the captive free by the potency of truth!

Secede, then, from the government. Submit to its exactions, but pay it no allegiance, and give it no voluntary aid. Fill no offices under it. Send no senators or representatives to the national or State legislature; for what you cannot conscientiously perform yourself, you cannot ask another to perform as your agent. Circulate a declaration of **DISUNION FROM SLAVEHOLDERS**, throughout the country. Hold mass meetings—assemble in conventions—nail your banners to the mast!

Do you ask what can be done, if you abandon the ballot-box? What did the crucified Nazarene do without the elective franchise? What did the apostles do? What did the glorious army of martyrs and confessors do? What did Luther and his intrepid associates do? What can women and children do? What has Father Mathew done for teetotalism? What has Daniel O'Connell done for Irish repeal? "Stand, having your loins girt about with truth, and having on the breast-plate of righteousness," and arrayed in the whole armor of God!

The form of government that shall succeed the present government of the United States, let time determine. It would be a waste of time to argue that question, until the people are regenerated and turned from their iniquity. Ours is no anarchical movement, but one of order and obedience. In ceasing

from oppression, we establish liberty. What is now fragmentary, shall in due time be crystallized, and shine like a gem set in the heavens, for a light to all coming ages.

Finally—we believe that the effect of this movement will be,—First, to create discussion and agitation throughout the North; and these will lead to a general perception of its grandeur and importance.

Secondly, to convulse the slumbering South like an earthquake, and convince her that her only alternative is, to abolish slavery, or be abandoned by that power on which she now relies for safety.

Thirdly, to attack the slave power in its most vulnerable point, and to carry the battle to the gate.

Fourthly, to exalt the moral sense, increase the moral power, and invigorate the moral constitution of all who heartily espouse it.

We reverently believe that, in withdrawing from the American Union, we have the God of justice with us. We know that we have our enslaved countrymen with us. We are confident that all free hearts will be with us. We are certain that tyrants and their abettors will be against us.

In behalf of the Executive Committee of the American Anti-Slavery Society,

WM. LLOYD GARRISON, *President.*

WENDELL PHILLIPS, MARIA WESTON CHAPMAN,

Secretaries.

Boston, May 20, 1844.

LETTER FROM FRANCIS JACKSON.

BOSTON, 4TH July, 1844

To His Excellency George N. Briggs:

SIR—Many years since, I received from the Executive of the Commonwealth a commission as Justice of the Peace. I have held the office that it conferred upon me till the present time, and have found it a convenience to myself, and others. It might continue to be so, could I consent longer to hold it. But paramount considerations forbid, and I herewith transmit to you my commission, respectfully asking you to accept my resignation.

While I deem it a duty to myself to take this step, I feel called on to state the reasons that influence me.

In entering upon the duties of the office in question, I complied with the requirements of the law, by taking an oath "*to support the Constitution of the United States.*" I regret that I ever took that oath. Had I then as maturely considered its full import, and the obligations under which it is understood, and meant to lay those who take it, as I have done since, I certainly never would have taken it, seeing, as I now do, that the Constitution of the United States contains provisions calculated and intended to foster, cherish, uphold and perpetuate *slavery*. It pledges the country to guard and protect the slave system so long as the slaveholding States choose to retain it. It regards the slave code as lawful in the States which enact it. Still more, "it has done that, which, until its adoption, was never before done for African slavery. It took it out of its former category of municipal law and local life, adopted it as a national institution, spread around it the broad and sufficient shield of national law, and thus gave to slavery a national existence." Consequently, the oath to support the Constitution of the United States is a solemn promise to do that which is morally wrong; that which is a violation of the natural rights of man, and a sin in the sight of God.

I am not, in this matter, constituting myself a judge of others. I do not say that no honest man can take such an oath, and abide by it. I only say, that *I* would not now deliberately take it; and that, having inconsiderately taken it, I can no longer suffer it to lie upon my soul. I take back the oath, and ask you, sir, to take back the commission, which was the occasion of my taking it.

I am aware that my course in this matter is liable to be regarded as singular, if not censurable; and I must, therefore, be allowed to make a more specific

statement of those *provisions of the Constitution* which support the enormous wrong, the heinous sin of slavery.

The very first Article of the Constitution takes slavery at once under its legislative protection, as a basis of representation in the popular branch of the National Legislature. It regards slaves under the description "of all other *persons*"—as of only three-fifths of the value of free persons; thus to appearance undervaluing them in comparison with freemen. But its dark and involved phraseology seems intended to blind us to the consideration, that those underrated slaves are merely a *basis*, not the *source* of representation; that by the laws of all the States where they live, they are regarded not as *persons*; but as *things*; that they are not the *constituency* of the representative, but his property; and that the necessary effect of this provision of the Constitution is, to take legislative power out of the hands of *men*, as such, and give it to the mere possessors of goods and chattels. Fixing upon thirty thousand persons, as the smallest number that shall send one member into the House of Representatives, it protects slavery by distributing legislative power in a free and in a slave State thus: To a congressional district in South Carolina, containing fifty thousand slaves, claimed as the property of five hundred whites, who hold, on an average, one hundred apiece, it gives one Representative in Congress; to a district in Massachusetts containing a population of thirty thousand five hundred, one Representative is assigned. But inasmuch as a slave is never permitted to vote, the fifty thousand persons in a district in Carolina form no part of "the constituency;" that is found only in the five hundred free persons. Five hundred freemen of Carolina could send one Representative to Congress, while it would take thirty thousand five hundred freemen of Massachusetts, to do the same thing: that is, one slaveholder in Carolina is clothed by the Constitution with the same political power and influence in the Representatives Hall at Washington, as sixty Massachusetts men like you and me, who "eat their bread in the sweat of their own brows."

According to the census of 1830, and the ratio of representation based upon that, slave property added twenty-five members to the House of Representatives. And as it has been estimated, (as an approximation to the truth,) that the two and a half million slaves in the United States are held as property by about two hundred and fifty thousand persons—giving an average of ten slaves to each slaveholder, those twenty-five

Representatives, each chosen, at most, by only ten thousand voters, and probably by less than three-fourths of that number, were the representatives, not only of the two hundred and fifty thousand persons who chose them; but of *property* which, five years ago, when slaves were lower in market, than at present, were estimated, by the man who is now the most prominent candidate for the Presidency, at twelve hundred millions of dollars—a sum, which, by the natural increase of five years, and the enhanced value resulting from a more prosperous state of the planting interest, cannot now be less than fifteen hundred millions of dollars. All this vast amount of property, as it is "peculiar," is also identical in its character. In Congress, as we have seen, it is animated by one spirit, moves in one mass, and is wielded with one aim; and when we consider that tyranny is always timid, and despotism distrustful, we see that this vast money power would be false to itself, did it not direct all its eyes and hands, and put forth all its ingenuity and energy, to one end—self-protection and self-perpetuation. And this it has ever done. In all the vibrations of the political scale, whether in relation to a Bank or Sub-Treasury, Free Trade or a Tariff, this immense power has moved, and will continue to move, in one mass, for its own protection.

While the weight of the slave influence is thus felt in the House of Representatives, "in the Senate of the Union," says John Quincy Adams, "the proportion of slaveholding power is still greater. By the influence of slavery in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the fifty-two members of the federal Senate, twenty-six are owners of slaves, and are as effectually representatives of that interest, as the eighty-eight members elected by them to the House."

The dominant power which the Constitution gives to the slave interest, as thus seen and exercised in the *Legislative Halls* of our nation, is equally obvious and obtrusive in every other department of the National government.

In the *Electoral colleges*, the same cause produces the same effect—the same power is wielded for the same purpose, as in the Halls of Congress. Even the preliminary nominating conventions, before they dare name a candidate for the highest office in the gift of the people, must ask of the

Genius of slavery, to what votary she will show herself propitious. This very year, we see both the great political parties doing homage to the slave power, by nominating each a slaveholder for the chair of the State. The candidate of one party declares. "I should have opposed, and would continue to oppose, any scheme whatever of emancipation, either gradual or immediate;" and adds, "It is not true, and I rejoice that it is not true, that either of the two great parties of this country has any design or aim at abolition. I should deeply lament it, if it were true."[94]

[Footnote 94: Henry Clay's speech in the United States Senate in 1839, and confirmed at Raleigh, N.C. 1844.]

The other party nominates a man who says, "I have no hesitation in declaring that I am in favor of the immediate re-annexation of Texas to the territory and government of the United States."

Thus both the political parties, and the candidates of both, vie with each other, in offering allegiance to the slave power, as a condition precedent to any hope of success in the struggle for the executive chair; a seat that, for more than three-fourths of the existence of our constitutional government, has been occupied by a slaveholder.

The same stern despotism overshadows even the sanctuaries of *justice*. Of the nine Justices of the Supreme Court of the United States, five are slaveholders, and of course, must be faithless to their own interest, as well as recreant to the power that gives them place, or must, so far as *they* are concerned, give both to law and constitution such a construction as shall justify the language of John Quincy Adams, when he says—"The legislative, executive, and judicial authorities, are all in their hands—for the preservation, propagation, and perpetuation of the black code of slavery. Every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of wrong."

Thus by merely adverting but briefly to the theory and the practical effect of this clause of the Constitution, that I have sworn to support, it is seen that it throws the political power of the nation into the hands of the slaveholders; a

body of men, which, however it may be regarded by the Constitution as "persons," is in fact and practical effect, a vast moneyed corporation, bound together by an indissoluble unity of interest, by a common sense of a common danger; counselling at all times for its common protection; wielding the whole power, and controlling the destiny of the nation.

If we look into the legislative halls, slavery is seen in the chair of the presiding officer of each, and controlling the action of both. Slavery occupies, by prescriptive right, the Presidential chair. The paramount voice that comes from the temple of national justice, issues from the lips of slavery. The army is in the hands of slavery, and at her bidding, must encamp in the everglades of Florida, or march from the Missouri to the borders of Mexico, to look after her interests in Texas.

The navy, even that part that is cruising off the coast of Africa, to suppress the foreign slave trade, is in the hands of slavery.

Freemen of the North, who have even dared to lift up their voice against slavery, cannot travel through the slave States, but at the peril of their lives.

The representatives of freemen are forbidden, on the floor of Congress, to remonstrate against the encroachments of slavery, or to pray that she would let her poor victims go.

I renounce my allegiance to a Constitution that enthrones such a power, wielded for the purpose of depriving me of my rights, of robbing my countrymen of their liberties, and of securing its own protection, support and perpetuation.

Passing by that clause of the Constitution, which restricted Congress for twenty years, from passing any law against the African slave trade, and which gave authority to raise a revenue on the stolen sons of Africa, I come to that part of the fourth article, which guarantees protection against "*domestic violence*," and which pledges to the South the military force of the country, to protect the masters against their insurgent slaves: binds us, and our children, to shoot down our fellow-countrymen, who may rise, in emulation of our revolutionary fathers, to vindicate their inalienable "right to life, *liberty* and the pursuit of happiness,"—this clause of the Constitution, I say distinctly, I never will support.

That part of the Constitution which provides for the surrender of fugitive slaves, I never have supported and never will. I will join in no slave-hunt. My door shall stand open, as it has long stood, for the panting and trembling victim of the slave-hunter. When I shut it against him, may God shut the door of his mercy against me! Under this clause of the Constitution, and designed to carry it into effect, slavery has demanded that laws should be passed, and of such a character, as have left the free citizen of the North without protection for his own liberty. The question, whether a man seized in a free State as a slave, *is* a slave or not, the law of Congress does not allow a jury to determine: but refers it to the decision of a Judge of a United States' Court, or even of the humblest State magistrate, it may be, upon the testimony or affidavit of the party most deeply interested to support the claim. By virtue of this law, freemen have been seized and dragged into perpetual slavery—and should I be seized by a slave-hunter in any part of the country where I am not personally known, neither the Constitution nor laws of the United States would shield me from the same destiny.

These, sir, are the specific parts of the Constitution of the United States, which in my opinion are essentially vicious, hostile at once to the liberty and to the morals of the nation. And these are the principal reasons of my refusal any longer to acknowledge my allegiance to it, and of my determination to revoke my oath to support it. I cannot, in order to keep the law of man, break the law of God, or solemnly call him to witness my promise that I will break it.

It is true that the Constitution provides for its own amendment, and that by this process, all the guarantees of Slavery may be expunged. But it will be time enough to swear to support it when this is done. It cannot be right to do so, until these amendments are made.

It is also true that the framers of the Constitution did studiously keep the words "Slave" and "Slavery" from its face. But to do our constitutional fathers justice, while they forebore—from very shame—to give the word "Slavery" a place in the Constitution, they did not forbear—again to do them justice—to give place in it to the *thing*. They were careful to wrap up the idea, and the substance of Slavery, in the clause for the surrender of the fugitive, though they sacrificed justice in doing so.

There is abundant evidence that this clause touching "persons held to service or labor," not only operates practically, under the judicial construction, for the protection of the slave interest; but that it was intended so to operate by the framers of the Constitution. The highest judicial authorities—Chief Justice Shaw, of the Supreme Court of Massachusetts, in the Latimer case, and Mr. Justice Story, in the Supreme Court of the United States, in the case of *Prigg vs. The State of Pennsylvania*,—tell us, I know not on what evidence, that without this "compromise," this security for Southern slaveholders, "the Union could not have been formed." And there is still higher evidence, not only that the framers of the Constitution meant by this clause to protect slavery, but that they did this, knowing that slavery was wrong. Mr. Madison^[95] informs us that the clause in question, as it came out of the hands of Dr. Johnson, the chairman of the "committee on style," read thus: "No person legally held to service, or labor, in one State, escaping into another, shall," &c., and that the word "legally" was struck out, and the words "under the laws thereof" inserted after the word "State," in compliance with the wish of some, who thought the term *legal* equivocal, and favoring the idea that slavery was legal "*in a moral view*." A conclusive proof that, although future generations might apply that clause to other kinds of "service or labor," when slavery should have died out, or been killed off by the young spirit of liberty, which was *then* awake and at work in the land; still, slavery was what they were wrapping up in "equivocal" words; and wrapping it up for its protection and safe keeping: a conclusive proof that the framers of the Constitution were more careful to protect themselves in the judgment of coming generations, from the charge of ignorance, than of sin; a conclusive proof that they knew that slavery was *not* "legal in a moral view," that it was a violation of the moral law of God; and yet knowing and confessing its immorality, they dared to make this stipulation for its support and defence.

[Footnote ⁹⁵: Madison Papers, p. 1589]

This language may sound harsh to the ears of those who think it a part of their duty, as citizens, to maintain that whatever the patriots of the Revolution did, was right; and who hold that we are bound to *do* all the

iniquity that they covenanted for us that we *should* do. But the claims of truth and right are paramount to all other claims.

With all our veneration for our constitutional fathers, we must admit,—for they have left on record their own confession of it,—that in this part of their work they intended to hold the shield of their protection over a wrong, knowing that it was a wrong. They made a "compromise" which they had no right to make—a compromise of moral principle for the sake of what they probably regarded as "political expediency." I am sure they did not know—no man could know, or can now measure, the extent, or the consequences of the wrong, that they were doing. In the strong language of John Quincy Adams,[[96](#)] in relation to the article fixing the basis of representation, "Little did the members of the Convention, from the free States, imagine or foresee what a sacrifice to Moloch was hidden under the mask of this concession."

[Footnote [96](#): See his Report on the Massachusetts Resolutions.]

I verily believe that, giving all due consideration to the benefits conferred upon this nation by the Constitution, its national unity, its swelling masses of wealth, its power, and the external prosperity of its multiplying millions; yet the *moral* injury that has been done, by the countenance shown to slavery by holding over that tremendous sin the shield of the Constitution, and thus breaking down in the eyes of the nation the barrier between right and wrong; by so tenderly cherishing slavery as, in less than the life of man, to multiply her children from half a million to nearly three millions; by exacting oaths from those who occupy prominent stations in society, that they will violate at once the rights of man and the law of God; by substituting itself as a rule of right, in place of the moral laws of the universe;—thus in effect, dethroning the Almighty in the hearts of this people and setting up another sovereign in his stead—more than outweighs it all. A melancholy and monitory lesson this, to all timeserving and temporising statesmen! A striking illustration of the *impolicy* of sacrificing *right* to any considerations of expediency! Yet, what better than the evil effects that we have seen, could the authors of the Constitution have reasonably expected, from the sacrifice of right, in the concessions they

made to slavery? Was it reasonable in them to expect that after they had introduced a vicious element into the very Constitution of the body politic which they were calling into life, it would not exert its vicious energies? Was it reasonable in them to expect that, after slavery had been corrupting the public morals for a whole generation, their children would have too much virtue to *use* for the defence of slavery, a power which they themselves had not too much virtue to *give*? It is dangerous for the sovereign power of a State to license immorality; to hold the shield of its protection over any thing that is not "legal in a moral view." Bring into your house a benumbed viper, and lay it down upon your warm hearth, and soon it will not ask you into which room it may crawl. Let Slavery once lean upon the supporting arm, and bask in the fostering smile of the State, and you will soon see, as we now see, both her minions and her victims multiply apace till the politics, the morals, the liberties, even the religion of the nation, are brought completely under her control.

To me, it appears that the virus of slavery, introduced into the Constitution of our body politic, by a few slight punctures, has now so pervaded and poisoned the whole system of our National Government, that literally there is no health in it. The only remedy that I can see for the disease, is to be found in the *dissolution of the patient*.

The Constitution of the United States, both in theory and practice, is so utterly broken down by the influence and effects of slavery, so imbecile for the highest good of the nation, and so powerful for evil, that I can give no voluntary assistance in holding it up any longer.

Henceforth it is dead to me, and I to it. I withdraw all profession of allegiance to it, and all my voluntary efforts to sustain it. The burdens that it lays upon me, while it is held up by others, I shall endeavor to bear patiently, yet acting with reference to a higher law, and distinctly declaring, that while I retain my own liberty, I will be a party to no compact, which helps to rob any other man of his.

Very respectfully, your friend,

FRANCIS JACKSON.

FROM MR. WEBSTER'S SPEECH AT NIBLO'S GARDENS.

"We have slavery, already, amongst us. The Constitution found it among us; it recognized it and gave it **SOLEMN GUARANTIES**. To the full extent of these guaranties we are all bound, in honor, in justice, and by the Constitution. All the stipulations, contained in the Constitution, *in favor of the slaveholding States* which are already in the Union, ought to be fulfilled, and so far as depends on me, shall be fulfilled, in the fullness of their spirit, and to the exactness of their letter."!!!

EXTRACTS FROM JOHN Q. ADAMS'S ADDRESS

AT NORTH BRIDGEWATER, NOV. 6, 1844.

The benefits of the Constitution of the United States, were the restoration of credit and reputation, to the country—the revival of commerce, navigation, and ship-building—the acquisition of the means of discharging the debts of the Revolution, and the protection and encouragement of the infant and drooping manufactures of the country. All this, however, as is now well ascertained, was insufficient to propitiate the rulers of the Southern States to the adoption of the Constitution. What they specially wanted was *protection*.—Protection from the powerful and savage tribes of Indians within their borders, and who were harassing them with the most terrible of wars—and protection from their own negroes—protection from their insurrections—protection from their escape—protection even to the trade by which they were brought into the country—protection, shall I not blush to say, protection to the very bondage by which they were held. Yes! it cannot be denied—the slaveholding lords of the South prescribed, as a condition of their assent to the Constitution, three special provisions to secure the perpetuity of their dominion over their slaves. The first was the immunity for twenty years of preserving the African slave-trade; the second was the stipulation to surrender fugitive slaves—an engagement positively prohibited by the laws of God, delivered from Sinai; and thirdly, the

exaction fatal to the principles of popular representation, of a representation for slaves—for articles of merchandise, under the name of persons.

The reluctance with which the freemen of the North submitted to the dictation of these conditions, is attested by the awkward and ambiguous language in which they are expressed. The word slave is most cautiously and fastidiously excluded from the whole instrument. A stranger, who should come from a foreign land, and read the Constitution of the United States, would not believe that slavery or a slave existed within the borders of our country. There is not a word in the Constitution *apparently* bearing upon the condition of slavery, nor is there a provision but would be susceptible of practical execution, if there were not a slave in the land.

The delegates from South Carolina and Georgia distinctly avowed that, without this guarantee of protection to their property in slaves, they would not yield their assent to the Constitution; and the freemen of the North, reduced to the alternative of departing from the vital principle of their liberty, or of forfeiting the Union itself, averted their faces, and with trembling hand subscribed the bond.

Twenty years passed away—the slave markets of the South were saturated with the blood of African bondage, and from midnight of the 31st of December, 1807, not a slave from Africa was suffered ever more to be introduced upon our soil. But the internal traffic was still lawful, and the *breeding* States soon reconciled themselves to a prohibition which gave them the monopoly of the interdicted trade, and they joined the full chorus of reprobation, to punish with death the slave-trader from Africa, while they cherished and shielded and enjoyed the precious profits of the American slave-trade exclusively to themselves.

Perhaps this unhappy result of their concession had not altogether escaped the foresight of the freemen of the North; but their intense anxiety for the preservation of the whole Union, and the habit already formed of yielding to the somewhat peremptory and overbearing tone which the relation of master and slave welds into the nature of the lord, prevailed with them to overlook this consideration, the internal slave-trade having scarcely existed while that with Africa had been allowed. But of one consequence which has followed from the slave representation, pervading the whole organic

structure of the Constitution, they certainly were not prescient; for if they had been, never—no, never would they have consented to it.

The representation, ostensibly of slaves, under the name of persons, was in its operation an exclusive grant of power to one class of proprietors, owners of one species of property, to the detriment of all the rest of the community. This species of property was odious in its nature, held in direct violation of the natural and inalienable rights of man, and of the vital principles of Christianity; it was all accumulated in one geographical section of the country, and was all held by wealthy men, comparatively small in numbers, not amounting to a tenth part of the free white population of the States in which it was concentrated.

In some of the ancient, and in some modern republics, extraordinary political power and privileges have been invested in the owners of horses; but then these privileges and these powers have been granted for the equivalent of extraordinary duties and services to the community, required of the favoured class. The Roman knights constituted the cavalry of their armies, and the bushels of rings gathered by Hannibal from their dead bodies, after the battle of Cannae, amply prove that the special powers conferred upon them were no gratuitous grants. But in the Constitution of the United States, the political power invested in the owners of slaves is entirely gratuitous. No extraordinary service is required of them; they are, on the contrary, themselves grievous burdens upon the community, always threatened with the danger of insurrections, to be smothered in the blood of both parties, master and slave, and always depressing the condition of the poor free laborer, by competition with the labor of the slave. The property in horses was the gift of God to man, at the creation of the world; the property in slaves is property acquired and held by crimes, differing in no moral aspect from the pillage of a freebooter, and to which no lapse of time can give a prescriptive right. You are told that this is no concern of yours, and that the question of freedom and slavery is exclusively reserved to the consideration of the separate States. But if it be so, as to the mere question of right between master and slave, it is of tremendous concern to you that this little cluster of slave-owners should possess, besides their own share in the representative hall of the nation, the exclusive privilege of appointing two-fifths of the whole number of the representatives of the people. This is now your condition, under that delusive ambiguity of language and of

principle, which begins by declaring the representation in the popular branch of the legislature a representation of persons, and then provides that one class of persons shall have neither part nor lot in the choice of their representatives; but their elective franchise shall be transferred to their masters, and the oppressors shall represent the oppressed. The same perversion of the representative principle pollutes the composition of the colleges of electors of President and Vice President of the United States, and every department of the government of the Union is thus tainted at its source by the gangrene of slavery.

Fellow-citizens,—with a body of men thus composed, for legislators and executors of the laws, what will, what must be, what has been your legislation? The numbers of freemen constituting your nation are much greater than those of the slaveholding States, bond and free. You have at least three-fifths of the whole population of the Union. Your influence on the legislation and the administration of the government ought to be in the proportion of three to two.—But how stands the fact? Besides the legitimate portion of influence exercised by the slaveholding States by the measure of their numbers, here is an intrusive influence in every department, by a representation nominally of persons, but really of property, ostensibly of slaves, but effectively of their masters, overbalancing your superiority of numbers, adding two-fifths of supplementary power to the two-fifths fairly secured to them by the compact, **CONTROLLING AND OVERRULING THE WHOLE ACTION OF YOUR GOVERNMENT AT HOME AND ABROAD**, and warping it to the sordid private interest and oppressive policy of 300,000 owners of slaves.

From the time of the adoption of the Constitution of the United States, the institution of domestic slavery has been becoming more and more the abhorrence of the civilized world. But in proportion as it has been growing odious to all the rest of mankind, it has been sinking deeper and deeper into the affections of the holders of slaves themselves. The cultivation of cotton and of sugar, unknown in the Union at the establishment of the Constitution, has added largely to the pecuniary value of the slave. And the suppression of the African slave-trade as piracy upon pain of death, by securing the benefit of a monopoly to the virtuous slaveholders of the ancient dominion, has turned her heroic tyrannicides into a community of slave-breeders for sale, and converted the land of George Washington,

Patrick Henry, Richard Henry Lee, and Thomas Jefferson, into a great barracoon—a cattle-show of human beings, an emporium, of which the staple articles of merchandise are the flesh and blood, the bones and sinews of immortal man.

Of the increasing abomination of slavery in the unbought hearts of men at the time when the Constitution of the United States was formed, what clearer proof could be desired, than that the very same year in which that charter of the land was issued, the Congress of the Confederation, with not a tithe of the powers given by the people to the Congress of the new compact, actually abolished slavery for ever throughout the whole Northwestern territory, without a remonstrance or a murmur. But in the articles of confederation, there was no guaranty for the property of the slaveholder—no double representation of him in the Federal councils—no power of taxation—no stipulation for the recovery of fugitive slaves. But when the powers of *government* came to be delegated to the Union, the South—that is, South Carolina and Georgia—refused their subscription to the parchment, till it should be saturated with the infection of slavery, which no fumigation could purify, no quarantine could extinguish. The freemen of the North gave way, and the deadly venom of slavery was infused into the Constitution of freedom. Its first consequence has been to invert the first principle of Democracy, that the will of the majority of numbers shall rule the land. By means of the double representation, the minority command the whole, and a **KNOT OF SLAVEHOLDERS GIVE THE LAW AND PRESCRIBE THE POLICY OF THE COUNTRY**. To acquire this superiority of a large majority of freemen, a persevering system of engrossing nearly all the seats of power and place, is constantly for a long series of years pursued, and you have seen, in a period of fifty-six years, the Chief-magistracy of the Union held, during forty-four of them, by the owners of slaves. The Executive departments, the Army and Navy, the Supreme Judicial Court and diplomatic missions abroad, all present the same spectacle:—an immense majority of power in the hands of a very small minority of the people—millions made for a fraction of a few thousands.

From that day (1830), **SLAVERY, SLAVEHOLDING, SLAVE-BREEDING AND SLAVE-TRADING, HAVE FORMED THE**

WHOLE FOUNDATION OF THE POLICY OF THE FEDERAL GOVERNMENT, and of the slaveholding States, at home and abroad; and at the very time when a new census has exhibited a large increase upon the superior numbers of the free States, it has presented the portentous evidence of increased influence and ascendancy of the slaveholding power.

Of the prevalence of that power, you have had continual and conclusive evidence in the suppression for the space of ten years of the right of petition, guarantied, if there could be a guarantee against slavery, by the first article amendatory of the Constitution.

No. 13.

THE ANTI-SLAVERY EXAMINER.



**ON THE CONDITION OF THE FREE PEOPLE
OF COLOR**

IN THE UNITED STATES.

NEW YORK:

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,
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Please Read and circulate.

ON THE CONDITION OF THE FREE PEOPLE OF COLOR.

It appears from the census of 1830, that there were then 319,467 free colored persons in the United States. At the present time the number cannot be less than 360,000. Fifteen States of the Federal Union have each a smaller population than this aggregate. Hence if the whole mass of human beings inhabiting Connecticut, or New Jersey, or any other of these fifteen States, were subjected to the ignorance, and degradation, and persecution and terror we are about to describe, as the lot of this much injured people, the amount of suffering would still be numerically less than that inflicted by a professedly Christian and republican community upon the free negroes. Candor, however, compels us to admit that, deplorable as is their condition, it is still not so wretched as Colonizationists and slaveholders, for obvious reasons, are fond of representing it. It is not true that free negroes are "more vicious and miserable than slaves *can* be,"[[97](#)] nor that "it would be as humane to throw slaves from the decks of the middle passage, as to set them free in this country," [[98](#)] nor that "a sudden and universal emancipation without colonization, would be a greater CURSE to the slaves themselves, than the bondage in which they are held."

[Footnote [97](#): Rev. Mr. Bacon, of New Haven, 7 Rep. Am. Col. Soc. p. 99.]

[Footnote [98](#): African Repository, Vol. IV. p. 226.]

It is a little singular, that in utter despite of these rash assertions slaveholders and colonizationists unite in assuring us, that the slaves are rendered *discontented* by *witnessing* the freedom of their colored brethren; and hence we are urged to assist in banishing to Africa these sable and dangerous mementoes of liberty.

We all know that the wife and children of the free negro are not ordinarily sold in the market—that he himself does not toil under the lash, and that in certain parts of our country he is permitted to acquire some intelligence, and to enjoy some comforts, utterly and universally denied to the slave. Still it is most unquestionable, that these people grievously suffer from a cruel and wicked prejudice—cruel in its consequences; wicked in its voluntary adoption, and its malignant character.

Colonizationists have taken great pains to inculcate the opinion that prejudice against color is implanted in our nature by the Author of our being; and whence they infer the futility of every effort to elevate the colored man in this country, and consequently the duty and benevolence of sending him to Africa, beyond the reach of our cruelty.[99] The theory is as false in fact as it is derogatory to the character of that God whom we are told is LOVE. With what astonishment and disgust should we behold an earthly parent exciting feuds and animosities among his own children; yet we are assured, and that too by professing Christians, that our heavenly Father has implanted a principle of hatred, repulsion and alienation between certain portions of his family on earth, and then commanded them, as if in mockery, to "love one another."

[Footnote 99: "Prejudices, which neither refinement, nor argument, nor education, NOR RELIGION ITSELF can subdue, mark the people of color, whether bond or free, as the subjects of a degradation *inevitable and incurable*."—*Address of the Connecticut Col. Society*. "The managers consider it clear that causes exist, and are now operating, to prevent their improvement and elevation to any considerable extent as a class in this country, which are fixed, not only beyond the control of the friends of humanity, but of *any human power*: CHRISTIANITY cannot do for them here, what it will do for them in Africa. This is not the *fault* of the colored man, *nor of the white man*, but an ORDINATION OF PROVIDENCE, *and no more to be changed than the laws of nature*."—15 Rep. Am. Col. Soc. p. 47.

"The people of color must, in this country, remain for ages, probably for ever, a separate and distinct caste, weighed down by causes powerful,

universal, invincible, which neither legislation nor CHRISTIANITY can remove."—African Repository Vol. VIII. p. 196.

"Do they (the abolitionists) not perceive that in thus confounding all the distinctions which GOD himself has made, they arraign the wisdom and goodness of Providence itself? It has been His divine pleasure, to make the black man black, and the white man white, and to distinguish them by other *repulsive* constitutional differences."—Speech in Senate of the United States, February 7, 1839, by HENRY CLAY, PRESIDENT OF THE AM. COL. SOC.]

In vain do we seek in nature, for the origin of this prejudice. Young children never betray it, and on the continent of Europe it is unknown. We are not speaking of matters of taste, or of opinions of personal beauty, but of a prejudice against complexion, leading to insult, degradation and oppression. In no country in Europe is any man excluded from refined society, or deprived of literary, religious, or political privileges on account of the tincture of his skin. If this prejudice is the fiat of the Almighty, most wonderful is it, that of all the kindreds of the earth, none have been found submissive to the heavenly impulse, excepting the white inhabitants of North America; and of these, it is no less strange than true, that this divine principle of repulsion is most energetic in such persons as, in other respects, are the least observant of their Maker's will. This prejudice is sometimes erroneously regarded as the *cause* of slavery; and some zealous advocates of emancipation have flattered themselves that, could the prejudice be destroyed, negro slavery would fall with it. Such persons have very inadequate ideas of the malignity of slavery. They forget that the slaves in Greece and Rome were of the same hue as their masters; and that at the South, the value of a slave, especially of a female, rises, as the complexion recedes from the African standard.

Were we to inquire into the geography of this prejudice, we should find that the localities in which it attains its rankest luxuriance, are not the rice swamps of Georgia, nor the sugar fields of Louisiana, but the hills and valleys of New England, and the prairies of Ohio! It is a fact of acknowledged notoriety, that however severe may be the laws against colored people at the South, the prejudice against their *persons* is far weaker than among ourselves.

It is not necessary for our present purpose, to enter into a particular investigation of the condition of the free negroes in the slave States. We all know that they suffer every form of oppression which the laws can inflict upon persons not actually slaves. That unjust and cruel enactments should proceed from a people who keep two millions of their fellow men in abject bondage, and who believe such enactments essential to the maintenance of their despotism, certainly affords no cause for surprise.

We turn to the free States, where slavery has not directly steeled our hearts against human suffering, and where no supposed danger of insurrection affords a pretext for keeping the free blacks in ignorance and degradation; and we ask, what is the character of the prejudice against color *here*? Let the Rev. Mr. Bacon, of Connecticut, answer the question. This gentleman, in a vindication of the Colonization Society, assures us, "The *Soodra* is not farther separated from the *Brahim* in regard to all his privileges, civil, intellectual, and moral, than the negro from the white man by the prejudices which result from the difference made between them by THE GOD OF NATURE."—(*Rep. Am. Col. Soc.* p. 87.)

We may here notice the very opposite effect produced on Abolitionists and Colonizationists, by the consideration that this difference *is* made by the GOD OF NATURE; leading the one to discard the prejudice, and the other to banish its victims.

With these preliminary remarks we will now proceed to take a view of the condition of the free people of color in the non-slaveholding States; and will consider in order, the various disabilities and oppressions to which they are subjected, either by law or the customs of society.

1. GENERAL EXCLUSION FROM THE ELECTIVE FRANCHISE.

Were this exclusion founded on the want of property, or any other qualification deemed essential to the judicious exercise of the franchise, it would afford no just cause of complaint; but it is founded solely on the color of the skin, and is therefore irrational and unjust. That taxation and representation should be inseparable, was one of the axioms of the fathers of our revolution; and one of the reasons they assigned for their revolt from

the crown of Britain. But *now*, it is deemed a mark of fanaticism to complain of the disfranchisement of a whole race, while they remain subject to the burden of taxation. It is worthy of remark, that of the thirteen original States, only *two* were so recreant to the principles of the Revolution, as to make a *white skin* a qualification for suffrage. But the prejudice has grown with our growth, and strengthened with our strength; and it is believed that in *every* State constitution subsequently formed or revised, [excepting Vermont and Maine, and the Revised constitution of Massachusetts,] the crime of a dark complexion has been punished, by debarring its possessor from all approach to the ballot-box.[[100](#)] The necessary effect of this proscription in aggravating the oppression and degradation of the colored inhabitants must be obvious to all who call to mind the solicitude manifested by demagogues, and office-seekers, and law makers, to propitiate the good will of all who have votes to bestow.

[Footnote [100](#): From this remark the revised constitution of New York is *nominally* an exception; colored citizens, possessing a *freehold* worth two hundred and fifty dollars, being allowed to vote; while suffrage is extended to *white* citizens without any property qualification.]

2. DENIAL OF THE RIGHT OF LOCOMOTION.

It is in vain that the Constitution of the United States expressly guarantees to "the citizens of each State, all the privileges and immunities of citizens in the several States:"—It is in vain that the Supreme Court of the United States has solemnly decided that this clause confers on every citizen of one State the right to "pass through, or reside in any other State for the purposes of trade, agriculture, professional pursuits, or *otherwise*." It is in vain that "the members of the several State legislatures" are required to "be bound by oath or affirmation to support" the constitution conferring this very guarantee. Constitutions, and judicial decisions, and religious obligations are alike outraged by our State enactments against people of color. There is scarcely a slave State in which a citizen of New York, with a dark skin, may visit a dying child without subjecting himself to legal penalties. But in the slave States we look for cruelty; we expect the rights of humanity and the laws of the land to be sacrificed on the altar of slavery. In the free States we

had reason to hope for a greater deference to decency and morality. Yet even in these States we behold the effects of a miasma wafted from the South. The Connecticut Black Act, prohibiting, under heavy penalties, the instruction of any colored person from another State, is well known. It is one of the encouraging signs of the times, that public opinion has recently compelled the repeal of this detestable law. But among all the free States, OHIO stands pre-eminent for the wickedness of her statutes against this class of our population. These statutes are not merely infamous outrages on every principle of justice and humanity, but are gross and palpable violations of the State constitution, and manifest an absence of moral sentiment in the Ohio legislature as deplorable as it is alarming. We speak the language, not of passion, but of sober conviction; and for the truth of this language we appeal, first, to the Statutes themselves, and then to the consciences of our readers. We shall have occasion to notice these laws under the several divisions of our subject to which they belong; at present we ask attention to the one intended to prevent the colored citizens of other States from removing into Ohio. By the constitution of New York, the colored inhabitants are expressly recognized as "citizens." Let us suppose then a New York freeholder and voter of this class, confiding in the guarantee given by the Federal constitution removes into Ohio. No matter how much property he takes with him; no matter what attestations he produces to the purity of his character, he is required by the Act of 1807, to find, within twenty days, two freehold sureties in the sum of five hundred dollars for his *good behavior*; and likewise for his *maintenance*, should he at any future period from any cause whatever be unable to maintain himself, and in default of procuring such sureties he is to be removed by the overseers of the poor. The legislature well knew that it would generally be utterly impossible for a stranger, and especially a *black* stranger, to find such sureties. It was the *design* of the Act, by imposing impracticable conditions, to prevent colored emigrants from remaining within the State; and in order more certainly to effect this object, it imposes a pecuniary penalty on every inhabitant who shall venture to "harbor," that is, receive under his roof, or who shall even "employ" an emigrant who has not given the required sureties; and it moreover renders such inhabitant so harboring or employing him, legally liable for his future maintenance!!

We are frequently told that the efforts of the abolitionists have in fact aggravated the condition of the colored people, bond and free. The *date* of this law, as well as the date of most of the laws composing the several slave codes, show what credit is to be given to the assertion. If a barbarous enactment is *recent*, its odium is thrown upon the friends of the blacks—if *ancient*, we are assured it is *obsolete*. The Ohio law was enacted only four years after the State was admitted into the Union. In 1800 there were only three hundred and thirty-seven free blacks in the territory, and in 1830 the number in the State was nine thousand five hundred. Of course a very large proportion of the present colored population of the State must have entered it in ignorance of this iniquitous law, or in defiance of it. That the law has not been universally enforced, proves only that the people of Ohio are less profligate than their legislators—that it has remained in the statute book for thirty-two years, proves the depraved state of public opinion and the horrible persecution to which the colored people are legally exposed. But let it not be supposed that this vile law is in fact obsolete, and its very existence forgotten.

In 1829, a very general effort was made to enforce this law, and about *one thousand free blacks* were in consequence of it driven out of the State; and sought a refuge in the more free and Christian country of Canada. Previous to their departure, they sent a deputation to the Governor of the Upper Province, to know if they would be admitted, and received from Sir James Colebrook this reply,—“Tell the *republicans* on your side of the line, that we royalists do not know men by their color. Should you come to us, you will be entitled to all the privileges of the rest of his majesty's subjects.” This was the origin of the Wilberforce colony in Upper Canada.

We have now before us an Ohio paper, containing a proclamation by John S. Wiles, overseer of the poor in the town of Fairfield, dated 12th March, 1838. In this instrument notice is given to all “black or mulatto persons” residing in Fairfield, to comply with the requisitions of the Act of 1807 within twenty days, or the law would be enforced against them. The proclamation also addresses the white inhabitants of Fairfield in the following terms,—“Whites, look out! If any person or persons *employing* any black or mulatto person, contrary to the 3d section of the above law, you may look out for the breakers.” The extreme vulgarity and malignity of

this notice indicates the spirit which gave birth to this detestable law, and continues it in being.

Now what says the constitution of Ohio? "ALL are born free and independent, and have certain natural, inherent, inalienable rights; among which are the enjoying and defending life and liberty, *acquiring, possessing, and protecting property*, and pursuing and attaining happiness and safety." Yet men who had called their Maker to witness, that they would obey this very constitution, require impracticable conditions, and then impose a pecuniary penalty and grievous liabilities on every man who shall give to an innocent fellow countryman a night's lodging, or even a meal of victuals in exchange for his honest labor!

3. DENIAL OF THE RIGHT OF PETITION.

We explicitly disclaim all intention to imply that the several disabilities and cruelties we are specifying are of universal application. The laws of some States in relation to people of color are more wicked than others; and the spirit of persecution is not in every place equally active and malignant. In none of the free States have these people so many grievances to complain of as in Ohio, and for the honor of our country we rejoice to add, that in no other State in the Union, has their right to petition for a redress of their grievances been denied.

On the 14th January, 1839, a petition for relief from certain legal disabilities, from colored inhabitants of Ohio, was presented to the *popular* branch of the legislature, and its rejection was moved by George H. Flood. [101] This rejection was not a denial of the prayer, but an *expulsion of the petition itself*, as an intruder into the house. "The question presented for our decision," said one of the members, "is simply this—Shall human beings, who are bound by every enactment upon our statute book, be *permitted* to *request* the legislature to modify or soften the laws under which they live?" To the Grand Sultan, crowded with petitions as he traverses the streets of Constantinople, such a question would seem most strange; but American democrats can exert a tyranny over *men who have no votes*, utterly unknown to Turkish despotism. Mr. Flood's motion was lost by a majority of only *four* votes; but this triumph of humanity and republicanism was as transient as it was meagre. The *next* day, the House, by a large majority,

resolved: "That the blacks and mulattoes who may be residents within this State, have no constitutional right to present their petitions to the General Assembly for any purpose whatsoever, and that any reception of such petitions on the part of the General Assembly is a mere act of privilege or policy, and not imposed by any expressed or implied power of the Constitution."

[Footnote [101](#): It is sometimes interesting to preserve the names of individuals who have perpetrated bold and unusual enormities.]

The phraseology of this resolution is as clumsy as its assertions are base and sophistical. The meaning intended to be expressed is simply, that the Constitution of Ohio, neither in terms nor by implication, confers on such residents as are negroes or mulattoes, any right to offer a petition to the legislature for any object whatever; nor imposes on that body any obligation to notice such a petition; and whatever attention it may please to bestow upon it, ought to be regarded as an act not of duty, but merely of favor or expediency. Hence it is obvious, that the *principle* on which the resolution is founded is, that the reciprocal right and duty of offering and hearing petitions *rest solely on constitutional enactment*, and not on moral obligation. The reception of negro petitions is declared to be a mere act of *privilege or policy*. Now it is difficult to imagine a principle more utterly subversive of all the duties of rulers, the rights of citizens, and the charities of private life. The victim of oppression or fraud has no *right* to appeal to the constituted authorities for redress; nor are those authorities under any obligation to consider the appeal—the needy and unfortunate have no right to implore the assistance of their more fortunate neighbors: and all are at liberty to turn a deaf ear to the cry of distress. The eternal and immutable principles of justice and humanity, proclaimed by Jehovah, and impressed by him on the conscience of man, have no binding force on the legislature of Ohio, unless expressly adopted and enforced by the State Constitution!

But as the legislature has thought proper thus to set at defiance the moral sense of mankind, and to take refuge behind the enactments of the Constitution, let us try the strength of their entrenchments. The words of the Constitution, which it is pretended sanction the resolution we are

considering are the following, viz.—"The *people* have a right to assemble together in a peaceable manner to consult for their common good, to *instruct their representatives*, and to apply to the legislature for a redress of grievances." It is obvious that this clause confers no rights, but is merely declaratory of existing rights. Still, as the right of the people to apply for a redress of grievances is coupled with the right of *instructing their representatives*, and as negroes are not electors and consequently are without representatives, it is inferred that they are not part of *the people*. That Ohio legislators are not Christians would be a more rational conclusion. One of the members avowed his opinion that "none but voters had a right to petition." If then, according to the principle of the resolution, the Constitution of Ohio denies the right of petition to all but electors, let us consider the practical results of such a denial. In the first place, every female in the State is placed under the same disability with "blacks and mulattoes." No wife has a right to ask for a divorce—no daughter may plead for a father's life. Next, no man under twenty-one years—no citizen of any age, who from want of sufficient residence, or other qualification, is not entitled to vote—no individual among the tens of thousands of aliens in the State—however oppressed and wronged by official tyranny or corruption, has a right to seek redress from the representatives of the people, and should he presume to do so, may be told, that, like "blacks and mulattoes," he "has no constitutional right to present his petition to the General Assembly for any purpose whatever." Again—the State of Ohio is deeply indebted to the citizens of other States, and also to the subjects of Great Britain for money borrowed to construct her canals. Should any of these creditors lose their certificates of debt, and ask for their renewal; or should their interest be withheld, or paid in depreciated currency, and were they to ask for justice at the hands of the legislature, they might be told, that any attention paid to their request must be regarded as a "mere act of privilege or policy, and not imposed by any expressed or implied power of the Constitution," for, not being voters, they stood on the same ground as "blacks and mulattoes." Such is the folly and wickedness in which prejudice against color has involved the legislators of a republican and professedly Christian State in the nineteenth century.

4. EXCLUSION FROM THE ARMY AND MILITIA.

The Federal Government is probably the only one in the world that forbids a portion of its subjects to participate in the national defence, not from any doubts of their courage, loyalty, or physical strength, but merely on account of the tincture of their skin! To such an absurd extent is this prejudice against color carried, that some of our militia companies have occasionally refused to march to the sound of a drum when beaten by a black man. To declare a certain class of the community unworthy to bear arms in defence of their native country, is necessarily to consign that class to general contempt.

5. EXCLUSION FROM ALL PARTICIPATION IN THE ADMINISTRATION OF JUSTICE.

No colored man can be a judge, juror, or constable. Were the talents and acquirements of a Mansfield or a Marshall veiled in a sable skin, they would be excluded from the bench of the humblest court in the American republic. In the slave States generally, no black man can enter a court of justice as a witness against a white one. Of course a white man may, with perfect impunity, defraud or abuse a negro to any extent, provided he is careful to avoid the presence of any of his own caste, at the execution of his contract, or the indulgence of his malice. We are not aware that an outrage so flagrant is sanctioned by the laws of any *free* State, with one exception. That exception the reader will readily believe can be none other than OHIO. A statute of this State enacts, "that no black or mulatto *person* or *persons* shall hereafter be permitted to be sworn, or give evidence in any court of Record or elsewhere, in this State, in any cause depending, or matter of controversy, when either party to the same is a WHITE person; or in any prosecution of the State against any WHITE person."

We have seen that on the subject of petition the legislature regards itself as independent of all obligation except such as is imposed by the Constitution. How mindful they are of the requirements even of that instrument, when obedience to them would check the indulgence of their malignity to the blacks, appears from the 7th Section of the 8th Article, viz.—"All courts shall be open, and *every* person, for any injury done him in his lands, goods, person or reputation, shall have remedy by due course of law, and right and justice administered without denial or delay."

Ohio legislators may deny that negroes and mulattoes are citizens, or people; but they are estopped by the very words of the statute just quoted, from denying that they are "*persons*." Now, by the Constitution every *person*, black as well as white, is to have justice administered to him without denial or delay. But by the law, while any unknown *white* vagrant may be a witness in any case whatever, no black suitor is permitted to offer a witness of his own color, however well established may be his character for intelligence and veracity, to prove his rights or his wrongs; and hence in a multitude of cases, justice is denied in despite of the Constitution; and why denied? Solely from a foolish and wicked prejudice against color.

6. IMPEDIMENTS TO EDUCATION.

No people have ever professed so deep a conviction of the importance of popular education as ourselves, and no people have ever resorted to such cruel expedients to perpetuate abject ignorance. More than one third of the whole population of the slave States are prohibited from learning even to read, and in some of them free men, if with dark complexions, are subject to stripes for teaching their own children. If we turn to the free States, we find that in all of them, without exception, the prejudices and customs of society oppose almost insuperable obstacles to the acquisition of a liberal education by colored youth. Our academies and colleges are barred against them. We know there are instances of young men with dark skins having been received, under peculiar circumstances, into northern colleges; but we neither know nor believe, that there have been a dozen such instances within the last thirty years.

Colored children are very generally excluded from our common schools, in consequence of the prejudices of teachers and parents. In some of our cities there are schools *exclusively* for their use, but in the country the colored population is usually too sparse to justify such schools; and white and black children are rarely seen studying under the same roof; although such cases do sometimes occur, and then they are confined to elementary schools. Some colored young men, who could bear the expense, have obtained in European seminaries the education denied them in their native land.

It may not be useless to cite an instance of the malignity with which the education of the blacks is opposed. The efforts made in Connecticut to

prevent the establishment of schools of a higher order than usual for colored pupils, are too well known to need a recital here; and her BLACK ACT, prohibiting the instruction of colored children from other States, although now expunged from her statute book through the influence of abolitionists, will long be remembered to the opprobrium of her citizens. We ask attention to the following illustration of public opinion in another New England State.

In 1834 an academy was built by subscription in CANAAN, New Hampshire, and a charter granted by the legislature; and at a meeting of the proprietors it was determined to receive all applicants having "suitable moral and intellectual recommendations, without other distinctions;" in other words, without reference to *complexion*. When this determination was made known, a TOWN MEETING was forthwith convened, and the following resolutions adopted, viz.

"RESOLVED, That we view with *abhorrence* the attempt of the Abolitionists to establish in this town a school for the instruction of the sable sons and daughters of Africa, in common with our sons and daughters.

"RESOLVED, That we will not associate with, nor in any way countenance, any man or woman who shall hereafter persist in attempting to establish a school in this town for the *exclusive* education of blacks, *or* for their education in conjunction with the whites."

The frankness of this last resolve is commendable. The inhabitants of Canaan, assembled in legal town meeting, determined, it seems, that the blacks among them should in future have no education whatever—they should not be instructed in company with the whites, neither should they have schools exclusively for themselves.

The proprietors of the academy supposing, in the simplicity of their hearts, that in a free country they might use their property in any manner not forbidden by law, proceeded to open their school, and in the ensuing spring had twenty-eight white, and fourteen colored scholars. The crisis had now arrived when the cause of prejudice demanded the sacrifice of constitutional liberty and of private property. Another town meeting was convoked, at which, without a shadow of authority, and in utter contempt of law and decency, it was ordered, that the academy should be forcibly removed, and

a committee was appointed to execute the abominable mandate. Due preparations were made for the occasion, and on the 10th of August, three hundred men, with about 200 oxen, assembled at the place, and taking the edifice from off its foundation, dragged it to a distance, and left it a ruin. No one of the actors in this high-handed outrage was ever brought before a court of justice to answer for this criminal and riotous destruction of the property of others.

The transaction we have narrated, expresses in emphatic terms the deep and settled hostility felt in the free States to the education of the blacks. The prejudices of the community render that hostility generally effective without the aid of legal enactments. Indeed, some remaining regard to decency and the opinion of the world, has restrained the Legislatures of the free States, with *one exception*, from consigning these unhappy people to ignorance by "decreeing unrighteous decrees," and "framing mischief by a law." Our readers, no doubt, feel that the exception must of course be OHIO.

We have seen with what deference Ohio legislators profess to regard their *constitutional* obligations; and we are now to contemplate another instance of their shameless violation of them. The Constitution which these men have sworn to obey declares, "NO LAW SHALL BE PASSED to prevent the poor of the several townships and counties in this State from an *equal* participation in the schools, academies, colleges, and universities in this State, which are endowed in whole, or *in part*, from the revenue arising from *donations* made by the United States, for the support of *colleges and schools*—and the door of said schools, academies, and universities shall be open for the reception of scholars, students, and teachers of every *grade*, without ANY DISTINCTION OR PREFERENCE WHATEVER."

Can language be more explicit or unequivocal? But have any donations been made by the United States for the support of colleges and schools in Ohio? Yes—by an act of Congress, the sixteenth section of land in *each* originally surveyed township in the State, was set apart as a donation for the express purpose of endowing and supporting common schools. And now, how have the scrupulous legislators of Ohio, who refuse to acknowledge any other than constitutional obligations to give ear to the cry of distress—how have they obeyed this injunction of the Constitution respecting the

freedom of their schools? They enacted a law in 1831, declaring that, "when any appropriation shall be made by the directors of any school district, from the treasury thereof, for the payment of a teacher, the school in such district shall be open"—to whom? "*to scholars, students, and teachers of every grade, without distinction or preference whatever,*" as commanded by the Constitution? Oh no! "Shall be open to all the WHITE children residing therein!!" Such is the impotency of written constitutions, where a sense of moral obligation is wanting to enforce them.

We have now taken a review of the Ohio laws against free people of color. Some of them are of old, and others of recent date. The opinion entertained of all these laws, new and old, by the *present* legislators of Ohio, may be learned by a resolution adopted in January last, (1839) by both houses of the legislature. "RESOLVED, That in the opinion of this general assembly it is unwise, impolitic, and inexpedient to repeal *any* law now in force imposing disabilities upon black or mulatto persons, thus placing them upon an equality with the whites, so far as this legislature can do, and indirectly inviting the black population of other States to emigrate to this, to the manifest injury of the public interest." The best comment on the *spirit* which dictated this resolve is an enactment by the *same* legislature, abrogating the supreme law which requires us to "Do unto others as we would they should do unto us," and prohibiting every citizen of Ohio from *harboring or concealing* a fugitive slave, under the penalty of fine or imprisonment. General obedience to this vile statute is alone wanting to fill to the brim the cup of Ohio's iniquity and degradation. She hath done what she could to oppress and crush the free negroes within her borders. She is now seeking to rechain the slave who has escaped from his fetters.

7. IMPEDIMENTS TO RELIGIOUS INSTRUCTION.

It is unnecessary to dwell here on the laws of the slave States prohibiting the free people of color from learning to read the Bible, and in many instances, from assembling at discretion to worship their Creator. These laws, we are assured, are indispensable to the perpetuity of that "peculiar institution," which many masters in Israel are now teaching, enjoys the sanction of HIM who "will have all men to be saved, and to come to the knowledge of the truth," and who has left to his disciples the injunction,

"search the Scriptures." We turn to the free States, in which no institution requires, that the light of the glorious gospel of Christ should be prevented from shining on any portion of the population, and inquire how far prejudice here supplies the place of southern statutes.

The impediments to education already mentioned, necessarily render the acquisition of religious knowledge difficult, and in many instances impracticable. In the northern cities, the blacks have frequently churches of their own, but in the country they are too few, and too poor to build churches and maintain ministers. Of course they must remain destitute of public worship and religious instruction, unless they can enjoy these blessings in company with the whites. Now there is hardly a church in the United States, not exclusively appropriated to the blacks, in which one of their number owns a pew, or has a voice in the choice of a minister. There are usually, indeed, a few seats in a remote part of the church, set apart for their use, and in which no white person is ever seen. It is surely not surprising, under all the circumstances of the case, that these seats are rarely crowded.

Colored ministers are occasionally ordained in the different denominations, but they are kept at a distance by their white brethren in the ministry, and are very rarely permitted to enter their pulpits; and still more rarely, to sit at their tables, although acknowledged to be ambassadors of Christ. The distinction of *caste* is not forgotten, even in the celebration of the Lord's Supper, and seldom are colored disciples permitted to eat and drink of the memorials of the Redeemer's passion till after every white communicant has been served.

8. IMPEDIMENTS TO HONEST INDUSTRY.

In this country ignorance and poverty are almost inseparable companions; and it is surely not strange that those should be poor whom we compel to be ignorant. The liberal professions are virtually sealed against the blacks, if we except the church, and even in that admission is rendered difficult by the obstacles placed in their way in acquiring the requisite literary qualifications;[\[102\]](#) and when once admitted, their administrations are confined to their own color. Many of our most wealthy and influential citizens have commenced life as ignorant and as penniless as any negro

who loiters in our streets. Had their complexion been dark, notwithstanding their talents, industry, enterprize and probity, they would have continued ignorant and penniless, because the paths to learning and to wealth, would then have been closed against them. There is a conspiracy, embracing all the departments of society, to keep the black man ignorant and poor. As a general rule, admitting few if any exceptions, the schools of literature and of science reject him—the counting house refuses to receive him as a bookkeeper, much more as a partner—no store admits him as a clerk—no shop as an apprentice. Here and there a black man may be found keeping a few trifles on a shelf for sale; and a few acquire, as if by stealth, the knowledge of some handicraft; but almost universally these people, both in town and country, are prevented by the customs of society from maintaining themselves and their families by any other than menial occupations.

[Footnote [102](#): Of the truth of this remark, the trustees of the Episcopal Theological Seminary at New-York, lately (June, 1839) afforded a striking illustration. A young man, regularly acknowledged by the Bishop as a candidate for orders, and in consequence of such acknowledgment entitled, by an *express statute* of the seminary, to admission to its privileges, presented himself as a pupil. But God had given him a dark complexion, and *therefore* the trustees, regardless of the statute, barred the doors against him, by a formal and deliberate vote. As a compromise between conscience and prejudice, the professors offered to give him *private* instruction—to do in secret what they were ashamed to do openly—to confer as a favor, what he was entitled to demand as a right. The offer was rejected.

It is worthy of remark, that of the trustees who took an *active* part against the *colored* candidate, one is the PRESIDENT of the *New York Colonization Society*; another a MANAGER, and a third, one of its public champions; and that the Bishop of the diocese, who wished to exclude his candidate from the theological school of which he is both a trustee and a professor, lately headed a recommendation in the newspapers for the purchase of a packet ship for Liberia, as likely to "render far more efficient than heretofore, the enterprize of colonization."]

In 1836, a black man of irreproachable character, and who by his industry and frugality had accumulated several thousand dollars, made application in the City of New York for a carman's license, and was refused solely and

avowedly on account of his complexion! We have already seen the effort of the Ohio legislature, to consign the negroes to starvation, by deterring others from employing them. Ignorance, idleness, and vice, are at once the punishments we inflict upon these unfortunate people for their complexion; and the crimes with which we are constantly reproaching them.

9. LIABILITY TO BE SEIZED, AND TREATED AS SLAVES.

An able-bodied colored man sells in the southern market for from eight hundred to a thousand dollars; of course he is worth stealing. Colonizationists and slaveholders, and many northern divines, solemnly affirm, that the situation of a slave is far preferable to that of a free negro; hence it would seem an act of humanity to convert the latter into the former. Kidnapping being both a lucrative and a benevolent business, it is not strange it should be extensively practised. In many of the States this business is regulated by law, and there are various ways in which the transmutation is legally effected. Thus, in South Carolina, if a free negro "entertains" a runaway slave, it may be his own wife or child, he himself is turned into a slave. In 1827, a *free woman and her three children* underwent this benevolent process, for *entertaining* two fugitive children of six and nine years old. In Virginia all emancipated slaves remaining twelve months in the State, are kindly restored to their former condition. In Maryland a free negro who marries a white woman, thereby acquires all the privileges of a slave—and generally, throughout the slave region, including the District of Columbia, every negro not known to be free, is mercifully considered as a slave, and if his master cannot be ascertained, he is thrown into a dungeon, and there kept, till by a public sale a master can be provided for him. But often the law grants to colored men, *known to be free*, all the advantages of slavery. Thus, in Georgia, every *free* colored man coming into the State, and unable to pay a fine of one hundred dollars, becomes a slave for life; in Florida, insolvent debtors, if *black*, are SOLD for the benefit of their creditors; and in the District of Columbia a free colored man, thrown into jail on suspicion of being a slave and proving his freedom, is required by law to be sold as a slave, if too poor to pay his jail fees. Let it not be supposed that these laws are all obsolete and inoperative. They catch many a northern negro, who, in pursuit of his own business, or on being decoyed by others ventures to enter the slave region; and who, of course,

helps to augment the wealth of our southern brethren. On the 6th of March, 1839, a report by a Committee was made to the House of Representatives of the Massachusetts Legislature, in which are given the *names* of seventeen free colored men who had been enslaved at the south. It also states an instance in which twenty-five colored citizens, belonging to Massachusetts, were confined at one time in a southern jail, and another instance in which 75 free colored persons from different free States were confined, all preparatory to their sale as slaves according to law.

The facts disclosed in this report induced the Massachusetts Legislature to pass a resolution protesting against the kidnapping laws of the slave States, "as invading the sacred rights of citizens of this commonwealth, as contrary to the Constitution of the United States, and in utter derogation of that great principle of the common law which presumes every person to be innocent until proved to be guilty;" and ordered the protest to be forwarded to the Governors of the several States.

But it is not at the south alone that freemen may be converted into slaves "according to law." The Act of Congress respecting the recovery of fugitive slaves, affords most extraordinary facilities for this process, through official corruption and individual perjury. By this Act, the claimant is permitted to *select* a justice of the peace, before whom he may bring or send his alleged slave, and even to prove his property by *affidavit*. Indeed, in almost every State in the Union, a slaveholder may recover at law a human being as his beast of burden with far less ceremony than he could his pig from the possession of his neighbor. In only three States is a man, claimed as a slave, entitled to a trial by jury. At the last session of the New York Legislature a bill allowing a jury trial in such cases was passed by the lower House, but rejected by a *democratic* vote in the Senate, democracy in that State, being avowedly only *skin* deep, all its principles of liberty, equality, and human rights depending on complexion.

Considering the wonderful ease and expedition with which fugitives may be recovered by law, it would be very strange if mistakes did not sometimes occur. *How* often they occur cannot, of course, be known, and it is only when a claim is *defeated*, that we are made sensible of the exceedingly precarious tenure by which a poor friendless negro at the north holds his personal liberty. A few years since, a girl of the name of Mary Gilmore was

arrested in Philadelphia, as a fugitive slave from Maryland. Testimony was not wanting in support of the claim; yet it was most conclusively proved that she was the daughter of poor *Irish* parents—having not a drop of negro blood in her veins—that the father had absconded, and that the mother had died a drunkard in the Philadelphia hospital, and that the infant had been kindly received and *brought up in a colored family*. Hence the attempt to make a slave of her. In the spring of 1839, a colored man was arrested in Philadelphia, on a charge of having absconded from his owner *twenty-three* years before. This man had a wife and family depending upon him, and a home where he enjoyed their society; and yet, unless he could find witnesses who could prove his freedom for more than this number of years, he was to be torn from his wife, his children, his home, and doomed for the remainder of his days to toil under the lash. *Four* witnesses for the claimant swore to his identity, although they had not seen him before for twenty-three years! By a most extraordinary coincidence, a New England Captain, with whom this negro had sailed *twenty-nine* years before, in a sloop from Nantucket, happened at this very time to be confined for debt in the same prison with the alleged slave, and the Captain's testimony, together with that of some other witnesses, who had known the man previous to his pretended elopement, so fully established his freedom, that the Court discharged him.

Another mode of legal kidnapping still remains to be described. By the Federal Constitution, fugitives from *justice* are to be delivered up, and under this constitutional provision, a free negro may be converted into a slave without troubling even a Justice of the Peace to hear the evidence of the captor's claim. A fugitive slave is, of course, a felon—he not only steals himself, but also the rags on his back which belong to his master. It is understood he has taken refuge in New York, and his master naturally wishes to recover him with as little noise, trouble, and delay as possible. The way is simple and easy. Let the Grand Jury indict A.B. for stealing wearing apparel, and let the indictment, with an affidavit of the criminal's flight, be forwarded by the Governor of the State, to his Excellency of New York, with a requisition for the delivery of A.B., to the agent appointed to receive him. A warrant is, of course, issued to "any Constable of the State of New York," to arrest A.B. For what purpose?—to bring him before a magistrate where his identity may be established?—no, but to deliver him up to the foreign agent. Hence, the Constable may pick up the first likely

negro he finds in the street, and ship him to the south; and should it be found, on his arrival on the plantation, that the wrong man has come, it will also probably be found that the mistake is of no consequence to the planter. A few years since, the Governor of New York signed a warrant for the apprehension of 17 Virginia negroes, as fugitives from justice.[\[103\]](#) Under this warrant, a man who had lived in the neighborhood for three years, and had a wife and children, and who claimed to be free, was seized, on a Sunday evening, in the public highway, in West Chester County, N.Y., and without being permitted to take leave of his family, was instantly handcuffed, thrown into a carriage, and hurried to New York, and the next morning was on his voyage to Virginia.

[Footnote [103](#): There is no evidence that he knew they were negroes; or that he acted otherwise than in perfect good faith. The alleged crime was stealing a boat. The *real* crime, it is said, was stealing themselves and escaping in a boat. The most horrible abuses of these warrants can only be prevented by requiring proof of identity before delivery.]

Free colored men are converted into slaves not only by law, but also contrary to law. It is, of course, difficult to estimate the extent to which illegal kidnapping is carried, since a large number of cases must escape detection. In a work published by Judge Stroud, of Philadelphia, in 1827, he states, that it had been *ascertained* that more than *thirty* free colored persons, mostly children, had been kidnapped in that city within the last two years.[\[104\]](#)

[Footnote [104](#): Stroud's Sketch of the Slave Laws, p. 94.]

10. SUBJECTION TO INSULT AND OUTRAGE.

The feeling of the community towards these people, and the contempt with which they are treated, are indicated by the following notice, lately published by the proprietors of a menagerie, in New York. "The proprietors wish it to be understood, that people of color are not permitted to enter, *except when in attendance upon children and families.*" For two shillings,

any white scavenger would be freely admitted, and so would negroes, provided they came in a capacity that marked their dependence—their presence is offensive, *only* when they come as independent spectators, gratifying a laudable curiosity.

Even death, the great leveller, is not permitted to obliterate, among Christians, the distinction of caste, or to rescue the lifeless form of the colored man from the insults of his white brethren. In the porch of a Presbyterian Church, in Philadelphia, in 1837, was suspended a card, containing the form of a deed, to be given to purchasers of lots in a certain burial ground, and to enhance the value of the property, and to entice buyers, the following clause was inserted, "No person of *color*, nor any one who has been the subject of *execution*, shall be interred in said lot."

Our colored fellow-citizens, like others, are occasionally called to pass from one place to another; and in doing so are compelled to submit to innumerable hardships and indignities. They are frequently denied seats in our stage coaches; and although admitted upon the *decks* of our steam boats, are almost universally excluded from the cabins. Even women have been forced, in cold weather, to pass the night upon deck, and in one instance the wife of a colored clergyman lost her life in consequence of such an exposure.

The contempt poured upon these people by our laws, our churches, our seminaries, our professions, naturally invokes upon their heads the fierce wrath of vulgar malignity. In order to exhibit the actual condition of this portion of our population, we will here insert some *samples* of the outrages to which they are subjected, taken from the ordinary public journals.

In an account of the New York riots of 1834, the *Commercial Advertiser* says—"About twenty poor African (native American) families, have had their all destroyed, and have neither bed, clothing, nor food remaining. Their houses are completely eviscerated, their furniture a wreck, and the ruined and disconsolate tenants of the devoted houses are reduced to the necessity of applying to the corporation for bread."

The example set in New York was zealously followed in Philadelphia. "Some arrangement, it appears, existed between the mob and the white inhabitants, as the dwelling houses of the latter, contiguous to the

residences of the blacks, were illuminated and left undisturbed, while the huts of the negroes were singled out with unerring certainty. The furniture found in these houses was generally broken up and destroyed—beds ripped open and their contents scattered in the streets.... The number of houses assailed was not less than twenty. In one house there was a *corpse, which was thrown from the coffin, and in another a dead infant was taken out of the bed, and cast on the floor, the mother being at the same time barbarously treated.*"—*Philadelphia Gazette*.

"No case is reported of an attack having been *invited* or *provoked* by the residents of the dwellings assailed or destroyed. The extent of the depredations committed on the *three* evenings of riot and outrage can only be judged of by the number of houses damaged or destroyed. So far as ascertained, this amounts to FORTY-FIVE. One of the houses assaulted was occupied by an unfortunate cripple—who, unable to fly from the fury of the mob, was so beaten by some of the ruffians, that he has since died in consequence of the bruises and wounds inflicted.... For the last two days the Jersey steam boats have been loaded with numbers of the colored population, who, fearful their lives were not safe in this, determined to seek refuge in another State. On the Jersey side, tents were erected, and the negroes have taken up a temporary residence, until a prospect shall be offered for their perpetual location in some place of security and liberty."—*National Gazette*.

The facts we have now exhibited, abundantly prove the extreme cruelty and sinfulness of that prejudice against color which we are impiously told is an ORDINATION OF PROVIDENCE. Colonizationists, assuming the prejudice to be natural and invincible, propose to remove its victims beyond its influence. Abolitionists, on the contrary, remembering with the Psalmist, that "It is HE that hath made us, and not we ourselves," believe that the benevolent Father of us all requires us to treat with justice and kindness every portion of the human family, notwithstanding any particular organization he has been pleased to impress upon them. Instead, therefore, of gratifying and fostering this prejudice, by continually banishing from our country those against whom it is directed, Abolitionists are anxious to destroy the prejudice itself; feeling, to use the language of another, that—"It is time to recognize in the humblest portions of society, partakers of our nature with all its high prerogatives and awful destinies—time to remember

that our distinctions are *exterior* and evanescent, our resemblance real and permanent—that all is transient but what is moral and spiritual—that the only graces we can carry with us into another world, are graces of divine implantation, and that amid the rude incrustations of poverty and ignorance there lurks an imperishable jewel—a SOUL, susceptible of the highest spiritual beauty, destined, perhaps, to adorn the celestial abodes, and to shine for ever in the mediatorial diadem of the Son of God—*Take heed that ye despise not one of these little ones.*"

No. 13.

THE ANTI-SLAVERY EXAMINER.



CAN ABOLITIONISTS VOTE OR TAKE OFFICE UNDER

THE UNITED STATES CONSTITUTION?

"The preservation, propagation, and perpetuation of slavery is the vital and animating spirit of the National Government."

NEW YORK:
AMERICAN ANTI-SLAVERY SOCIETY,
142 NASSAU STREET

1815.

INTRODUCTION.

The American Anti-Slavery Society, at its Annual Meeting in May, 1844, adopted the following Resolution:

Resolved, That secession from the present United States government is the duty of every abolitionist; since no one can take office, or throw a vote for another to hold office, under the United States Constitution, without violating his anti-slavery principles, and rendering himself an abettor of the slaveholder in his sin.

The passage of this Resolution has caused two charges to be brought against the Society: *First*, that it is a *no-government* body, and that the whole doctrine of non-resistance is endorsed by this vote:—and *secondly*, that the Society transcended its proper sphere and constitutional powers by taking such a step.

The logic which infers that because a man thinks the Federal Government bad, he must necessarily think *all* government so, has at least, the merit and the charm of novelty. There is a spice of arrogance just perceptible, in the conclusion that the Constitution of these United States is so perfect, that one who dislikes it could never be satisfied with any form of government whatever!

Were O'Connell and his fellow Catholics non-resistants, because for two hundred years they submitted to exclusion from the House of Lords and the House of Commons, rather than qualify themselves for a seat by an oath abjuring the Pope? Were the *non-juring* Bishops of England non-resistants, when they went down to the grave without taking their seats in the House of Lords, rather than take an oath denying the Stuarts and to support the House of Hanover? Both might have purchased power at the price of one annual falsehood. There are some in this country who do not seem to think that price at all unreasonable. It were a rare compliment indeed to the non-resistants, if every exhibition of rigid principle on the part of an individual is to make the world suspect him of leaning towards their faith.

The Society is not opposed to government, but only to *this* Government based upon and acting for slavery.

With regard to the second charge, of exceeding its proper limits and trespassing on the rights of the minority, it is enough to say, that the object of the American Anti-Slavery Society is the "entire abolition of slavery in the United States." Of course it is its duty to find out all the sources of pro-slavery influence in the land. It is its right, it is its duty to try every institution in the land, no matter how venerable, or sacred, by the touchstone of anti-slavery principle; and if it finds any one false, to proclaim that fact to the world, with more or less of energy, according to its importance in society. It has tried the Constitution, and pronounced it unsound.

No member's conscience need be injured—The qualification for membership remains the same, "the belief that slave-holding is a heinous crime"—No new test has been set up—But the majority of the Society, for the time being, faithful to its duty of trying every institution by the light of the present day—of uttering its opinion on every passing event that touches the slave's welfare, has seen it to be duty to sound forth its warning,

NO UNION WITH SLAVEHOLDERS.

No one who did not vote for the Resolution is responsible for it. No one is asked to quit our platform. We, the majority, only ask him to extend to our opinions the same toleration that we extend to him, and agreeing to differ on this point, work together where we can. We proscribe no man for difference of opinion.

It is said, that having refused in 1840, to say that a man *ought to vote*, on the ground that such a resolution would be tyrannical and intolerant, the Society is manifestly inconsistent now in taking upon itself to say that no abolitionist *can* consistently vote. But the inconsistency is only apparent and not real.

There may be a thousand reasons why a particular individual ought not to do an act, though the act be innocent in itself. It would be tyranny therefore in a society which can properly take notice of but one subject, slavery, to promulgate the doctrine that all its members ought to do any particular act,

as for instance, to vote, to give money, to lecture, to petition, or the like. The particular circumstances and opinions of each one must regulate his actions. All we have a right to ask is, that he do for the slave's cause as much as he does for any other of equal importance. But when an act is wrong, it is no intolerance to say to the whole world that it ought *not to be done*. After the abolitionist has granted that slavery is wrong, we have the right to judge him by his own principles, and arraign him for inconsistency that, so believing, he helps the slaveholder by his oath.

The following pages have been hastily thrown together in explanation of the vote above recited. They make no pretension to a full argument of the topic. I hope that in a short time I shall get leisure sufficient to present to our opponents, unless some one does it for me, a full statement of the reasons which have led us to this step.

I am aware that we non-voters are rather singular. But history, from the earliest Christians downwards, is full of instances of men who refused all connection with government, and all the influence which office could bestow, rather than deny their principles, or aid in doing wrong. Yet I never heard them called either idiots or over-scrupulous. Sir Thomas More need never have mounted the scaffold, had he only consented to take the oath of supremacy. He had only to tell a lie with solemnity, as we are asked to do, and he might not only have saved his life, but, as the trimmers of his day would have told him, doubled his influence. Pitt resigned his place as Prime Minister of England, rather than break faith with the Catholics of Ireland. Should I not resign a petty ballot rather than break faith with the slave? But I was specially glad to find a distinct recognition of the principle upon which we have acted, applied to a different point, in the life of that Patriarch of the Anti-Slavery enterprise, Granville Sharpe. It is in a late number of the Edinburgh Review. While an underclerk in the War Office, he sympathized with our fathers in their struggle for independence. "Orders reached his office to ship munitions of war to the revolted colonies. If his hand had entered the account of such a cargo, it would have contracted in his eyes the stain of innocent blood. To avoid this pollution, he resigned his place and his means of subsistence at a period of life when he could no longer hope to find any other lucrative employment." As the thoughtful clerk of the War Office takes his hat down from the peg where it has used to hang for twenty years, methinks I hear one of our opponents cry out, "Friend Sharpe, you

are absurdly scrupulous." "You may innocently aid Government in doing wrong," adds another. While Liberty Party yelps at his heels, "My dear Sir, you are quite losing your influence!" And indeed it is melancholy to reflect how, from that moment the mighty underclerk of the War Office(!) dwindled into the mere Granville Sharpe of history! the man of whom Mansfield and Hargrave were content to learn law, and Wilberforce, philanthropy.

One friend proposes to vote for men who shall be pledged not to take office unless the oath to the Constitution is dispensed with, and who shall then go on to perform in their offices only such duties as we, their constituents, approve. He cites, in support of his view, the election of O'Connell to the House of Commons, in 1828, I believe, just one year before the "Oath of Supremacy," which was the objectionable one to the Catholics, was dispensed with. Now, if we stood in the same circumstances as the Catholics did in 1828, the example would be in point. When the public mind is thoroughly revolutionized, and ready for the change, when the billow has reached its height and begins to crest into foam, then such a measure may bring matters to a crisis. But let us first go through, in patience, as O'Connell did, our twenty years of agitation. Waiving all other objections, this plan seems to me mere playing at politics, and an entire waste of effort.

It loses our high position as moral reformers; it subjects us to all that malignant opposition and suspicion of motives which attend the array of parties; and while thus closing up our access to the national conscience, it wastes in fruitless caucussing and party tactics, the time and the effort which should have been directed to efficient agitation.

The history of our Union is lesson enough, for every candid mind, of the fatal effects of every, the least, compromise with evil. The experience of the fifty years passed under it, shows us the slaves trebling in numbers;—slaveholders monopolizing the offices and dictating the policy of the Government;—prostituting the strength and influence of the Nation to the support of slavery here and elsewhere;—trampling on the rights of the free States, and making the courts of the country their tools. To continue this disastrous alliance longer is madness. The trial of fifty years only proves that it is impossible for free and slave States to unite on any terms, without

all becoming partners in the guilt and responsible for the sin of slavery. Why prolong the experiment? Let every honest man join in the outcry of the American Anti-Slavery Society,

NO UNION WITH SLAVEHOLDERS.

WENDELL PHILLIPS.

Boston, Jan. 15, 1845.

THE NO-VOTING THEORY.

"God never made a CITIZEN, and no one will escape as a man, from the sins which he commits as a citizen."

Can an abolitionist consistently take office, or vote, under the Constitution of the United States?

1st. What is an abolitionist?

One who thinks slaveholding a sin in all circumstances, and desires its abolition. Of course such an one cannot consistently aid another in holding his slave;—in other words, I cannot innocently aid a man in doing that which I think wrong. No amount of fancied good will justify me in joining another in doing wrong, unless I adopt the principle "of doing evil that good may come."

2d. What do taking office and voting under the Constitution imply?

The President swears "to execute the office of president," and "to preserve, protect, and defend the Constitution of the United States." The judges "to discharge the duties incumbent upon them agreeably to the constitution and laws of the United States."

All executive, legislative, and judicial officers, both of the several States and of the General Government, before entering on the performance of their official duties, are bound to take an oath or affirmation, "*to support the Constitution of the United States.*" This is what every office-holder expressly *promises in so many words*. It is a contract between him and *the whole nation*. The voter, who, by voting, sends his fellow citizen into office as his representative, knowing beforehand that the taking of this oath is the first duty his agent will have to perform, does by his vote, request and authorize him to take it. He therefore, by voting, impliedly engages to support the Constitution. What one does by his agent he does himself. Of course no honest man will authorize and request another to do an act which

he thinks it wrong to do himself! Every voter, therefore, is bound to see, *before voting*, whether he could himself honestly swear to *support* the constitution. Now what does this oath of office-holders relate to and imply? "It applies," says Chief Justice Marshall, "in an especial manner, to their conduct in their official character." Judge Story, in his Commentaries on the Constitution, speaks of it as "a solemn obligation to the due execution of the trusts reposed in them, and to support the Constitution." It is universally considered throughout the country, by common men and by the courts, as a promise to do what the Constitution bids, and to avoid what it forbids. It was in the spirit of this oath, under which he spake, that Daniel Webster said in New York, "The Constitution gave it (slavery) SOLEMN GUARANTIES. To the full extent of these guaranties we are all bound by the Constitution. All the stipulations contained in the Constitution in favor of the slaveholding States ought to be fulfilled; and so far as depends on me, shall be fulfilled, in the fulness of their spirit and to the exactness of their letter."

It is more than an oath of allegiance; more than a mere promise that we will not resist the laws. For it is an engagement to "support them"; as an *officer* of government, to carry them into effect. Without such a promise on the part of its functionaries, how could government exist? It is more than the expression of that obligation which rests on all peaceable citizens to *submit* to laws, even though they will not actively *support* them. For it is the promise which the judge makes, that he will actually *do* the business of the courts; which the sheriff assumes, that he will actually *execute* the laws.

Let it be remarked, that it is an oath to support *the* Constitution—that is, *the whole of it*; there are no exceptions. And let it be remembered, that by it each *one* makes a contract with the *whole* nation, that he will do certain acts.

3d. What is the Constitution which each voter thus engages to support?

It contains the following clauses:

Art. 1, Sect. 2. Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole

number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three fifths of all other persons*.

Art. 1, Sect. 8. Congress shall have power ... to suppress insurrections.

Art. 4, Sec. 2. No person, held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due.

Art. 4, Sect. 4. The United States shall guarantee to every State in this Union a republican form of government; and shall protect each of them against invasion; and, on application of the legislature, or of the executive, (when the legislature cannot be convened) *against domestic violence*.

The first of these clauses, relating to representation, gives to 10,000 inhabitants of Carolina equal weight in the government with 40,000 inhabitants of Massachusetts, provided they are rich enough to hold 50,000 slaves:—and accordingly confers on a slaveholding community additional political power for every slave held among them, thus tempting them to continue to uphold the system.

Its result has been, in the language of John Quincy Adams, "to make the preservation, propagation, and perpetuation of slavery the vital and animating spirit of the National Government;" and again, to enable "a knot of slaveholders to give the law and prescribe the policy of the country." So that "since 1830 slavery, slaveholding, slavebreeding, and slavetrading have formed the whole foundation of the policy of the Federal Government." The second and the last articles relating to insurrection and domestic violence, perfectly innocent in themselves—yet being made with the fact directly in view that slavery exists among us, do deliberately pledge the whole national force against the unhappy slave if he imitate our fathers and resist oppression—thus making us partners in the guilt of sustaining slavery: the third is a promise, on the part of the whole North, to return fugitive slaves to their masters; a deed which God's law expressly condemns, and which every noble feeling of our nature repudiates with loathing and contempt.

These are the clauses which the abolitionist, by voting or taking office, engages to uphold. While he considers slaveholding to be sin, he still rewards the master with additional political power for every additional slave that he can purchase. Thinking slaveholding to be sin, he pledges to the master the aid of the whole army and navy of the nation to reduce his slave again to chains, should he at any time succeed a moment in throwing them off. Thinking slaveholding to be sin, he goes on, year after year, appointing by his vote judges and marshals to aid in hunting up the fugitives, and seeing that they are delivered back to those who claim them! How beautifully consistent are his *principles* and his *promises*!

OBJECTIONS.

OBJECTION I.

Allowing that the clause relating to representation and that relating to insurrections are immoral, it is contended that the article which orders the return of fugitive slaves was not meant to apply to slaves, but has been misconstrued and misapplied!

ANSWER. The meaning of the other two clauses, settled as it has been by the unbroken practice and cheerful acquiescence of the Government and people, no one has attempted to deny. This also has the same length of practice, and the same acquiescence, to show that it relates to slaves. No one denies that the Government and Courts have so construed it, and that the great body of the people have freely concurred in and supported this construction. And further, "The Madison Papers" (containing the debates of those who framed the Constitution, at the time it was made) settle beyond all doubt what meaning the framers intended to convey.

Look at the following extracts from those Papers:

Tuesday, August 28th, 1787.

Mr. Butler and Mr. Pinckney moved to require "fugitive slaves and servants to be delivered up like criminals."

Mr. Wilson. This would oblige the Executive of the State to do it, at the public expense.

Mr. Sherman saw no more propriety in the public seizing and surrendering a slave or servant, than a horse.

Mr. Butler withdrew his proposition, in order that some particular provision might be made, apart from this article.

Article 15, as amended, was then agreed to, *nem. con.*—Madison papers, pp. 1447-8.

Wednesday, August 29, 1787.

Mr. Butler moved to insert after Article 15, "If any person bound to service or labor in any of the United States, shall escape into another State, he or she shall not be discharged from such service or labor, in consequence of any regulations subsisting in the State to which they escape, but shall be delivered up to the person justly claiming their service or labor,"—which was agreed to, *nem. con.*—p. 1456.

And again, after the wording of the above article had been slightly changed, and the clause newly numbered, as in the present Constitution, we find another statement most clearly showing to what subject the whole was intended to refer:

Saturday, September 15, 1787.

Article 4, Section 2, (the third paragraph,) the term "legally" was struck out; and the words, "under the laws thereof," inserted after the word "State," in compliance with the wish of some who thought the term *legal* equivocal, and favoring the idea that SLAVERY was legal in a moral view.—p. 1589.

Is it not hence evident that SLAVERY was the subject referred to by the whole article?

The debates of the Convention held in the several States to ratify the Constitution, at the same time show clearly what meaning it was thought the framers had conveyed:—In Virginia Mr. Madison said,

Another clause secures to us that property which we now possess. At present, if any slave elopes to any of those States where slaves are free, he becomes emancipated by their laws. For the laws of the States are uncharitable to one another in this respect. But in this Constitution, "no person held to service, or labor, in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due." This clause was expressly inserted to enable owners of slaves to reclaim them. This is a better security than any that now exists.

Patrick Henry, in reply observed,

The clause which had been adduced by the gentleman was no more than this—that a runaway negro could be taken up in Maryland or New York.

Governor Randolph said,

But another clause of the Constitution proves the absurdity of the supposition. The words of the clause are, "No person held to service or labor in one State," &c. Every one knows that slaves are held to service and labor. If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, &c.

General Pinckney in South Carolina Convention observed,

"We have obtained a right to recover our slaves, in whatever part of America they may take refuge, which is a right we had not before."

In North Carolina, Mr. Iredell

Begged leave to explain the reason of this clause. In some of the Northern States, they have emancipated all their slaves. If any of our slaves, said he, go there and remain there a certain time, they would, by the present laws, be entitled to their freedom, so that their masters could not get them again. This would be extremely prejudicial to the inhabitants of the Southern States, and to prevent it, this clause is inserted in the Constitution. Though the word *slave* be not mentioned, this is the meaning of it. The Northern delegates, owing to their particular scruples on the subject of slavery, did not choose the word *slave* to be mentioned.

But even if TWO clauses are immoral that is enough for our purpose, and shews that no honest man should engage to uphold them. Who has the right to construe and expound the laws? Of course the Courts of the Nation. The Constitution provides (Article 3, Section 2,) that the Supreme Court shall be the final and only interpreter of its meaning. What says the Supreme Court? That this clause does relate to slaves, and order their return. All the other

courts concur in this opinion. But, say some, the courts are corrupt on this question. Let us appeal to the people. Nine hundred and ninety-nine out of every thousand answer, that the courts have construed it rightly, and almost as many cheerfully support it. If the unanimous, concurrent, unbroken practice of every department of the Government, judicial, legislative, and executive, and the acquiescence of the people for fifty years, do not prove which is the true construction, then how and where can such a question ever be settled? If the people and the courts of the land do not know what they themselves mean, who has authority to settle their meaning for them?

If the Constitution is not what history, unbroken practice, and the courts prove that our fathers intended to make it, and what too, their descendants, this nation say they did make it, and agree to uphold,—who shall decide what the Constitution is?

This is the sense then in which the Nation understand that the promise is made to them. The Nation *understand* that the judge pledges himself to return fugitive slaves. The judge knows this when he takes the oath. And Paley expresses the opinion of all writers on morals, as well as the conviction of all honest men, when he says, "that a promise is binding in that sense in which the promiser thought at the time that the other party understood it."

OBJECTION II.

A promise to do an immoral act is not binding: therefore an oath to support the Constitution of the United States, does not bind one to support any provisions of that instrument which are repugnant to his ideas of right. And an abolitionist, thinking it wrong to return slaves, may as an office-holder, innocently and properly take an oath to support a Constitution which commands such return.

ANSWER. Observe that this objection allows the Constitution to be pro-slavery, and admits that there are clauses in it which no abolitionist ought to carry out or support.

And observe, further, that we all agree, that a bad promise is better broken than kept—that every abolitionist, who has before now taken the oath to the

Constitution, is bound to break it, and disobey the pro-slavery clauses of that instrument. So far there is no difference between us. But the point in dispute now is, whether a man, having found out that certain requirements of the Constitution are wrong, can, after that, innocently swear to support and obey them, *all the while meaning not to do so*.

Now I contend that such loose construction of our promises is contrary alike to honor, to fair dealing, and to truthfulness—that it tends to destroy utterly that confidence between man and man which binds society together, and leads, in matters of government, to absolute tyranny.

The Constitution is a series of contracts made by each individual with every other of the fourteen millions. A man's oath is evidence of his assent to this contract. If I offer a man the copy of an agreement, and he, after reading, swears to perform it, have I not a right to infer from his oath that he assents to the *rightfulness* of the articles of that paper? What more solemn form of expressing his assent could he select? A man's oath expresses his conviction of the rightfulness of the actions he promises to do, as well as his determination to do them. If this be not so, I can have no trust in any man's word. He may take my money, promise to do what I wish in return, and yet, keeping my money, tell me, on the morrow, that he shall not keep his promise, and never meant to, because the act, his conscience tells him, is wrong. Who would trust property to such men, or such maxims in the common affairs of life? Shall we not be as honest in the Senate House as on 'Change? The North makes a contract with the South by which she receives certain benefits, and agrees to render certain services. The benefits she carefully keeps—but the services she refuses to render, because immoral contracts are not binding! Is this fair dealing? It is the rule alike of law and common sense, that if we are not able, from *any cause*, to furnish the article we have agreed to, we ought to return the pay we have received. If power is put into our hands on certain conditions, and we find ourselves unable to comply with those conditions, we ought to surrender the power back to those who gave it.

Immoral laws are doubtless void, and should not be obeyed. But the question is here, whether one knowing a law to be immoral, may innocently promise to obey it in order to get into office? The people have settled the conditions on which one may take office. The first is, that he assent to their

Constitution. Is it honest to accept power with the intention at the time of not keeping the conditions?—The rightfulness of those conditions is not here the question.

OBJECTION III.

I swear to support the Constitution, as *I understand it*. Certain parts of it, in my opinion, contradict others and are therefore void.

ANSWER. Will any one take the title deed of his house and carry it to the man he bought of, and let him keep the covenants of that paper as he says "he understands them?" Do we not all recognize the justice of having some third, disinterested party to judge between two disputants about the meaning of contracts? Who ever heard of a contract of which each party was at liberty to keep as much as he thought proper?

As in all other contracts, so in that of the Constitution, there is a power provided to affix the proper construction to the instrument, and that construction both parties are bound to abide by, or repudiate the *whole* contract. That power is the Supreme Court of the United States.

Do we seek the common sense, practical view of this question? Go to the Exchange and ask any broker how many dollars he will trust any man with, who avows his right to make promises with the design, at the time, of breaking some parts, and not feeling called upon to state which those parts will be?

Do you seek the moral view of the point, which philosophers have taken? Paley says, "A promise is binding in that sense in which the promiser thought at the time of making that the other party understood it." Is there any doubt what meaning the great body of the American people attach to the Constitution and the official oath? They are that party to whom the promise is made.

But, say some, our lives are notice to the whole people what meaning we attach to the oath, and we will protest when we swear, that we do not include in our oath the pro-slavery clauses. You may as well utter the protest now, as when you are swearing—or at home, equally as well as within the State House. For no such protest can be of any avail. The Chief

Justice stands up to administer to me the oath of some office, no matter which. "Sir," say I, "I must take that oath with a qualification, excluding certain clauses." His reply will be, "Sir, I have no discretion in this matter. I am here merely to administer a prescribed form of oath. If you assent to it, you are qualified for your station. If you do not, you cannot enter. I have no authority given me to listen to exceptions. I am a servant—the people are my masters—here is what they require that you support, not this or that part of the Constitution, but '*the Constitution*,' that is, the *whole*."

Baffled here, I turn to the people. I publish my opinions in newspapers. I proclaim them at conventions, I spread them through the country on the wings of a thousand presses. Does this avail me? Yes, says Liberty party, if after this, men choose to vote for you, it is evident they mean you shall take the oath as you have given notice that you understand it.

Well, the voters in Boston, with this understanding, elect me to Congress, and I proceed to Washington. But here arises a difficulty,—my constituents at home have assented—but when I get to Congress, I find I am not the representative of Boston only, but of the whole country. The interests of Carolina are committed to my hands as well as those of Massachusetts; I find that the contract I made by my oath was not with Boston, but with the whole nation. It is the *nation* that gives me the power to declare war and make peace—to lay taxes on cotton, and control the commerce of New Orleans. The nation prescribed the conditions in 1789, when the Constitution was settled, and though Boston may be willing to accept me on other terms, Carolina is not willing. Boston has accepted my protest, and says, "Take office." Carolina says, "The oath you swear is sworn to me, as well as to the rest—I demand the whole bond." In other words, when I have made my protest, what evidence is there that *the nation*, the other party to the contract, assents to it? There can be none until that nation amends its Constitution. Massachusetts when she accepted that Constitution, bound herself to send only such men as could swear to return slaves. If by an underhand compromise with some of her citizens, she sends persons of other sentiments, she is perjured, and any one who goes on such an errand is a partner in the perjury. Massachusetts has no right to assent to my protest—she has no right to send representatives, except on certain conditions. She cannot vary those conditions, without leave from those whose interests are to be affected by the change, that is, the whole nation. Those conditions are

written down in the Constitution. Do she and South Carolina differ, as to the meaning? The Court will decide for them.

But, says the objector, do you mean to say that I swear to support the Constitution, not as I understand it, but as some judge understands it? Yes, I do—otherwise there is no such thing as law. This right of private judgment, for which he contends, exists in religion—but not in Government. Law is a rule *prescribed*. The party prescribing must have the right to construe his own rule, otherwise there would be as many laws as there are individual consciences. Statutes would be but recommendations if every man was at liberty to understand and obey them as he thought proper. But I need not argue this. The absurdity of a Government that has no right to govern—and of laws which have no fixed meaning—but which each man construes to mean what he pleases and obeys accordingly—must be evident to every one.

What more power did the most despotic of the English Stuarts ask, than the right, after having sworn to laws, to break such as their consciences disapproved? It is the essence of tyranny.

What is the Constitution of the United States? In good old fashioned times we thought we knew, when we had read it and listened to the court's exposition. But we have improved upon that. The Liberty party man says, it is for him "what he understands it." John C. Calhoun, of course, has the same right, and instead of "Liberty regulated by law," we have liberty regulated by fourteen millions of understandings!

The Liberty party man takes office on conditions, which, he says, are not binding upon him. He gives us notice that he shall use the power as he thinks right, without any regard to these conditions of his oath. Well, if this is law, it is good for all. John C. Calhoun can of course take office with the same broad liberty, and swear to support the Constitution "as *he* understands it." He has told us often what that "understanding" is—"to sustain Slavery." Of course having made this public, if, after that, Carolina sends him, according to Liberty party logic, it is evidence that Massachusetts assents to his "understanding," and accepts his oath with that meaning! Why I thought I had fathomed the pro-slavery depths of the Constitution when I read over all its wicked clauses—but that is skimming

only the surface, if the Constitution allows every man, to whom it commits power to use it, as he chooses to "understand" the conditions, and not as the nation understands them. If with this right, Abolitionists may take office and help Liberty, we must remember that by the same rule, slaveholders may take office and lawfully use all their power to help Slavery. If this be so, how absurd to keep crying out of this and the other thing it is "unconstitutional."

Away with such logic! If we have a Constitution, let us remember Jefferson's advice, and not make it "waste paper by construction." The man who tampers thus with the sacred obligation of an oath,—swears, and Jesuit like, keeps "reserved meanings" in his own breast,—does more harm to society by loosening the foundations of morals, than he would do good, did his one falsehood free every slave from the Potomac to the Del Norte.

OBJECTION IV.

"The oath does not mean that I will positively do what I swear to do, but only that I will do it, *or submit* to the penalty the law awards. If my actions in office don't suit the nation, let them impeach me."

ANSWER. That is, John Tyler may, without consulting Congress, plunge us into war with Mexico—incur fifty millions of public debt—lose a hundred thousand lives—and the *sufficient recompense* to this nation will be to impeach John Tyler, Esq., and send him home to his slaves! These are the wise safeguards of Constitutional liberty! He has faithfully kept it "as he understands it." What is a Russian slave? One who holds life, property, and all, at the mercy of the Czar's idea of right. Does not this description of the power every officer has here, under our Constitution, reduce Americans to the same condition?

But, is it true that the bearing of the penalty is an excuse for breach of our official oaths?

The Judge who, in questions of divorce, has trifled with the sanctity of the marriage tie—who, in matters of property has decided unjustly, and taken bribes—in capital cases has so dealt judgment as to send innocent men to the gallows—may cry out, "If you don't like me, impeach me." But will

impeachment restore the dead to life, or the husband to his defamed wife? Would the community consider his submission to impeachment as equivalent to the keeping of his oath of office, and thenceforward view him as an honest, truth-speaking, unperjured man? It is idle to suppose so. Yet the interests committed to some of our officeholders' keeping, are more important often than even those which a Judge controls. And we must remember that men's ideas of right always differ. To admit such a principle into the construction of oaths, if it enable one man to do much good, will enable scoundrels who creep into office to do much harm, "according to *their* consciences." But yet the rule, if it be admitted, must be universal. Liberty becomes, then, matter of accident.

OBJECTION V.

I shall resign whenever a case occurs that requires me to aid in returning a fugitive slave.

ANSWER. "The office-holder has promised active obedience to the Constitution in every exigency which it has contemplated and sought to provide for. If he promised, not meaning to perform in certain cases, is he not doubly dishonest? Dishonest to his own conscience in promising to do wrong, and to his fellow-citizens in purposing from the first to break his oath, as he knew they understood it? If he had sworn, not regarding anything as immoral which he bound himself to do, and afterwards found in the oath something against his conscience of which he was not at first aware, or if by change of views he had come to deem sinful what before he thought right, then doubtless, by promptly resigning, he might escape guilt. But is not the case different, when among the acts promised are some known at the time to be morally wrong? 'It is a sin to swear unto sin,' says the poet, although it be, as he truly adds, 'a greater sin to keep the sinful oath.'"

The captain has no right to put to sea, and resign when the storm comes. Besides what supports a wicked government more than good men taking office under it, even though they secretly determine not to carry out all its provisions? The slave balancing in his lonely hovel the chance of escape, knows nothing of your secret reservations, your future intentions. He sees only the swarming millions at the North ostensibly sworn to restore him to

his master, if he escape a little way. Perchance it is your false oath, which you don't mean to keep, that makes him turn from the attempt in despair. He knows you only—the world knows only by your *actions*, not your *intentions*, and those side with his master. The prayer which he lifts to Heaven, in his despair, numbers you rightly among his oppressors.

OBJECTION VI.

I shall only take such an office as brings me into no connection with slavery.

ANSWER. Government is a whole; unless each in his circle aids his next neighbor, the machine will stand still. The Senator does not himself return the fugitive slave, but he appoints the Marshal, whose duty it is to do so. The State representative does not himself appoint the Judge who signs the warrant for the slave's recapture, but he chooses the United States Senator who does appoint that Judge. The elector does not himself order out the militia to resist "domestic violence," but he elects the President, whose duty requires, that a case occurring, he should do so.

To suppose that each of these may do that part of his duty that suits him, and leave the rest undone, is *practical anarchy*. It is bringing ourselves precisely to that state which the Hebrew describes. "In those days there was no king in Israel, but each man did what was right in his own eyes." This is all consistent in us, who hold that man is to do right, even if anarchy follows. How absurd to set up such a scheme, and miscall it a *government*,—where nobody governs, but everybody does as he pleases.

OBJECTION VII.

As men and all their works are imperfect, we may innocently "support a Government which, along with many blessings, assists in the perpetration of some wrong."

ANSWER. As nobody disputes that we may rightly assist the worst Government in doing good, provided we can do so without at the same time aiding it in the wrong it perpetrates, this must mean, of course, that it is right to aid and obey a Government *in doing wrong*, if we think that, on the

whole, the Government effects more good than harm. Otherwise the whole argument is irrelevant, for this is the point in dispute; since every office of any consequence under the United States Constitution has some immediate connection with Slavery. Let us see to what lengths this principle will carry one. Herod's servants, then, were right in slaying every child in Bethlehem, from two years old and under, provided they thought Herod's Government, on the whole, more a blessing than a curse to Judea! The soldiers of Charles II. were justified in shooting the Covenanters on the muirs of Scotland, if they thought his rule was better, on the whole, for England, than anarchy! According to this theory, the moment the magic wand of Government touches our vices, they start up into virtues! But has Government any peculiar character or privilege in this respect? Oh, no—Government is only an association of individuals, and the same rules of morality which govern my conduct in relation to a thousand men, ought to regulate my conduct to any one. Therefore, I may innocently aid a man in doing wrong, if I think that, on the whole, he has more virtues than vices. If he gives bread to the hungry six days in the week, I may rightly help him, on the seventh, in forging bank notes, or murdering his father! The principle goes this length, and every length, or it cannot be proved to exist at all. It ends at last, practically, in the old maxim, that the subject and the soldier have no right to keep any conscience, but have only to obey the rulers they serve: for there are few, if any, Governments this side of Satan's, which could not, in some sense, be said to do more good than harm. Now I candidly confess, that I had rather be covered all over with inconsistencies, in the struggle to keep my hands clean, than settle quietly down on such a principle as this. It is supposing that we may—

"To do a great right, do a little wrong;"

a rule, which the master poet of human nature has rebuked. It is doing evil that good may come—a doctrine, of which an Apostle has pronounced the condemnation.

And let it be remembered that in dealing with the question of slavery, we are not dealing with extreme cases. Slavery is no minute evil which lynx-eyed suspicion has ferreted out. Every sixth man is a slave. The ermine of justice is stained. The national banner clings to the flag-staff heavy with

blood. "The preservation of slavery," says our oldest and ablest statesman, "is the vital and animating *spirit* of the National Government."

Surely IF it be true that a man may justifiably stand connected with a government in which he sees some slight evils—still it is also true, even then, that governments *may* sin so atrociously, so enormously, may make evil so much the *purpose* of their being, as to render it the duty of honest men to wash their hands of them.

I may give money to a friend whose life has some things in it which I do not fully approve—but when his nights are passed in the brothel, and his days in drunkenness, when he uses his talents to seduce others, and his gold to pave their road to ruin, surely the case is changed.

I may perhaps sacrifice health by staying awhile in a room rather overheated, but I shall certainly see it to be my duty to rush out, when the whole house is in full blaze.

OBJECTION VIII.

God intended that society and governments should exist. We therefore are bound to support them. He has conferred upon us the rights of citizenship in this country, and we cannot escape from the responsibility of exercising them. God made us *citizens*.

ANSWER. This reminds me of an old story I have heard. When the Legislature were asked to set off a portion of the town of Dorchester and call it South Boston, the old minister of the town is said to have objected, saying, "God made it Dorchester, and Dorchester it ought to be."

God made us social beings, it is true, but *society* is not necessarily the Constitution of the United States! Because God meant some form of government should exist, does not at all prove that we are justified in supporting a wicked one. Man confers the rights and regulates the duties of citizenship. God never made a *citizen*, and no one will escape, as a man, from the sins he commits as a citizen. This is the first time that it has ever been held an excuse for sin that we "went with the multitude to do evil!"

Certainly we can be under no *such* responsibility to become and remain *citizens*, as will excuse us from the sinful acts which as such citizens we are called to commit. Does God make obligatory on his creature the support of institutions which require him to do acts in themselves wrong? To suppose so, were to confound all the rules of God's moral kingdom.

President Wayland has lately been illustrating, and giving his testimony to the principle, that a combination of men cannot change the moral character of an act, which is in itself sinful—that the law of morals is binding the same on communities, corporations, &c. as on individuals.

After describing slavery, and saying that to hold a man in such a state is wrong—he goes on:

"I will offer but one more supposition. Suppose that any number, for instance one half of the families in our neighborhood, should by law enact that the weaker half should be slaves, that we would exercise over them the authority of masters, prohibit by law their instruction, and concert among ourselves means for holding them permanently in their present situation. In what manner would this alter the moral aspect of the case?"

A law in this case is merely a determination of one party, in which all unite, to hold the other party in bondage; and a compact by which the whole party bind themselves to assist every individual of themselves to subdue all resistance from the other party, and guaranteeing to each other that exercise of this power over the weaker party which they now possess.

Now I cannot see that this in any respect changes the nature of the parties. They remain, as before, human beings, possessing the same intellectual and moral nature, holding the same relations to each other and to God, and still under the same unchangeable law, Thou shalt love thy neighbor as thyself. By the act of holding a man in bondage, this law is violated. Wrong is done, moral evil is committed. In the former case it was done by the individual; now it is done by the individual and the society. Before, the individual was responsible only for his own wrong; now he is responsible both for his own, and also, as a member

of the society, for all the wrong which the society binds itself to uphold and render perpetual.

The scriptures frequently allude to the fact, that wrong done by law, that is by society, is amenable to the same retribution as wrong done by the individual. Thus, Psalm 94:20-23. 'Shall the throne of iniquity have fellowship with them which frame mischief by a law, and gather themselves together against the soul of the righteous, and condemn the innocent blood? But the Lord is my defence; and my God is the rock of my refuge. And he shall bring upon them their own iniquity, and shall cut them off in their own wickedness; yea, the Lord our God shall cut them off' So also Isaiah 10:1-4. 'Wo unto them that decree unrighteous decrees, and that write grievousness which they have prescribed.' &c. Besides, persecution for the sake of religious opinion is always perpetrated by law; but this in no manner affects its moral character.

There is, however, one point of difference, which arises from the fact that this wrong has been established by law. It becomes a social wrong. The individual, or those who preceded him, may have surrendered their individual right over it to the society. In this case it may happen that the individual cannot act as he might act, if the law had not been made. In this case the evil can only be eradicated by changing the opinions of the society, and inducing them to abolish the law. It will however be apparent that this, as I said before, does not change the relation of the parties either to each other or to God. The wrong exists as before. The individual act is wrong. The law which protects it is wrong. The whole society, in putting the law into execution, is wrong. Before only the individual, now, the whole society, becomes the wrong doer, and for that wrong, both the individuals and the society are held responsible in the sight of God."

If such "individual act is wrong," the man who knowingly does it is surely a sinner. Does God, through society, require men to sin?

OBJECTION IX.

If not being non-resistants, we concede to mankind the right to frame Governments, which must, from the very nature of man, be more or less evil, the right or duty to support them, when framed, necessarily follows.

ANSWER. I do not think it follows at all. Mankind, that is, any number of them, have a right to set up such forms of worship as they see fit, but when they have done so, does it necessarily follow that I am in duty bound to support any one of them, whether I approve it or not? Government is precisely like any other voluntary association of individuals—a temperance or anti-slavery society, a bank or railroad corporation. I join it, or not, as duty dictates. If a temperance society exists in the village where I am, that love for my race which bids me seek its highest good, commands me to join it. So if a Government is formed in the land where I live, the same feeling bids me to support it, if I innocently can. This is the whole length of my duty to Government. From the necessity of the case, and that constitution of things which God has ordained, it follows that in any specified district, the majority must rule—hence results the duty of the minority to submit. But we must carefully preserve the distinction between *submission* and *obedience*—between *submission* and *support*. If the majority set up an immoral Government, I obey those laws which seem to me good, because they are good—and I submit to all the penalties which my disobedience of the rest brings on me. This is alike the dictate of common sense, and the command of Christianity. And it must be the true doctrine, since any other obliges me to obey the majority if they command me to commit murder, a rule which even the Tory Blackstone has denied. Of course for me to do anything I deem wrong, is the same, in quality, as to commit murder.

OBJECTION X.

But it is said, your theory results in good men leaving government to the dishonest and wicked.

ANSWER. Well, if to sustain government we must sacrifice honesty, government could not be in a more appropriate place, than in the hands of dishonest men.

But it by no means follows, that if I go out of government, I leave nothing but dishonest men behind. An act may be sin to me, which another may sincerely think right—and if so, let him do it, till he changes his mind. I leave government in the hands of those whom I do not think as clear-sighted as myself, but not necessarily in the hands of the dishonest. Whether it be so in this country now, is not, at present, the question, but whether it would be so necessarily, in all cases. The real question is, what is the duty of those who presume to think that God has given them clearer views of duty than the bulk of those among whom they live?

Don't think us conceited in supposing ourselves a little more enlightened than our neighbors. It is no great thing after all to be a little better than a lynching—mobocratic—slaveholding—debt repudiating community.

What then is the duty of such men? Doubtless to do all they can to extend to others the light they enjoy.

Will they best do so by compromising their principles? by letting their political life give the lie to their life of reform? Who will have the most influence, he whose life is consistent, or he who says one thing to-day, and swears another thing to-morrow—who looks one way and rows another? My object is to let men *understand me*, and I submit that the body of the Roman people understood better, and felt more earnestly, the struggle between the people and the princes, when the little band of democrats *left the city* and encamped on *Mons Sacer*, *outside*, than while they remained mixed up and voting with their masters, shoulder to shoulder. *Dissolution* is our *Mons Sacer*—God grant that it may become equally famous in the world's history as the spot where the right triumphed.

It is foolish to suppose that the position of such men, divested of the glare of official distinction, has no weight with the people. If it were so, I am still bound to remember that I was not sent into the world *to have influence*, but to do my duty according to my own conscience. But it is not so. People do know an honest man when they see him. (I allow that this is so rare an event now-a-days, as almost to justify one in supposing they might have forgotten how he looked.) They will give a man credit, when his life is one manly testimony to the truthfulness of his lips. Even Liberty party, blind as she is, has light enough to see that "Consistency is the jewel, the everything of such a cause as ours." The position of a non-voter, in a land where the ballot is so much idolized, kindles in every beholder's bosom something of the warm sympathy which waits on the persecuted, carries with it all the weight of a disinterested testimony to truth, and pricks each voter's conscience with an uneasy doubt, whether after all voting *is* right. There is constantly a Mordecai in the gate.

I admit that we should strive to have a *political* influence—for with politics is bound up much of the welfare of the people. But this objection supposes that the ballot box is the *only* means of political influence. Now it is a good thing that every man should have the right to vote. But it is by no means necessary that every man should actually vote, in order to influence his times. We by no means necessarily desert our social duty when we refuse to take office, or to confer it. Lafayette did better service to the cause of French liberty when he retired to Lagrange and refused to acknowledge Napoleon, than he could have done had he stood, for years, at the tyrant's right hand. From the silence of that chamber there went forth a voice—from the darkness of that retreat there burst forth a light; feeble indeed at first, like the struggling beams of the morning, but destined like them to brighten into perfect day.

This objection, that we non-voters shall lose all our influence, confounds the broad distinction between *influence* and *power*. *Influence* every honest man must and will have, in exact proportion to his honesty and ability. God always annexes influence to worth. The world, however unwilling, can never get free from the influence of such a man. This influence the possession of office cannot give, nor the want of it take away. For the exercise of such influence as this, man is responsible. *Power* we buy of our fellow men at a certain price. Before making the bargain it is our duty to see

that we do not pay "too dear for our whistle." He who buys it at the price of truth and honor, buys only weakness—and sins beside.

Of those who go to the utmost verge of honesty in order to reach the seats of worldly power, and barter a pure conscience for a weighty name, it may be well said with old Fuller, "They need to have steady heads who can dive into these gulfs of policy, and come out with a safe conscience."

OBJECTION XI.

This withdrawing from government is pharisaical—"Shall we, 'weak, sinful men,'" one says, "perhaps even more sinful than the slaveholder, cry out, No Union with Slaveholders?" Such a course is wanting in brotherly kindness.

ANSWER. Because we refuse to aid a wrong-doer in his sin, we by no means proclaim, or assume, that we think our *whole character* better than his. It is neither pharisaical to have opinions, nor presumptuous to guide our lives by them. If I have joined with others in doing wrong, is it either presumptuous or unkind, when my eyes are opened, to refuse to go any further with them in their career of guilt? Does love to the thief require me to help him in stealing? Yet this is all we refuse to do. We will extend to the slaveholder all the courtesy he will allow. If he is hungry, we will feed him; if he is in want, both hands shall be stretched out for his aid. We will give him full credit for all the good that he does, and our deep sympathy in all the temptations under whose strength he falls. But to help him in his sin, to remain partners with him in the slave-trade, is more than he has a right to ask. He would be a strange preacher who should set out to reform his circle by joining in all their sins! It is a principle similar to that which the tipsy Duke of Norfolk acted on, when seeing a drunken friend in the gutter, he cried out, "My dear fellow, I can't help you out, but I'll do better, I'll lie down by your side."

OBJECTION XII.

But consider, the abstaining from all share in Government will leave bad men to have everything their own way—admit Texas—extend slavery, &c. &c.

ANSWER. That is no matter of mine. God, the great conservative power of the Universe, when he established the right, saw to it that it should always be the safest and best. He never laid upon a poor finite worm the staggering load of following out into infinity the complex results of his actions. We may rest on the bosom of Infinite Wisdom, confident that it is enough for us to do justice, he will see to it that happiness results.

OBJECTION XIII.

But the same conscientious objection against promising your support to government, ought to lead you to avoid actually giving your support to it by paying taxes or sueing in the courts.

ANSWER. This is what logicians call a *reductio ad absurdum*: an attempt to prove our principle unsound by showing that, fairly carried out, it leads to an absurdity. But granting all it asks, it does not saddle us with any absurdity at all. It is perfectly possible to live without petitioning, sueing, or holding stocks. Thousands in this country have lived, died, and been buried, without doing either. And does it load us with any absurdity to prove that we shall be obliged to do from principle, what the majority of our fellow-citizens do from choice? We lawyers may think it is an absurdity to say a man can't sue, for, like the Apostle at Ephesus, it touches our "craft," but that don't go far to prove it. Then, as to taxes, doubtless many cases might be imagined, when every one would allow it to be our duty to resist the slightest taxation, did Christianity allow it, with "war to the hilt." If such cases may ever arise, why may not this be one?

Until I become an Irishman, no one will ever convince me that I ought to vote, by proving that I ought not to pay taxes! Suppose all these difficulties do really encompass us, it will not be the first time that the doing of one moral duty has revealed a dozen others which we never thought of. The child has climbed the hill over his native village, which he thought the end of the world, and lo! there are mountains beyond! He won't remedy the matter by creeping back to his cradle and disbelieving in mountains!

But then, is there any such inconsistency in non-voters sueing and paying taxes?

Look at it. A. and B. have agreed on certain laws, and appointed C. to execute them. A. owes me, who am no party to the contract, a just debt, which his laws oblige him to pay. Do I acknowledge the rightfulness of his relation to B. and C. by asking C. to use the power given him, in my behalf? It appears to me that I do not. I may surely ask A. to pay me my debt—why not then ask the keeper, whom he has appointed over himself, to make him do so?

I am a prisoner among pirates. The mate is abusing me in some way contrary to their laws. Do I recognize the rightfulness of the Captain's authority, by asking him to use the power the mate has consented to give him, to protect me? It seems to me that I do not necessarily endorse the means by which a man has acquired money or power, when I ask him to use either in my behalf.

An alien does not recognize the rightfulness of a government by living under it. It has always been held that an English subject may swear allegiance to an usurper and yet not be guilty of treason to the true king. Because he may innocently acknowledge the king *de facto* (the king *in deed*,) without assuming him to be king *de jure* (king by *right*.) The distinction itself is as old as the time of Edward the First. The principle is equally applicable to suits. It has been universally acted on and allowed. The Catholic, who shrank from acknowledging the heretical Government of England, always, I believe, sued in her courts.

Who could convince a common man, that by sueing in Constantinople or Timbuctoo, he does an act which makes him responsible for the character of those governments?

Then, as for taxes. It is only our voluntary acts for which we are responsible. And when did government ever trust tax-paying to the voluntary good will of its subjects? When it does so, I, for one, will refuse to pay.

When did any sane man conclude that our Saviour's voluntary payment of a tax acknowledged the rightfulness of Rome's authority over Judea?

"The States," says Chief Justice Marshall, "have only not to elect Senators, and this government expires without a struggle."

Every November, then, we *create* the government anew. Now, what "instinct" will tell a common-sense man, that the act of a *sovereign*,—voting—which creates a wicked government, is, *essentially* the same as the submission of a *subject*,—tax-paying,—an act done without our consent. It should be remembered, that we vote as *sovereigns*,—we pay taxes as *subjects*. Who supposes that the humble tax-payer of Austria, who does not, perhaps, know in what name the charter of his bondage runs, is responsible for the doings of Metternich? And what sane man likens his position to that of the voting sovereign of the United States? My innocent acts may, through others' malice, result in evil. In that case, it will be for my best judgment to determine whether to continue or cease them. They are not thereby rendered essentially sinful. For instance, I walk out on Sabbath morning. The priest over the way will exclaim, "Sabbath-breaker," and the infidel will delude his followers, by telling them I have no regard for Christianity. Still, it will be for me to settle which, in present circumstances, is best,—to remain in, and not be misconstrued, or to go out and bear a testimony against the superstitious keeping of the day. Different circumstances will dictate different action on such a point.

I may often be the *occasion* of evil when I am not responsible for it. Many innocent acts *occasion* evil, and in such case all I am bound to ask myself before doing such *innocent act*, is, "Shall I occasion, on the whole, more harm or good." There are many cases where doing a duty even, we shall occasion evil and sin in others. To save a slaveholder from drowning, when we know he has made a will freeing his slaves, would put off, perhaps forever, their emancipation, but of course that is not my fault. This making a man responsible for all the evil his acts, *incidentally*, without his will, occasion, reminds me of that principle of Turkish law which Dr. Clarke mentions, in his travels, and which they call "homicide by an intermediate cause." The case he relates is this: A young man in love poisoned himself, because the girl's father refused his consent to the marriage. The Cadi sentenced the father to pay a fine of \$80, saying "if you had not had a daughter, this young man had not loved; if he had not loved, he had never been disappointed; if not disappointed, he would never have taken poison." It was the same Cadi possibly, who sentenced the island of Samos to pay for the wrecking of a vessel, on the principle that "if the island had not been in the way, the vessel would never have been wrecked!"

Then of taxes on imports. Buying and selling, and carrying from country to country, is good and innocent. But government, if I trade here, will take occasion to squeeze money out of me. Very well. I shall deliberate whether I will cease trading, and deprive them of the opportunity, or go on and use my wealth to reform them. 'Tis a question of expediency, not of right, which my judgment, not my conscience, must settle. An act of mine, innocent in itself, and done from right motives, no after act of another's can make a sin. To import, is rightful. After-taxation, against my consent, cannot make it wrong. Neither am I obliged to smuggle, in order to avoid it. I include in these remarks, all taxes, whether on property, or imports, or railroads.

A chemist, hundreds of years ago, finds out how to temper steel. The art is useful for making knives, lancets, and machinery. But he knows that the bad will abuse it by making swords and daggers. Is he responsible? Certainly not.

Similar to this is trading in America,—knowing government will thus have an opportunity to increase its revenue.

But suppose the chemist to see two men fighting, one has the other down,—to the first our chemist presents a finely tempered dagger.

Such is voting under the United States Constitution—appointing an officer to help the oppressor.

The difference between voting and tax-paying is simply this: I may do an act right in itself, though I know some evil will result. Paul was bound to preach the gospel to the Jews, though he knew some of them would thereby be led to add to their sins by cursing and mobbing him.

So I may locate property in Philadelphia, trade there, and ride on its railroads, though I know government will, without my consent, thereby enrich itself. Other things being equal, of course I shall not allow it the opportunity. But the advantages and good results of my doing so, *may be* such as would make it my duty there to live and trade, even subject to such an evil.

But on the other hand, I may not do an act wrong in itself to secure any amount of fancied good.

Now, appointing a man by my vote to a pro-slavery office, (and such is every one under the United States Constitution,) is wrong in itself, and no other good deeds which such officer may do, will justify an abolitionist in so appointing him.

Let it not be said, that this reasoning will apply to voting—that voting is the right of every human being, (which I grant only for the sake of argument,) and innocent in itself.

Voting *under our Constitution* is appointing a man to swear to protect, and actually to protect slavery. Now, appointing agents generally is the right of every man, and innocent in itself, but appointing an agent to commit a murder is sin.

I trade, and government taxes me; do I authorize it? No.

I vote, and the marshal whom my agent appoints, returns a slave to South Carolina. Do I authorize it? *Yes*. I knew it would be his *sworn duty*, when I voted; and I assented to it, by voting under the Constitution which makes it his duty. If I trade, it is said, I may foresee that government will be helped by the taxes I pay, therefore I ought not to trade. But I do not trade *for the purpose* of paying taxes! And if I am to be charged with all the foreseen results of my actions, then Garrison is responsible for the Boston mob!

The reason why I am responsible for the pro-slavery act of a United States officer, for whom I have voted, is this: I must be supposed to have *intended* that which my agent is *bound* by his contract with me (that is, his oath of office) to do.

Allow me to request our opposers to keep distinctly in view the precise point in debate. This is not whether Massachusetts can rightfully trade and make treaties with South Carolina, although she knows that such a course will result in strengthening a wrongdoer. Such are most of the cases which they consider parallel to ours, and for permitting which they charge us with inconsistency. But the question really is, whether Massachusetts can join hands and strength with South Carolina, for the express and avowed purpose of sustaining Slavery. This she does in the Constitution. For he who swears to support an instrument of twelve clauses, swears to support one as well as another,—and though one only be immoral,—still he swears to do

an immoral act. Now, my conviction is, "which fire will not burn out of me," that to return fugitive slaves is sin—to promise so to do, and not do it, is, if possible, baser still; and that any conjunction of circumstances which makes either necessary, is of the Devil, and not of God.

OBJECTION XIV.

Duty requires of a non-voter to quit the country, and go where his taxes will not help to build up slavery.

ANSWER. God gave me my birth here. Because bad men about me "play such tricks before high Heaven, as make the angels weep," does it oblige me to quit? I have as good right here as they. If they choose to leave, let them—I Shall remain. 'Twould be a pretty thing, indeed, if, as often as I found myself next door to a bad man, who would bring up his children to steal my apples and break my windows, I were obliged to take the temptation away by cutting down all my apple trees and moving my house further west, into the wilderness. This would be, in good John Wesley's phrase, "giving up all the good times to the devil," with a witness.

OBJECTION XV.

"Society has the right to prescribe the terms, upon the expressed or implied agreement to comply with which a person may reside within its limits."

ANSWER. This principle I utterly deny. All that Society has a right to demand is peaceful submission to its exactions:—*consent* they have neither the power nor the right to exact or to imply. Twenty men live on a lone island. Nineteen set up a government and say, every man who lives there shall worship idols. The twentieth submits to all their laws, but refuses to commit idolatry. Have they the *right* to say, "Do so, or quit;" or, to say, "If you stay, we will consider you as impliedly worshipping idols?" Doubtless they have the *power*, but the majority have no *rights*, except those which justice sanctions. Will the objector show me the justice of his principle? I was born here. I ask no man's permission to remain. All that any man or body of men have a right to infer from my staying here, is that, in doing this *innocent act*, I think, that on the whole, I am effecting more good than harm. Lawyers say, I cannot find this right laid down in the books. That will

not trouble me. Some old play has a character in it who never ties his neckcloth without a warrant from Mr. Justice Overdo. I claim no relationship to that very scrupulous individual.

OBJECTION XVI.

These clauses, to which you refer, are inconsistent with the Preamble of the Constitution, which describes it as made "to establish justice" and "secure the blessings of liberty to ourselves and our posterity:" And as, when two clauses of the same instrument are inconsistent, one must yield and be held void—we hold these three clauses void.

ANSWER. A *specific* clause is not to be held void on account of general terms, such as those of the preamble. It is rather to be taken as an exception, allowed and admitted at the time, to those general terms.

Again. You say they are inconsistent. But the Courts and the People do not think so. Now they, being the majority, settle the law. The question then is, whether the law being settled,—and according to your belief settled immorally,—you will *volunteer* your services to execute it and carry it into effect? This you do by becoming an officeholder. It seems to me this question can receive but one answer from honest men.

LAST OF ALL, THE OBJECTOR CRIES OUT,

The Constitution may be *amended*, and I shall vote to have it changed.

ANSWER. But at present it is necessary to swear to support it *as it is*. What the Constitution may become, a century hence, we know not; we speak of it *as it is*, and repudiate it *as it is*. How long may one promise to do evil, in hope some time or other to get the power to do good? We will not brand the Constitution of the United States as pro-slavery, after—it had ceased to be so! This objection reminds me of Miss Martineau's story of the little boy, who hurt himself, and sat crying on the sidewalk. "Don't cry!" said a friend, "it won't hurt you tomorrow."—"Well then," said the child, "I won't cry tomorrow."

We come then, it seems to me, back to our original conclusion: that the man who swears to support the Constitution, swears to support the whole of it, pro-slavery clauses and all,—that he swears to support it *as it is*, not as it hereafter may become,—that he swears to support it in the sense given to it by the Courts and the Nation, not as he chooses to understand it,—and that the Courts and the Nation expect such an one in office to do his share toward the suppression of slave, as well as other, insurrections, and to aid the return of fugitive slaves. After an *abolitionist* has taken such an oath, or by his vote sent another to take it for him, I do not see how he can look his own principles in the face.

Thou that preachest a man should not steal, dost thou lie?

We who call upon the slaveholder to do right, no matter what the consequences or the cost, are certainly bound to look well to our own example. At least we can hardly expect to win the master to do justice by *setting him an example of perjury*. It is almost an insult in an abolitionist, while not willing to sacrifice even a petty ballot for his principles, to demand of the slaveholder that he give up wealth, home, old prejudices and social position at their call.

EXTRACTS FROM J.Q. ADAMS.

The benefits of the Constitution of the United States, were the restoration of credit and reputation, to the country—the revival of commerce, navigation, and ship building—the acquisition of the means of discharging the debts of the Revolution, and the protection and encouragement of the infant and drooping manufactures of the country. All this, however, as is now well ascertained, was insufficient to propitiate the rulers of the Southern States to the adoption of the Constitution. What they specially wanted was *protection*. Protection from the powerful and savage tribes of Indians within their borders, and who were harassing them with the most terrible of wars—and protection from their own negroes—protection from their insurrections—protection from their escape—protection even to the trade by which they were brought into this country—protection, shall I not blush to say, protection to the very bondage by which they were held. Yes! it cannot be denied—the slaveholding lords of the South prescribed, as a condition of their assent to the Constitution, three special provisions to secure the perpetuity of their dominion over their slaves. The first was the immunity for twenty years of preserving the African slave-trade; the second was the stipulation to surrender fugitive slaves—an engagement positively prohibited by the laws of God, delivered from Sinai; and thirdly, the exaction, fatal to the principles of popular representation, of a representation for slaves—for articles of merchandise, under the name of persons.

In outward show, it is a representation of persons in bondage; in fact, it is a representation of their masters,—the oppressor representing the oppressed.—Is it in the compass of human imagination to devise a more perfect exemplification of the art of committing the lamb to the tender custody of the wolf?—The representative is thus constituted, not the friend, agent and trustee of the person whom he represents, but the most inveterate of his foes. To call government thus constituted a democracy, is to insult the understanding of mankind. It is doubly tainted with the infection of riches

and of slavery. *There is no name in the language of national jurisprudence that can define it*—no model in the records of ancient history, or in the political theories of Aristotle, with which it can be likened. Here is one class of men, consisting of not more than one-fortieth part of the whole people, not more than one-thirtieth part of the free population, exclusively devoted to their personal interests identified with their own as slaveholders of the same associated wealth, and wielding by their votes, upon every question of government or of public policy, two-fifths of the whole power of the House. In the Senate of the Union, the proportion of the slaveholding power is yet greater. Its operation upon the government of the nation is, to establish an artificial majority in the slave representation over that of the free people, in the American Congress, and thereby to make the **PRESERVATION, PROPAGATION, AND PERPETUATION OF SLAVERY THE VITAL AND ANIMATING SPIRIT OF THE NATIONAL GOVERNMENT.**—The result is seen in the fact that, at this day, the President of the United States, the President of the Senate, the Speaker of the House of Representatives, and five out of nine of the Judges of the Supreme Judicial Courts of the United States, are not only citizens of slaveholding States, but individual slaveholders themselves. So are, and constantly have been, with scarcely an exception, all the members of both Houses of Congress from the slaveholding States; and so are, in immensely disproportionate numbers, the commanding officers of the army and navy; the officers of the customs; the registers and receivers of the land offices, and the post-masters throughout the slaveholding States.

Fellow-citizens,—with a body of men thus composed, for legislators and executors of the laws, what will, what must be, what has been your legislation? The numbers of freemen constituting your nation are much greater than those of the slaveholding States, bond and free. You have at least three-fifths of the whole population of the Union. Your influence on the legislation and the administration of the Government ought to be in the proportion of three to two. But how stands the fact? Besides the legitimate portion of influence exercised by the slaveholding States by the measure of their numbers, here is an intrusive influence in every department, by a representation, nominally of persons, but really of property, ostensibly of slaves, but effectively of their masters, overbalancing your superiority of numbers, adding two-fifths of supplementary power to the two-fifths fairly

secured to them by the compact, **CONTROLLING AND OVERRULING THE WHOLE ACTION OF YOUR GOVERNMENT AND HOME AND ABROAD**, and warping it to the sordid private interest and oppressive policy of 300,000 owners of slaves.

In the Articles of Confederation, there was no guaranty for the property of the slaveholder—no double representation of him in the Federal councils—no power of taxation—no stipulation for the recovery of fugitive slaves. But when the powers of *government* came to be delegated to the Union, the South—that is, South Carolina and Georgia—refused their subscription to the parchment, till it should be saturated with the infection of slavery, which no fumigation could purify, no quarantine could extinguish. The freemen of the North gave way, and the deadly venom of slavery was infused into the Constitution of freedom. Its first consequence has been to invert the first principle of Democracy, that the will of the majority shall rule the land. By means of the double representation, the minority command the whole, and a **KNOT OF SLAVEHOLDERS GIVE THE LAW AND PRESCRIBE THE POLICY OF THE COUNTRY.**

THE ANTI-SLAVERY EXAMINER.

**ADDRESS TO THE FRIENDS OF
CONSTITUTIONAL LIBERTY,**

**ON THE VIOLATION BY THE UNITED
STATES HOUSE OF REPRESENTATIVES**

**OF THE RIGHT OF PETITION AT THE
EXECUTIVE COMMITTEE**

**OF THE AMERICAN ANTI-SLAVERY
SOCIETY.**

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ADDRESS.

TO THE FRIENDS OF CONSTITUTIONAL LIBERTY:—

There was a time, fellow citizens, when the above address would have included the **PEOPLE OF THE UNITED STATES**. But, alas! the freedom of the press, freedom of speech, and the right of petition, are now hated and dreaded by our Southern citizens, as hostile to the perpetuity of human bondage; while, by their political influence in the Federal Government, they have induced numbers at the North to unite with them in their sacrilegious crusade against these inestimable privileges.

On the 28th January last, the House of Representatives, on motion of Mr. Johnson, from Maryland, made it a standing **RULE** of the House that "no petition, memorial, resolution, or other paper, praying the abolition of slavery in the District of Columbia, or any State or Territory of the United States, in which it now exists, **SHALL BE RECEIVED BY THE HOUSE, OR ENTERTAINED IN ANY WAY WHATEVER.**"

Thus has the **RIGHT OF PETITION** been immolated in the very Temple of Liberty, and offered up, a propitiatory sacrifice to the demon of slavery. Never before has an outrage so unblushingly profligate been perpetrated upon the Federal Constitution. Yet, while we mourn the degeneracy which this transaction evinces, we behold, in its attending circumstances, joyful omens of the triumph which awaits our struggle with the hateful power that now perverts the General Government into an engine of cruelty and loathsome oppression.

Before we congratulate you on these omens, let us recall to your recollection the steps by which the enemies of human rights have advanced to their present rash and insolent defiance of moral and constitutional obligation.

In 1831, a newspaper was established in Boston, for the purpose of disseminating facts and arguments in favor of the duty and policy of immediate emancipation. The Legislature of Georgia, with all the

recklessness of despotism, passed a law, offering a reward of \$5000, for the abduction of the Editor, and his delivery in Georgia. As there was no law, by which a citizen of Massachusetts could be tried in Georgia, for expressing his opinions in the capital of his own State, this reward was intended as the price of **BLOOD**. Do you start at the suggestion? Remember the several sums of \$25,000, of \$50,000, and of \$100,000, offered in Southern papers for kidnapping certain abolitionists. Remember the horrible inflictions by Southern Lynch clubs. Remember the declaration, in the United States Senate, by the brazen-fronted Preston, that, should an abolitionist be caught in Carolina, he would be **HANGED**. But, as the Slaveholders could not destroy the lives of the Abolitionists, they determined to murder their characters. Hence, the President of the United States was induced, in his Message of 1835, to Congress, to charge them with plotting the massacre of the Southern planters; and even to stultify himself, by affirming that, for this purpose, they were engaged in sending, by *mail*, inflammatory appeals to the *slaves*—sending papers to men who could not read them, and by a conveyance through which they could not receive them! He well knew that the papers alluded to were appeals on the immorality of converting men, women, and children, into beasts of burden, and were sent to the masters, for *their* consideration. The masters in Charleston, dreading the moral influence of these appeals on the conscience of the slaveholding community, forced the Post Office, and made a bonfire of the papers. The Post Master General, with the sanction of the President, also hastened to their relief, and, in violation of oaths, and laws, and the constitution, established ten thousand censors of the press, each one of whom was authorized to abstract from the mail every paper which *he* might think too favorable to the rights of man.

For more than twenty years, petitions have been presented to Congress, for the abolition of slavery in the District of Columbia. The right to present them, and the power of Congress to grant their prayer, were, until recently, unquestioned. But the rapid multiplication of these petitions alarmed the slaveholders, and, knowing that they tended to keep alive at the North, an interest in the slave, they deemed it good policy to discourage and, if possible, suppress all such applications. Hence Mr. Pinckney's famous resolution, in 1836, declaring, "that all petitions, or papers, relating *in any way, or to any extent* whatever to the *subject of slavery*, shall, without being

printed or referred, be laid on the table; and no further action, whatever shall be had thereon!"

The peculiar atrocity of this resolution was, that it not merely trampled upon the rights of the petitioners, but took from each member of the House his undoubted privilege, as a legislator of the District, to introduce any proposition he might think proper, for the protection of the slaves. In every Slave State there are laws affording, at least, some nominal protection to these unhappy beings; but, according to this resolution, slaves might be flayed alive in the streets of Washington, and no representative of the people could offer even a resolution for inquiry. And this vile outrage upon constitutional liberty was avowedly perpetrated "to repress agitation, to allay excitement, and re-establish harmony and tranquillity among the various sections of the Union!!"

But this strange opiate did not produce the stupefying effects anticipated from it. In 1836, the petitioners were only 37,000—the next session they numbered 110,000. Mr. Hawes, of Ky., now essayed to restore tranquillity, by gagging the uneasy multitude; but, alas! at the next Congress, more than 300,000 petitioners carried new terror to the hearts of the slaveholders. The next anodyne was prescribed by Mr. Patton, of Va., but its effect was to rouse from their stupor some of the Northern Legislatures, and to induce them to denounce his remedy as "a usurpation of power, a violation of the Constitution, subversive of the fundamental principles of the government, and at war with the prerogatives of the people."[\[105\]](#) It was now supposed that the people must be drugged by a *northern* man, and *Atherton* was found a fit instrument for this vile purpose; but the dose proved only the more nauseous and exciting from the foul hands by which it was administered.

[Footnote [105](#): Resolutions of Massachusetts and Connecticut, April and May, 1838.]

In these various outrages, although all action on the petitions was prohibited, the papers themselves were received and laid on the table, and *therefore* it was contended, that the right of petition had been preserved inviolate. But the slaveholders, maddened by the failure of all their devices,

and fearing the influence which the mere sight of thousands and tens of thousands of petitions in behalf of liberty, would exert, and, taking advantage of the approaching presidential election to operate upon the selfishness of some northern members, have succeeded in crushing the right of petition itself.

That you may be the more sensible, fellow citizens, of the exceeding profligacy of the late **RULE** and of its palpable violation of both the spirit and the letter of the Constitution, which those who voted for it had sworn to support, suffer us to recall to your recollection a few historical facts.

The framers of the Federal Constitution supposed the right of petition too firmly established in the habits and affections of the people, to need a constitutional guarantee. Their omission to notice it, roused the jealousy of some of the State conventions, called to pass upon the constitution. The *Virginia* convention proposed, as an amendment, "that every *freeman* has a right to petition, or apply to the Legislature, for a redress of grievances." And this amendment, with others, was ordered to be forwarded to the different States, for their consideration. The Conventions of North Carolina, New York, and Rhode Island, were held subsequently, and, of course, had before them the Virginia amendment. The North Carolina Convention adopted a declaration of rights, embracing the very words of the proposed amendment; and this declaration was ordered to be submitted to Congress, before that State would enter the Union. The Conventions of New York and of Rhode Island incorporated in their *certificates of ratification*, the assertion that "Every *person* has a right to petition or apply to the legislature for a redress of grievances"—using the Virginia phraseology, merely substituting the word *person* for *freeman*, thus claiming the right of petition even for slaves; while Virginia and North Carolina confined it to freemen.

The first Congress, assembled under the Constitution, gave effect to the wishes thus emphatically expressed, by proposing, as an amendment, that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof, or *abridging* the freedom of the press, or the right of the people peaceably to assemble, and *to petition Government* for a redress of grievances." This amendment was duly ratified by the States, and when members of Congress swear to support the

Constitution of the United States, they are as much bound by their oath to refrain from abridging the right of petition, as they are to fulfil any other constitutional obligation. And will the slaveholders and their abettors, dare to maintain that they have not foresworn themselves, because they have abridged the right of the people to petition for a redress of grievances, by a **RULE** of the House, and not by a *law*? If so, they may by a **RULE** require every member, on taking his seat, to subscribe the creed of a particular church, and then call their Maker to witness that they are guiltless of making a *law* "respecting an establishment of religion, or prohibiting the free exercise thereof."

The right to petition is one thing, and the disposition of a petition after it is received, is another. But the new rule makes no disposition of the petitions; it **PROHIBITS THEIR RECEPTION**; they may not be brought into the legislative chamber. Hundreds of thousands of the people are debarred all access to their representatives, for the purpose of offering them a prayer.

It is said that the manifold abominations perpetrated in the District are no grievances to the petitioners, and *therefore* they have no right to ask for their removal. But the right guaranteed by the Constitution, is a right to ask for the redress of *grievances*, whether personal, social, or moral. And who, except a slaveholder, will dare to contend that it is no grievance that our agents, our representatives, our servants, in our name and by our authority, enact laws erecting and licensing markets in the Capital of the Republic, for the sale of human beings, and converting free men into slaves, for no other crime, than that of being too poor to pay United States' officers the **JAIL FEES** accruing from an iniquitous imprisonment?

Again, it is pretended that the objects prayed for, are palpably unconstitutional, and that *therefore* the petitions ought not to be received. And by what authority are the people deprived of their right to petition for any object which a majority of either House of Congress, for the time being, may please to regard as unconstitutional? If this usurpation be submitted to, it will not be confined to abolition petitions. It is well known that most of the slaveholders *now* insist, that all protecting duties are unconstitutional, and that on account of the tariff the Union was nearly rent by the very men who are now horrified by the danger to which it is exposed by these *petitions*! Should our Northern Manufacturers again presume to ask

Congress to protect them from foreign competition, the Southern members will find a precedent, sanctioned by Northern votes, for a rule that "no petition, memorial, resolution, or other paper, praying for the **IMPOSITION OF DUTIES FOR THE ENCOURAGEMENT OF MANUFACTURES**, shall be received by the House, or entertained in any way whatever."

It does indeed, require Southern arrogance, to maintain that, although Congress is invested by the Constitution with "exclusive jurisdiction, in all cases whatsoever," over the District of Columbia, yet that it would be so palpably unconstitutional to abolish the slave-trade, and to emancipate the slaves in the District, that petitions for these objects ought not to be received. Yet this is asserted in that very House, on whose minutes is recorded a resolution, in 1816, appointing a committee, with power to send for persons and papers, "to inquire into the existence of an inhuman and illegal traffic in slaves, carried on, in and through the District of Columbia, and report whether any, and what means are necessary for putting a stop to the same:" and another, in 1829, instructing the Committee on the District of Columbia to inquire into the expediency of providing by law, "for the gradual abolition of slavery in the District."

In the very first Congress assembled under the Federal Constitution, petitions were presented, asking its interposition for the mitigation of the evils, and final abolition of the African slave-trade, and also praying it, as far as it possessed the power, to take measures for the abolition of slavery. These petitions excited the wrath and indignation of many of the slave-holding members, yet no one thought of refusing to receive them. They were referred to a select committee, at the instance of Mr. Madison, himself, who "entered into a critical review of the circumstances respecting the adoption of the Constitution, and the ideas upon the limitation of the powers of Congress to interfere in the regulation of the commerce of slaves, and showed that they undoubtedly were not precluded from interposing in their importation; and generally to regulate the mode in which every species of business shall be transacted. He adverted to the western country, and the Cession of Georgia, in which Congress have certainly the power to *regulate the subject of slavery*; which shows that gentlemen are mistaken in supposing, that Congress cannot constitutionally interfere in the business, in any degree, whatever. He was in favor of committing the petition, and

justified the measure by repeated precedents in the proceedings of the House."—*U.S. Gazette*, 17th Feb., 1790.

Here we find one of the earliest and ablest expounders of the Constitution, maintaining the power of Congress to "regulate the subject of slavery" in the national territories, and urging the reference of abolition petitions to a special committee.

The committee made a report; for which, after a long debate, was substituted a declaration, by the House, that Congress could not abolish the slave trade prior to the year 1808, but had a right so to regulate it as to provide for the humane treatment of the slaves on the passage; and that Congress could not interfere in the emancipation or treatment of slaves in the *States*.

This declaration gave entire satisfaction, and no farther abolition petitions were presented, till after the District of Columbia had been placed under the "exclusive jurisdiction" of the General Government.

You all remember, fellow citizens, the wide-spread excitement which a few years since prevailed on the subject of SUNDAY MAILS. Instead of attempting to quiet the agitation, by outraging the rights of the petitioners, Congress referred the petitions to a committee, and made no attempt to stifle discussion.

Why, then, we ask, with such authorities and precedents before them, do the slaveholders in Congress, regardless of their oaths, strive to gag the friends of freedom, under *pretence* of allaying agitation? Because conscience does make cowards of them all—because they know the accursed system they are upholding will not bear the light—because they fear, if these petitions are discussed, the abominations of the American slave trade, the secrets of the prison-houses in Washington and Alexandria, and the horrors of the human shambles licensed by the authority of Congress, will be exposed to the score and indignation of the civilized world.

Unquestionably the late **RULE** surpasses, in its profligate contempt of constitutional obligation, any act in the annals of the Federal Government. As such it might well strike every patriot with dismay, were it not that attending circumstances teach us that it is the expiring effort of desperation.

When we reflect on the past subserviency of our northern representatives to the mandates of the slaveholders, we may well raise, on the present occasion, the shout of triumph, and hail the vote on the recent **RULE** as the pledge of a glorious victory. Suffer us to recall to your recollection the majorities by which the successive attempts to crush the right of petition and the freedom of debate have been carried.

Pinckney's Gag was passed May, 1836, by a majority of 51

Hawes's do.	Jan. 1837,	58
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Patton's do.	Dec. 1837,	48
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Atherton's do.	Dec. 1838,	48
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JOHNSON's do.	Jan. 1840,	6
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Surely, when we find the majority against us reduced from 58 to 6, we need no new incentive to perseverance.

Another circumstance which marks the progress of constitutional liberty, is the gradual diminution in the number of our northern *serviles*. The votes from the free States in favor of the several gags were as follows:—

For Pinckney's 62

For Hawes's 70

For Patton's 52

For Atherton's 49

For JOHNSON's 28

There is also another cheering fact connected with the passage of the **RULE** which deserves to be noticed. Heretofore the slaveholders have uniformly, by enforcing the previous question, imposed their several gags by a silent vote. On the present occasion they were twice baffled in their efforts to stifle debate, and were, for days together, compelled to listen to speeches on a subject which they have so often declared should not be discussed.

A base strife for southern votes has hitherto, to no small extent, enlisted both the political parties at the north in the service of the slaveholders. The late unwonted independence of northern politicians, and the deference paid

by them to the wishes of their own constituents, in preference to those of their southern colleagues, indicates the advance of public opinion. No less than 49 northern members of the administration party voted for the Atherton gag, while only 27 dared to record their names in favor of Johnson's; and of the representation of **SIX** States, *every vote* was given *against* the rule, without distinction of party. The tone in which opposite political journals denounce the late outrage may warn the slaveholders that they will not much longer hold the north in bonds. The leading administration paper in the city of New York regards the **RULE** with "utter abhorrence;" while the official paper of the opposition, edited by the state printer, trusts that the names of the recreant northerners who voted for it may be "handed down to eternal infamy and execration."

The advocates of abolition are no longer consigned to unmitigated contempt and obloquy. Passing by the various living illustrations of our remark, we appeal for our proofs to the dead. The late WILLIAM LEGGETT, the editor of a Democratic Journal in the city of New York, was denounced, in 1835, by the "Democratic Republican General Committee," for his abolition doctrines. Far from faltering in his course, on account of the censure of his own party, he exclaimed, with a presentiment almost amounting to prophecy, "The stream of public opinion now sets against us, but it is about to turn, and the regurgitation will be tremendous. Proud in that day may well be the man who can float in triumph on the first reflux wave, swept onward by the deluge which he himself, in advance of his fellows, had largely shared in occasioning. Such be my fate; and, living or dying, it will in some measure be mine. I have written my name in ineffaceable letters on the abolition record." And he did live to behold the first swelling of the reflux wave. The denounced abolitionist was honored by a democratic President with a diplomatic mission; and since his death, the resolution condemning him has been EXPUNGED from the minutes of the democratic committee.

Of the many victims of the recent awful calamity in our waters, what name has been most frequently uttered by the pulpit and the press in the accents of lamentation and panegyric? On whose tomb have freedom, philanthropy, and letters been invoked to strew their funeral wreaths? All who have heard of the loss of the Lexington are familiar with the name of CHARLES FOLLEN. And who was he? One of the men officially denounced by

President Jackson as a gang of miscreants, plotting insurrection and murder—and, recently, a member of the Executive Committee of the American Anti-Slavery Society.

Let us then, fellow citizens, in view of all these things, thank God and take courage. We are now contending, not merely for the emancipation of our unhappy fellow men, kept in bondage under the authority of our own representatives—not merely for the overthrow of the human shambles erected by Congress on the national domain—but also for the preservation of those great constitutional rights which were acquired by our fathers, and are now assailed by the slaveholders and their northern auxiliaries. That you may remember these auxiliaries and avoid giving them new opportunities of betraying your rights, we annex a list of their dishonored names.

The following twenty-eight members from the Free States voted in the affirmative on the recent GAG RULE.

MAINE.

Virgil D. Parris

Albert Smith

NEW HAMPSHIRE.

Charles G. Atherton

Edmund Burke

Ira A. Eastman

Tristram Shaw

NEW YORK.

Nehemiah H. Earle

John Fine

Nathaniel Jones

Gouverneur Kemble

James de la Montayne

John H. Prentiss

Theron R. Strong

PENNSYLVANIA.

John Davis

Joseph Fornance
James Gerry
George M'Cullough
David Petriken
William S. Ramsey

OHIO.

D.P. Leadbetter
William Medill
Isaac Parrish
George Sweeney
Jonathan Taylor
John B. Weller

INDIANA.

John Davis
George H. Proffit

ILLINOIS.

John Reynolds

Let us turn to our more immediate representatives, and we trust more faithful servants. Our State Legislatures will not refuse to hear our prayers. Let us petition them immediately to rebuke the treason by which the Constitution has been surrendered into the hands of the slaveholders—let us implore them to demand from Congress, in the name of the free States, that they shall neither destroy nor abridge the right of petition—a right without which our government would be converted into a despotism.

We call on you, fellow citizens of every religious faith and party name, to unite with us in guarding the citadel of our country's freedom. If there are any who will not co-operate with us in laboring for the emancipation of the slave, surely there are none who will stand aloof from us while contending for the liberty of themselves, their children, and their children's children.

To the rescue, then, fellow citizens! and, trusting in HIM without whom all human effort is weakness, let us not doubt that our faithful endeavors to

preserve the rights HE has given us will, through HIS blessing, be crowned with success.

ARTHUR TAPPAN,
JAMES G. BIRNEY,
JOSHUA LEAVITT,
LEWIS TAPPAN,
SAMUEL E. CORNISH,
SIMEON S. JOCELYN,
LA ROY SUNDERLAND,
THEODORE S. WRIGHT,
DUNCAN DUNBAR,
JAMES S. GIBBONS,
HENRY B. STANTON

*Executive Committee
of the
American
Anti-Slavery Society.*

New York, February 13, 1840.

*** END OF THE PROJECT GUTENBERG EBOOK THE ANTI-SLAVERY EXAMINER, PART 4 OF 4 ***

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